

Law 421

Class Notes

International Law and National/Municipal Law

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With the growing venture of international law in various areas, there are a number of easily discernible areas such as human rights or international investment law, where quite frequently, an issue may be the subject matter of regulation, both under national and international law. Similarly, in certain cases, identical legal issue may be litigated in both national and international courts. For example, the failure of the authorities in the USA to give foreign nationals access to consular assistance, as required by *Vienna Convention on Consular Relations*, 1963, was litigated before national courts in the USA,¹ the International Court of Justice (ICJ),² and the Inter-American Court of Human Rights.³

Question: Can you recall the factor/s which is/are blurring any strict demarcation line between the distinct operational line between national and international law?

Monism

According to the monists such as Hans Kelsen and Hersch Lauterpacht, both national law and international law are just two faces of the same field that is 'law'. They argue that both these strands of law essentially serve the same purpose of welfare of individuals. In other words, they dismiss any strict division between national and international law. According to the monists, they being just faces of the same field, essentially there would not generally be any conflict between them. However, if there is any conflict between national law and international law, the latter would prevail over the former.

Dualism

On the other hand, dualists such as Dionisio Anzilotti and Heinrecih Tripel, argue that international law and national law operate on different plane and they are independent of each other. Thus, according to the dualists, national law and international law cannot impact each other. It naturally follows that in their view, national courts will not be bound to follow international law unless it is incorporated into national law by an enabling national legislation. Thus, the dualists view is predicated on the supremacy of sovereign states.

¹ See for example, *Breard v. Greene*, 523 U.S. 371 (1998).

² *LaGrand Case (Germany v United States of America)* (Merits) ICJ Reports (2001) 466.

³ *The Right to Information on Consular Assistance in the Framework of the Guarantees of the Due Process of Law*, Advisory Opinion OC-16/99, October 1, 1999, Inter-American Court of Human Rights (Series A) No. 16 (1999).

Incorporation

Regarding, the relation between national and international law, there is a third theory which is basically a middle ground between the above two (monism and dualism). Thus, scholars such as Gerald Fitzmaurice and Rousseau suggest that there is no hierarchy or common ground between national and international law. According to this theory, just as national laws of one country cannot be subservient or superior to national laws of another country, but each would operate with supreme authority within its national sphere, the same would apply to the relation between national and international law. Thus, according to this theory, if a state within its domestic sphere violates any norm of international law, the remedy would lie on the international plane either by some form of diplomatic protest or judicial action.

The Role and Impact of National Law in International Law

It is important to remember that inconsistency with national law can never be a valid defence for violation of international law before an international body.⁴ The rationale for this position is perhaps obvious because the contrary would mean that domestic law would become a vehicle for getting rid of international legal obligations at will. This position of law is based on a long line of precedents. For example, in *Alabama Claims Arbitration*,⁵ the UK unsuccessfully pleaded that its constitutional law did not authorise it to prevent the private construction and sailing of ships which were subsequently used for preying on the US merchant ships by the Confederate States Navy. Finding that the UK has violated its neutral role in the US Civil War, the Arbitral Tribunal observed that ‘the government of Her Britannic Majesty cannot justify itself for a failure in due diligence on the plea of insufficiency of the legal means of action which it possessed.’⁶

However, it would be improper to assume that the provisions of domestic law would have no role in international legal system. Indeed, in the settlement of cases, often international courts may have to engage in the study and interpretation of national laws. For instance, in *Brazilian Loans Case*,⁷ where there was a dispute regarding repayment on Brazilian bonds purchased by French nationals, the interpretation of national law was required. The Permanent Court of International Justice observed:

Once the Court has arrived at the conclusion that it is necessary to apply the municipal law of a particular country, there seems no doubt that it must seek to apply it as it would be applied in that

⁴ Note in this regard, Article 27 of the *Vienna Convention on the Law of Treaties*, 1969 providing ‘A party may not invoke the provisions of its internal law as justification for its failure to perform a treaty. This rule is without prejudice to article 46.’

⁵ *Alabama Claims of the United States of America against Great Britain (USA v Great Britain)* (1872) 24 Reports of International Arbitral Awards 125.

⁶ *Ibid*, at 131.

⁷ *France v Brazil*, PCIJ Reports (1929) Series A, No 21.

country. It would not be applying the municipal law of a country if it were to apply it in a manner different from that in which that law would be applied in the country in which it is in force.⁸

Question: What is your understanding from *Barcelona (Belgium v Spain)* in this regard?

The Role and Force of International Law in National Legal Systems

Different approaches adopted by different countries make the task of ascertainment of the role of international law in national legal system, a much more complex and haphazard task. In other words, in this case, national courts would often have to dwell on the question of application of monism or dualism in contentious situations. At a basic level, on the international plane, states are under a legal obligation to act in compliance with international law and sometimes treaties may require states to pass domestic laws in line with the obligations of international law.

The Practice of the UK

Traditionally, it has been observed by commentators that customary international law is a part of the law of the UK and would be applied by English law and the courts would follow them unless they are in contradiction with express statutory provisions or judgment of a higher court (than the court where the matter is at issue). However, in *R v Jones (Margaret)*,⁹ the appellants who were either charged with or convicted of certain criminal offences, regarding their actions in relation to the US and UK air force bases and a military port in the UK with a view to hinder the invasion of Iraq, pleaded that they were acting to prevent aggression, a crime under international law. Hence, according to them, they could rely on the defence provided in Section 3 of the *Criminal Law Act*, 1967 which permitted resorting to the use of reasonable force for preventing crime. Their claim was rejected, inter alia, on the ground that international law was not a part, but it was *rather a source* of English law. On this point Lord Bingham observed:

The appellants contended that the law of nations in its full extent is part of the law of England and Wales. The Crown did not challenge the general truth of this proposition, for which there is indeed old and high authority: see, for example, *Triquet v Bath* (1764) 3 Burr 1478, 1481; *Blackstone's Commentaries*, Bk IV, Chap 5, p 67; *Duke of Brunswick v King of Hanover* (1844) 6 Beav 1, 51-52; *Emperor of Austria v Day* (1861) 2 Giff 628, 678; *Chung Chi Cheung v The King* [1939] AC 160, 167-168; *Trendtex Trading Corporation v Central Bank of Nigeria* [1977] QB 529, 554; *J H Rayner (Mincing Lane) Ltd v Department of Trade and Industry* [1989] Ch 72, 207. I would for my part hesitate, at any rate without much fuller argument, to accept this proposition in quite the unqualified terms in which it has often been stated. There seems to be truth in Brierly's contention ("International Law in England" (1935) 51 LQR 24, 31), also espoused by the appellants, that international law is not a part, but is one of the sources, of English law.¹⁰

⁸ Ibid, at 124.

⁹ [2006] UKHL 16.

¹⁰ Ibid, [11].

Question: What other legal issues may have influenced the decision of the House of Lords?

On the other hand, regarding the treaties the general rule is as expressed by Lord Bingham in *A (FC) and Others v Secretary of State for the Home Department*, ‘that a treaty, even if ratified by the United Kingdom, has no binding force in the domestic law of this country unless it is given effect by statute or expresses principles of customary international law.’¹¹ However, in English law, there is a presumption that legislation is to be interpreted¹² in such a way that any conflict with international law is avoided. The reason is as has been observed by Lord Diplock in *Salomon v Commissioners of Customs and Excise*,¹³ that ‘Parliament does not intend to act in breach of international law, including therein specific treaty obligations.’

Question: Can you envisage the reason/s for requiring a domestic law to be passed for incorporating treaty law?

The Practice of the USA

The practice in the USA is akin to that of the UK except that relevant constitutional provisions have to be taken into account. In particular, with regard to customary international law, the practice is more or less similar to that of the UK. However, regarding the treaty law, Article VI of the *Constitution of the USA* provides that:

...all treaties made, or which shall be made, under the authority of the United States, shall be the supreme law of the land; and the judges in every state shall be bound thereby, anything in the Constitution or laws of any State to the contrary notwithstanding.

Article II, Section 2 of the *Constitution of the USA* provides that the President of the USA ‘shall have power, by and with the advice and consent of the Senate, to make treaties, provided two thirds of the Senators present concur. However, for executive agreements, the President does not need any approval of the Senate. In the USA, a distinction is drawn between self-executing (which do not need any domestic law for it to be treated as a part of the US law) and non-self executing treaties (which need a legislative transformation for it to be treated as a part of the US law). It has to be noted that an Act of the US Congress has been held to be on full parity with a treaty and thus, a later statute would render a treaty inoperative when it conflicts with a part of the statute.¹⁴

In *Bond v. United States*,¹⁵ the dispute arose out of prosecution under a federal statute implementing the *Chemical Weapons Convention*. Carol Anne Bond, a microbiologist, found that her friend had become pregnant and the father of the child was none other than Bond's husband. Seeking revenge, Bond first engaged in harassing her friend and then prepared toxic chemicals and applied them to her friend's house, car, and mailbox intending to cause her injury. The victim in one instance received a minor contact burn on her thumb and contacted federal authorities, and they charged Bond with two counts of violating a Section of the federal

¹¹ [2006] UKHL 71, [27].

¹² See for example, *Garland v British Engineering Ltd.* [1983] 2 AC 751.

¹³ [1967] 2 QB 116, at 143.

¹⁴ *Reid v Covert* (1957) 354 US 1, at 18.

¹⁵ 134 S.Ct. 2077 (2014).

statute. Bond was found guilty. On appeal before the Supreme Court, Bond argued that the application of the Statute to her conduct exceeded the federal government's authority to regulate state and local matters, in violation of the Tenth Amendment to the Constitution. Accepting her appeal, the US Supreme Court observed, '[i]n our federal system, the National Government possesses only limited powers; the States and the people retain the remainder'.¹⁶

Other Countries

In most other common law countries, customary international law is generally treated as a part of national law.¹⁷ National law would generally be presumed to be compatible with the international law but in case of any conflict between the two, the latter would generally give way to the former.¹⁸ Some civil law countries (for example, Belgium) tend to give more importance to international law than even their constitutional provisions.¹⁹ Of course, the actual practice is more complex and cannot be encapsulated in so few words.

The Relation between International Law and National Law in Bangladesh:

In *Hussain Mohammad Ershad v Bangladesh and Others*,²⁰ the Appellate Division of the Supreme Court of Bangladesh has observed:

True it is that the Universal Human Rights norms, whether given in the Universal Declaration or in the Covenants, are not directly enforceable in national courts. But if their provisions are incorporated into the domestic Law, they are enforceable in national courts. The local laws, both constitutional and statutory, are not always in consonance with the norms contained in the international human rights instruments. The national court; should not. I feel, straightway ignore the international obligations, which a country undertakes. If the domestic laws are not clear enough or there is nothing therein the national courts should draw upon the principles incorporated in the international instruments. But in the cases where the domestic laws are clear and inconsistent with the international obligations of the state concerned the national courts will be obliged to respect the national laws, but shall draw the attention of the Law-makers to such inconsistencies.²¹

In a similar vein in *Bangladesh and ors v Somboon Asavaham*, in the course of determining the limits of territorial waters of Bangladesh, the AD relied on the *Territorial Waters and Maritime Zone Act, 1974* and observed that '[i]t is well settled that where there is municipal law on an international subject, the national Court's function is to enforce the municipal law within the plain meaning of the statute.'²²

Question: From the observation of the court, what is your understanding about the practice of Bangladesh regarding the relation between national and international law?

¹⁶ Ibid, at 2086.

¹⁷ Malcolm N. Shaw, *International Law* (Cambridge University Press, 6th ed, 2008) at 166.

¹⁸ Ibid.

¹⁹ Ibid, 173.

²⁰ (2001) 21 BLD (AD) 69.

²¹ Ibid, [2].

²² (1980) 32 DLR (AD) 194, [6].

Further Readings:

- Islam, Md. Rizwanul, 'The Application of International Law in the Municipal Legal System: A Highly Ad Hoc and Ambivalent Approach in Bangladesh Epitomizing a Broader Hermeneutics Trend?' (2025) 26(1) *Oregon Review of International Law* 33-72
- Islam, Md. Rizwanul, 'Challenges of Research and Publications on International Law in Bangladesh: A Soliloquy?' (2024) 26 *Chittagong University Journal of Law* 7-22
- Islam, Md. Rizwanul, 'Teaching and Researching International Law by Resource-Constrained Academics', as part of Symposium: Teaching and Researching International Law – Global Perspectives jointly organised by National University of Singapore Centre for International Law and AfronomicsLaw, 21 September 2020 <<https://www.afronomicslaw.org/2020/09/21/teaching-and-researching-international-law-by-resource-constrained-academics/>>

Cases

Bangladesh National Women Lawyers' Association (BNWLA), Represented by Its Executive Director, Ms Salma Ali v Government of Bangladesh and others, 29 BLD (HCD) 415; ILDC 3088 (BD 2009)

Rabiya Bhuiyan, M P v Ministry of Local Government and Rural Development and others, (2007) 27 BLD (AD) 261; (2008) 5 ADC 1; (2007) 59 DLR (AD) 176; ILDC 3090 (BD 2005)

Ullah v Bangladesh and Another, 15 BLD (HCD) 108; ILDC 3086 (BD 1994)

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Class Notes

Extradition and Asylum

Extradition refers to a process whereby a person accused or convicted of a criminal offence is sent by one state to another so that the latter may prosecute or punish that person. Extradition, generally, is based on treaties (between or among states). However, extradition between some countries may not always involve formal diplomatic procedure, and in some cases (though rare), may be fully a matter between the police and courts of two states.¹ The philosophical basis of extradition may be found on the notion that no crime should go unpunished. And perhaps it is not too difficult to appreciate that for various reasons, it may be easier to try an offence in a state seeking extradition than in a state from which extradition is sought.

It may be mentioned that in Bangladesh, the national law is governed by the *Extradition Act*, 1974.² From the practice of states and numerous treaties, one may easily deduce the following common principles observed by states relating to extradition:

1. The principle of double criminality that is the offence for which a person is to be extradited should be an offence both under the law of the state seeking extradition and also in the state from which extradition is sought.
2. The principle of specificity that is the request for extradition must relate to one or more specific offence/s.
3. Persons would not generally be extradited for political, military, or religious offences. Of course, this limitation would not extend to terrorist activities. However, of course, it would not be trite to say that the demarcation line between political and non-political offences is not always undisputed.
4. There should be a prima facie case against the person whose extradition is being sought.
5. Often states do not extradite their citizens.³

¹ Geoff Gilbert, 'Extradition' in Peter Cane and Joanne Conaghan (eds), *The New Oxford Companion to Law* (Oxford University Press, 2008) 438, 438.

² Act No. LVIII OF 1974.

³ However, there is no bar in doing so. See, for example, *Abdul Abedin Abdal v The State* (2001), 21 BLD (HCD) 39. The issue of citizenship did not seem to influence the court's judgement and thus, it can be implied that the court did not consider the applicant's dual citizenship a material factor.

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Sometimes although there is no extradition treaty in force between the sending and receiving states, an alleged offender may be sent to another state and this is called rendition.

Question: Please read Section 4 of the *Extradition Act*, 1974 and assess which of the above feature/s is/are present therein?

Non-refoulement

A state is expected to decline to extradite a person to a state where there may be a possibility that the person concerned would be subjected to torture or inhuman treatment.⁴ This is often known as the principle of non-refoulement which means that a person would not be sent to the state where she/he may be persecuted again. This principle has found its place in a number of human rights treaties such as the *Convention Relating to the Status of Refugees*, 1951 and its *Protocol Relating to the Status of Refugees*, 1967 and *Convention Against Torture*, 1984. For instance, Article 51 of the Refugee Convention states that:

1. No Contracting State shall expel or return ("refouler") a refugee in any manner whatsoever to the frontiers of territories where his life or freedom would be threatened on account of his race, religion, nationality, membership of a particular social group or political opinion.
2. The benefit of the present provision may not, however, be claimed by a refugee whom there are reasonable grounds for regarding as a danger to the security of the country in which he is, or who, having been convicted by a final judgment of a particularly serious crime, constitutes a danger to the community of that country.

However, in practice, when a person is persecuted and deserve rights as a refugee, so as to benefit from this principle, the determination of her/his legal status can be a complex task under the norms of international refugee law.

In the *Lockerbie Case*,⁵ some important questions regarding extradition arose. On 21st December 1988, 270 people (on board the aircraft and people on the ground injured by the debris of the aircraft) were killed by the explosion of a bomb which brought down Pan Am Flight 103 over the Lockerbie area of Scotland. After detailed investigations, it was found that two officers of Libyan Intelligence were involved with the explosion. Both the USA and the UK exerted pressure on Libya to extradite them, but Libya did not concede

⁴ See for example, *Saadi v Italy*, Application No. 37201/06, Judgment of the Grand Chamber of the European Court of Human Rights, Judgement of 28 February 2008.

⁵ *Case Concerning Questions of Interpretation and Application of the 1971 Montreal Convention arising from the Aerial Incident at Lockerbie (Libyan Arab Jamahiriya v. United Kingdom)* (1992) ICJ Reports 3. See also *Case Concerning Questions of Interpretation and Application of the 1971 Montreal Convention arising from the Aerial Incident at Lockerbie (Libyan Arab Jamahiriya v. United States of America)* ICJ Reports 234.

to their demands. Rather it brought a case against the UK and the USA under the *Montreal Convention for the Suppression of Unlawful Acts against the Safety of Civil Aviation*, 1971 (Montreal Convention) alleging that these two states were trying to circumvent the Montreal Convention and thereby trying to expropriate a matter of international law into domestic law.

The USA and the UK questioned the jurisdiction of the ICJ. Their essential argument was that the UN Security Council Resolutions had decided under Chapter VII of the UN Charter that Libya had to provide a full and effective response to the requests for extradition of the persons allegedly responsible for the terrorist act for trial in Scotland or the US. The defendants argued that these resolutions had overridden the Montreal Convention and rendered the application inadmissible. The court rejected this contention of the USA and the UK. But the matter was not finally settled within the ICJ, when in 2003, it was ultimately discontinued by the ICJ at the request of the parties. From the viewpoint of extradition, it is particularly important to note the following observations of four of the Judges in this case:

The United Kingdom and the United States were entitled to request Libya to extradite the two Libyan nationals charged by the American and British authorities with having contributed to the destruction of the aeroplane lost in the Lockerbie incident. For this purpose they could take any action consistent with international law. For its part, Libya was entitled to refuse such an extradition and to recall in that connection that, in common with the law of many other countries, its domestic law prohibits the extradition of nationals.

In so far as general international law is concerned, extradition is a sovereign decision of the requested State, which is never under an obligation to carry it out. Moreover, in general international law there is no obligation to prosecute in default of extradition. Although since the days of Covarnivias and Grotius such a formula has been advocated by some legal scholars, it has never been part of positive law. This being so, every State is at liberty to request extradition and every State is free to refuse it. Should it refuse, a State is not obliged to prosecute.⁶

Question: On the basis of the above finding of the Judges, is there any obligation to extradite an alleged or convicted offender solely on the basis of customary international law?

As a factual matter, it may be mentioned that the UN Security Council imposed a sanction on Libya and after deliberation continuing for a few years, Libya had to consent to a trial to be conducted on an impartial soil but under Scottish law. The trial was

⁶ Ibid, *Libyan Arab Jamahiriya v. United Kingdom* at 24 (Joint Declaration of Judges Evensen, Tarasov, Guillaume and Aguilar Mawdsley).

eventually held in the Netherlands and one of the alleged offenders was found guilty by the court and sent to a Scottish prison.

In *R v Bow Street Stipendiary Magistrates Ex P Pinochet*,⁷ Mr. Pinochet, a former military usurper who was in power for nearly two decades, while he was in the UK for receiving medical treatment was sought to be extradited to Spain for trial on his alleged serious violations of human rights (mainly torture) in Chile.⁸ As a former Head of a sovereign State, by a lower court in the UK, he was held to be entitled to enjoy immunity from prosecution, the House of Lords held otherwise. The House of Lords observed:

Our job is to decide two questions of law: are there any extradition crimes and, if so, is Senator Pinochet immune from trial for committing those crimes. If, as a matter of law, there are no extradition crimes or he is entitled to immunity in relation to whichever crimes there are, then there is no legal right to extradite Senator Pinochet to Spain or, indeed, to stand in the way of his return to Chile.⁹...

The diplomatic representative of the foreign state in the forum state is also afforded the same immunity in recognition of the dignity of the state which he represents. This immunity enjoyed by a head of state in power and an ambassador in post is a complete immunity attaching to the person of the head of state or ambassador and rendering him immune from all actions or prosecutions whether or not they relate to matters done for the benefit of the state. Such immunity is said to be granted *ratione personae*.

What then when the ambassador leaves his post or the head of state is deposed? The position of the ambassador is covered by the Vienna Convention on Diplomatic Relations (1961)¹⁰...

The continuing partial immunity of the ambassador after leaving post is of a different kind from that enjoyed *ratione personae* while he was in post. Since he is no longer the representative of the foreign state he merits no particular privileges or immunities as a person. However in order to preserve the integrity of the activities of the foreign state during the period when he was ambassador, it is necessary to provide that immunity is afforded to his *official* acts during his tenure in post. If this were not done the sovereign immunity of the state could be evaded by calling in question acts done during the previous ambassador's time. Accordingly under article 39(2) the ambassador, like any other official of the state, enjoys immunity in relation to his official acts done while he was an official. This limited immunity, *ratione materiae*, is to be contrasted with the former immunity *ratione personae* which gave complete immunity to all activities whether public or private.

In my judgment at common law a former head of state enjoys similar immunities, *ratione materiae*, once he ceases to be head of state. He too loses immunity *ratione personae* on ceasing to be head of state¹¹...

Can it be said that the commission of a crime which is an international crime against humanity and *jus cogens* is an act done in an official capacity on behalf of the state? I believe there to be

⁷ [2000] 1 AC 147.

⁸ The Spanish request was pursuant to an international warrant for the arrest of Pinochet for the alleged deaths and torture of Spanish citizens.

⁹ *Ibid*, at 190.

¹⁰ *Ibid*, at 201-202.

¹¹ *Ibid*, at 202.

strong ground for saying that the implementation of torture as defined by the Torture Convention cannot be a state function.¹²

Due to some strong political support (both from his US and UK allies, including former heads of governments and the Government of the Chile), Pinochet was allowed to be freed by the Home Secretary of the UK on 'medical grounds', and he returned to Chile. He was initially declared by the Chilean Supreme Court as physically not to be in a state fit enough to stand trial. Subsequently, following his defiant television interview to a foreign television station, the trial recommenced, and he ultimately died while the proceedings against him were pending.

Questions: Can you envisage, in what different ways, the judgment may be remarkable? While the current Head of States may enjoy complete jurisdictional immunity from national courts, what about their immunities from the jurisdiction of international tribunals such as the International Criminal Court? What is the doctrinal basis of the disparity? What impact, if any, do you think the so-called on 'War on Terror', may have on the state practice on extradition?

In *Saiful Islam Dilder v Govt. Bangladesh and others*,¹³ the petitioner, the Secretary-General of Bangladesh Human Rights Commission, a Human Rights non-governmental organisation claimed that since there has been no extradition treaty between India and Bangladesh the extradition of Mr. Anup Chetia, the Secretary-General of the United Liberation Front of Assam who was charged with treason by India would be, inter alia, a violation of Article 145 A of the *Constitution*. Rejecting the contention, the High Court Division (HCD) observed:

[I]n a case where a citizen of a foreign country intends to stay in Bangladesh and if the Government is satisfied that EXTRADITION of such person is called for in Order to maintain friendly relations of Bangladesh with foreign states the Government can on the strength of Section 3(1) and Section 2(f) (ii) of the Special Powers ACT, 1974 extradite such citizen to his own country in absence of any EXTRADITION treaty between the government of Bangladesh and such foreign States. Thus, reading Section 4 of the EXTRADITION ACT, 1974 and Section 3(1) read with Section 2(f)(ii) together we hold that the Government of Bangladesh has sufficient legal authority to extradite Anup Chetia to India.¹⁴

In this case, the HCD has also held that the *Extradition Act*, 1974, does not provide any exemption from extradition for political offences.¹⁵ However, in view of the provision

¹² Ibid, at 203.

¹³ (1998)18 BLD (HCD) 615.

¹⁴ Ibid, para 8.

¹⁵ Ibid, para 7.

in Section 5(2) stating that '[n]o fugitive offender shall be surrendered, (a) if the offence in respect of which his surrender is sought is of a political character or if it is shown to the satisfaction ... the requisition for his surrender has, in fact, been made with a view to his being tried or punished for an offence of a political character', this finding of the HCD, it would be submitted, is *per in curiam*.

Diplomatic Asylum and Asylum:

Diplomatic asylum refers to a right of individuals to seek refuge in a state (other than the home state of the individual seeking refuge) and the right of that state to allow such protection as a right of the sovereign. It should be noted that diplomatic asylum is requested in diplomatic missions of the receiving states (that is beyond their national borders) while territorial asylum or simply asylum can be requested within the borders of the state where asylum is sought. While any state may take a decision to grant asylum to any foreigner, things may get tense when such a right is sought to be exercised beyond the territorial boundaries of the asylum-granting state, particularly when the person seeking asylum is a politically critical person (which would pre-dominantly be the case). In the *Asylum Case*,¹⁶ the ICJ observed:

A decision to grant diplomatic asylum involves derogation from the sovereignty of that State. It withdraws the offender from the jurisdiction of the territorial State and constitutes an intervention in matters which are exclusively within the competence of that State. Such a derogation from territorial sovereignty cannot be recognised unless its legal basis is established in each particular case.¹⁷

Although the Colombian claim failed, the ICJ in a subsequent case between the same parties held that Colombia was under no obligation to surrender Mr. Haya de la Torre to Peruvian authorities and he was eventually allowed to leave Peru. The state practice bolstered by the Vienna Convention on Diplomatic Relations is that when a person has been granted asylum and taken refuge in a diplomatic mission, the host state's law enforcing agencies would not dishonour the inviolability of the mission to arrest the person who has taken refuge therein.¹⁸

Article 14 of the *Universal Declaration of Human Rights* provides that:

(1) Everyone has the right to seek and to enjoy in other countries asylum from persecution.

(2) This right may not be invoked in the case of prosecutions genuinely arising from non-political crimes or from acts contrary to the purposes and principles of the United Nations.

¹⁶ *Colombian-Peruvian Asylum Case (Colombia / Peru)* ICJ Reports (1950) 266.

¹⁷ *Ibid*, at 274-275.

¹⁸ Sir Ivor Roberts (ed), *Satow's Diplomatic Practice* (Oxford University Press, 6th ed, 2009), at 110.

However, curiously, the right is missing in the International Covenant on Civil and Political Rights, 1966. This issue of right of territorial asylum is now mainly governed by international humanitarian law regime and of course, domestic laws of states where refugees are sought. Some scholars argue that that asylum must be limited to persecuted people and granting asylum to those fleeing private violence that a state has attempted to prevent in good faith, or to those simply fleeing poverty, however abject it may be, etc. would dilute the concept of asylum.¹⁹

Questions: What does history tell us about the movement of Europeans to the rest of the world and many forced movements of people to the rest of the world in the nineteenth and twentieth century? May asylum granting states also benefit from the asylum seekers?

Further Readings:

Abdal v The State, ILDC 3062 (BD 2000) (refereed)
<<https://opil.ouplaw.com/view/10.1093/law-ildc/3062bd00.case.1/law-ildc-3062bd00?rskey=gEY7iU&result=3&prd=OPIL>>

Dilder v Bangladesh and others, ILDC 3061 (BD 1998) (refereed)
<<https://opil.ouplaw.com/view/10.1093/law-ildc/3061bd98.case.1/law-ildc-3061bd98?rskey=gEY7iU&result=6&prd=OPIL>>

Islam, Md. Rizwanul ‘The Humane yet Ambivalent Attitude Towards Persecuted People: A Potential Threat to Stability?’ in Ayyoob Sharifi, Dahlia Simangan, and Shinji Kaneko (eds) *Integrated Approaches to Peace and Sustainability* (Springer Nature Singapore, 2023) 103-113

Refugee and Migratory Movements Research Unit (RMMRU) v Government of Bangladesh and Ors (2017) 202019 ALR 17, LEX/BDHC/0306/2017

¹⁹ Matthew E. Price, ‘Persecution Complex: Justifying Asylum Law’s Preference for Persecuted People’ (2006) 47 *Harvard International Law Journal* 413-466.

Introduction to International Law and a Brief Overview of Its Historical Development

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What is International Law?

Up until the early twentieth century, one could safely define international law as a body of laws for dealing with the relation between and among states. However, such a definition would be obsolete in the context of the world in which we live today. The ever-expanding breadth and reach of international law and the growing diversity of its subjects make the task of defining it, a very complex, if not an impossible one. The reason is while states are still the pre-dominant actors of international law; they are by no means the sole actors. At the risk of over-simplification (and not to say failing to embrace all aspects of its wide embrace), one may seek to define international law as a body of laws dealing with the relation between and among states, international organisations, and individuals in an orderly manner, on the international plane. In terms of its sources, subject matters, courts, (virtual absence of) executive authority and enforcement mechanism backed up coercive force, and so on; international law is quite strikingly different from national law with which one may be familiar in the national context.

Private International Law: At a basic level, it is important to differentiate public international law (generally known as international law) from private international law or conflict of laws, which is actually a set of laws of a particular state, which are applied to deal with situations where its legal system grapples with the question of application of foreign law or foreign courts. International law can be universal or regional (only applicable to a set of states) in their form and application.

Transnational Law: Transnational law may be defined as a kind of mixed application of domestic and international law dealing in particular with various issues that may arise from the interaction between sovereign states and foreign private parties. According to Philip C. Jessup, transnational law includes ‘all law which regulates actions or events that transcend national frontiers.’¹ He elaborates:

Transnational situations, then, may involve individuals, corporations, states, organizations of states, or other groups. A private American citizen, or a stateless person for that matter, whose passport or other travel document is challenged at a European frontier confronts a transnational situation. So does an American oil company doing business in Venezuela; or the New York lawyer who retains French counsel to advise on the settlement of his client’s estate in France; or the United States Government when

¹ Jessup, Philip C. 2006. Transnational Law (Extracts). in Christian Tietje, Alan Brouder, and Karsten Nowrot, (eds) *Philip C. Jessup’s Transnational Law Revisited—On the Occasion of the 50th Anniversary of its Publication*, (Institute for Economic Law, Transnational Economic Law Research Center, 2006) 45, at 45.

negotiating with the Soviet Union regarding the unification of Germany. So does the United Nations when shipping milk for UNICEF or sending a mediator to Palestine. Equally one could mention the International Chamber of Commerce exercising its privilege of taking part in a conference called by the Economic and Social Council of the United Nations. One is sufficiently aware of the transnational activities of individuals, corporations, and states. When one considers that there are also in existence more than 140 intergovernmental organizations and over 1,100 nongovernmental organizations commonly described as international, one realizes the almost infinite variety of the transnational situation which may arise.²

Some other writers argue that transnational law as conceptually distinct from national and international law because its primary sources and those actors who are governed by it are neither nation-state agencies nor international institutions based on various treaties or conventions, but are private (individual, corporate, or collective) actors involved in transnational relations.

Is International Law Really Law?

Since international law does not fit with the Austinian theory of a set of positive laws backed up by the coercive force of the sovereign, some tend to argue that it can at best be labelled as 'morality' and not as law. The scepticism about international law may be attributable to the fact that because of familiarity with and predisposition towards national law, anything disparate from national legal order does not seem like law to many of us.³ Although coercive force may be an abiding factor for application of laws, and international law in some cases have its fair dosage of bite (though quite rarely applied); to reduce the force and validity of laws to simply being contingent on the backing up by coercive force ignores the fact that coercive force is only one of many factors which prompt us to obey laws in our daily life.⁴ Even in the absence of any coercion, there may be other cogent reasons (such as a belief that the laws are just or serve our interests) for us to obey laws.

An important force for the existence and validity of international law follows from the fact that even states which arguably flout provisions of international law do not deny the existence or validity of international law, rather they typically seek to argue that their actions are indeed in compliance with international law, however implausible the claim may be.⁵ In other words, while there may be considerable degree of disagreement between and among states as to a particular set of international law principles, they all typically tend to agree that international law is or should be the basis for settlement of their disputes.⁶ While there are many widely known instances of egregious violations of international law principles by those actors who can afford to commit them with impunity, more often than not states would follow the principles of international law simply

² Ibid, at 46.

³ Antonio Cassese, *International Law* (Oxford University Press, 2nd ed, 2005) 3 [Cassese].

⁴ Md. Rizwanul Islam, 'Is the Doomsday of International Law Looming around in the Twenty First Century?: A Response to the Sceptics of Efficacy of International Law' (2009) 78 *Nordic Journal of International Law* 293, at 302-303 [Rizwanul Islam].

⁵ Ibid, at 306-307.

⁶ Ibid.

because it is in their mutual interest to follow them. In fact, rather surprisingly, the mere assertion that international law is flouted is surely an admission or recognition of its existence and some form of re-enforcement of its value.⁷

It can be safely said that propelled by technological advancement particularly in communication technologies, the ubiquitous use of international law is well known. Even in high profile areas such as in the realm of the laws on use of force, violations of international legal norms are not as common as are often claimed by realists.⁸ It would be rather simplistic to claim that such a tendency of adherence to international law is only because of deference to legal norms, but to dismiss any link between law and the forbearance of powerful actors would also be simplistic.⁹ Similarly, it would be wrong to say that in some cases, states, considering their perennial self-interests, would not proceed to violate the norms of international law and thus, would not effectively relegate the considerations of international law to the fringe.¹⁰ And often what in popular commentary may be branded as a failure of international law could fairly be branded as the failure of international politics. While a powerful state or a group of states may at times ignore a judgment of an international court, the judgment still retains its moral weight and does not become a mere political statement. And arguably, even within domestic legal systems, brute power may at times blunt the application of laws.

Question: You are likely to have come across at least some incidents of arguable breach of principles of international law reported in popular media reports. What do they tell you about the frequency of violations of international legal provisions?

The Nature of International Law and Legal System

International law and legal system are based on the premise of sovereign equality of states. In other words, in essence, at a doctrinal level, international community is essentially horizontal.¹¹ At one level, international law can arguably be taken to be more democratic than national law because in international legal system, states, the predominant subjects of international law, are also its predominant (if not sole) legislators. That theoretical statement, of course, does not mean that in the sphere of international law making, all states, in practice, enjoy equal voice.¹² This feature of international law also means that in essence, the international legal norms are reflections of consent by or consensus among states and while states may seek to denounce particular norms of

⁷ M. Rafiqul Islam, *International Law: Current Concepts and Future Directions* (LexisNexis, 2013), at 20 [Islam].

⁸ James Crawford, *Chance, Order, Change: The Course of International Law* (Hague Academy of International Law, 2014) 44-47; Malcolm N. Shaw, *International Law* (Cambridge University Press, 6th ed, 2008) at 6 [Shaw]; Rizwanul Islam, above note 4, at 302.

⁹ Ibid, Crawford.

¹⁰ Shaw, above note 8, at 8-9.

¹¹ Cassese, above note 3, at 5.

¹² Take for example, the veto power of permanent members of the United Nations Security Council or the weighted voting power in International Monetary Fund regime.

international law; it is unprecedented for modern day states to denounce the regime as a whole.¹³ In this connection, it is also important to remember that the development of new set of customary international law is not contingent on any particular state's expressing their consent.

International law can at times suffer from the lack of specificity. After all, apart from some agreements on some broad issues (for example, the unacceptability of killing human beings), the opinion of human beings as well as the states representing them may strongly differ, which may consequently mean that the agreed version of international treaty law is the expression of a compromise, suffering from the lack of specificity. It is important to recall that while thanks to technological advancement, international community is much more inter-connected than it was before; international law and legal system are not necessarily able to address the myriad of challenges posed by globalisation.¹⁴ However, the same observation may perhaps be somewhat applicable to many national legal systems across the world too. Also, it should not be forgotten that violation of international legal norms would typically have some sort of reputational hazard which would not only be limited to some form of stigma but, may, in certain cases, have more direct and tangible consequences. There is also some persuasive value of the global public opinion (however elusive and fluid such opinion may be), which may impinge on the choices made by actors who weigh up their options before deciding to take a course of action in derogation of international law.

One should remember that in some areas (such as international criminal law) international law may be fairly described at a nascent stage or laws in some other areas (such as international regime on many aspects of world wide web) may be non-existent or at best at an embryonic stage. That being said, a marked feature of international law today is the abundance of treaties and customs, growing use of international judicial mechanism for resolution of disputes, and active presence of a very wide array of international organisations. And these international legal provisions, international institutions, and judicial bodies are impacting our lives in one form or another; to what extent, we directly feel that nexus between international law and our lives is a different matter. And often what in popular commentary may be branded as a failure of international law could fairly be branded actually as the failure of international politics.

The Historical Development of International Law

Legal scholars mostly agree that the international law as we know it today began its journey with the two Peace Treaties of Westphalia of 1648 (Westphalia is a place in Germany) which ended the Thirty Years War, ignited initially by the hostilities between Catholic and Protestant states, and eventually transformed into a more complex war for military and political power.¹⁵

¹³ Shaw, above note 8, at 11.

¹⁴ Cassese, above note 3, at 5.

¹⁵ Cassese, above note 3, at 24.

These treaties of 1648 were important for European political history, but from the viewpoint of international law, their importance lie in the emergence of a legal regime, with independent states, lacking any supremacy over each other. Of course, some semblance of existence of international legal norms (such as in the realm of protection of representatives of a foreign state, peace treaties, treaties governing alliance etc.) can be traced to the period much earlier than this,¹⁶ but it may be a little too far-fetched to label those norms as reflections of international law because those practices existed between and among states, who were hardly akin to states, as we recognise them today.¹⁷ However, the claim that Hugo Grotius as the father of modern international law is questioned by some. For instance, some argue that Muhammad Al-Shaybānī of Iraq's (749/50-805) *Al-Siyar* significantly contributed to the development of modern international law and it is not improbable that his works may have influenced the works of Grotius.¹⁸

Some however, argue that another marked limiting feature of those early civilisations' approach towards international law was that they were, in essence, limited geographically and culturally and fell short of a vision for universal application towards a community of states.¹⁹ Another important impact of the treaties of Westphalia is that it marked a shift from natural law theory of international law towards some sort of positive law enacted by states.²⁰

This may explain why international law still today is considered (sometimes criticised) by some scholars as too heavily Euro-centric.²¹ It may not be out of place to mention that during the continuance of the Thirty Years War, a famous treatise called *De Jure Belli Ac Pacis* (The Law of War and Peace) was written by a Dutch Jurist, Hugo Grotius which quite influentially articulated the idea of an international community of states which had a lasting impact on the beginning of the journey of international law as we know it and for this he is widely credited, albeit perhaps somewhat simplistically, as the father of international law.²²

While the classical scholars have used the term 'Law of Nations', international law for a considerable period following the Peace Treaties of Westphalia, was in reality nothing more than 'Public Law of Europe', exclusively applied in the context of their inter-state relations.²³ In other words, international law during this period was mainly a set of rules for governing the relation between and among the 'civilised states' and the civilised states were free to deal with the uncivilised states on their own terms – beyond the bounds of international law. In fact, until the

¹⁶ Indeed, as early as in 3,100 BC two Mesopotamian States executed a treaty for delineation of territory; see Islam, above note 7, at 45; see also Shaw, above note 8, at 14-15.

¹⁷ Cassese, above note 3, at 22-23.

¹⁸ Mashood A Badrein, 'Shaybānī' in Bardo Fassbender and Anne Peters (eds), *The Oxford Handbook of the History of International Law* (Oxford University Press, 2012) 1081, at 1083 GC Weeramantry, *Islamic Jurisprudence: An International Perspective* (Palgrave MacMillan, 1998) 132.

¹⁹ Shaw, above note 8, at 15-16.

²⁰ Islam, above note 7, at 57.

²¹ See generally for instance, Ibid.

²² Shaw, above note 8, at 23.

²³ David Harris, and Sandesh Sivakumaran, *Cases and Materials on International Law* (Sweet and Maxwell, 8th ed, 2015) at 10.

beginning of the nineteenth century, independent states in North and South America were only non-European subjects of International law.²⁴ It was Turkey who was the first non-Christian state to be recognised as a subject of international law in the mid-nineteenth century and then progressively some Asian states such as Persia (present day Iran), China, and Japan etc. were recognised as subjects of international law.²⁵ An important event from the late nineteenth century is the setting up of the Permanent Court of Arbitration (PCA) in 1899 for peaceful resolution of international disputes.

The end of the First World War saw the setting up of the League of Nations in 1920, and Permanent Court of International Justice (PCIJ) as its judicial wing. By opening the membership to all states, the *Covenant of League of Nations* extended international law to the world beyond Europe, its peripheries, and a selected few from the rest of the world. The absence of the USA, and for most part, the former USSR, did not help the cause of the League of Nations. In particular, the invasion of China by Japan in 1931, the invasion of Abyssinia (present day Ethiopia) by Italy in 1935, Germany's annexation of Rhineland, Austria, and Poland in 1930s, and the invasion of Finland by the USSR in 1939 further weakened the League of Nations.

After the end of the Second World War, the United Nations (UN) took the role of the League of Nations and International Court of Justice replaced the PCIJ. Due to the wave of decolonisation, one easily discernible feature of the UN regime, at least in its plenary body, the UN General Assembly, is that the economically backward states had numerical supremacy. However, since the end of the Second World War, states have increasingly recognised that unfettered scope of domestic jurisdiction of states, can destabilise international peace and security, and this is recognised in the growing body of jurisprudence on international human rights law. This has made a truly sea change in international law in the sense that states and international organisations with international legal personality are no longer the only actors in international law. Another important feature is the growing presence of juristic persons or corporate actors influencing the development of international law as we recognise it today.

Further Readings:

- Islam, Md. Rizwanul, 'The Crime of Aggression, Selectivity, and the Legal Academy' *Georgetown Journal of International Law Blog*, 22 November 2022
- Islam, Md. Rizwanul, 'Is the Doomsday of International Law Looming around in the Twenty First Century?: A Response to the Sceptics of Efficacy of International Law' (2009) 78(3) *Nordic Journal of International Law* 293-308

²⁴ Ibid.

²⁵ Ibid.

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Class Notes

Subjects of International Law

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In national law, there are varied subjects such as citizens, foreigners residing within the territories of a state, companies, and state institutions and it is difficult to single out one of them as primary subjects of the law. On the other hand, in international legal sphere, the primary (though not exclusive) subjects are only the states. There are other subjects of international law such as international organisations, regional organisations, component units of federal states (in exceptional cases), and individuals etc. but none of these subjects occupies the place that states do in international law. However, it would be useful to remember that not all actors operating on the international plane are endowed with international legal personality.

States

Despite the emergence of a number of actors as subjects of international law, states continue to be the predominant actors in international law. It is one thing to say that states are subjects of international law and it is another to decide precisely when a new state may become the subject matter of international law. According to Article 1 of the *Monte Video Convention on Rights and Duties of States*, 1933, for a state to be capable of being a subject of international law, it ought to possess ‘(a) permanent population; (b) a defined territory; (c) government; and (d) capacity to enter into relations with other states.’

There is, of course, no minimum or maximum number of population required for attaining statehood. In a similar fashion, while there may be disputes about the borders of a state, so long as it holds effective control over a defined part of its territory, the border dispute in itself would not stand as a bar to its attainment of statehood. Perhaps even a casual observer of geo-politics would know that whether or not a particular state has attained statehood as a subject of international law, can be a fiercely contested issue and a state may be accepted as a state by a group of states, while another group of states may deny that status. The status of Palestine and Taiwan would bear testimony to this fact.

Independence

While a state may, in practice, be economically or politically dependent on another state, in legal terms, all states are independent of each other. Thus, as subjects of international law, all states do enjoy freedom of action, unless such freedom is curtailed by a specific rule of international law. This aspect of the international legal system is expounded by the following observation of the International Court of Justice (ICJ) in the *Legality of the Threat of Use of Nuclear Weapons* that ‘State practice shows that the illegality of the use of certain

weapons as such does not result from an absence of authorization but, on the contrary, is formulated in terms of prohibition.’¹

Equality

You would recall that irrespective of their clouts, states under international law are considered to be equal. It must be mentioned that the theoretical primacy of states as a subject of international law masks the unequal clout of different states and in reality, economically and politically more powerful states or even non-state actors do enjoy much greater say in making of the international legal norms than economically and politically less powerful states.²

Peaceful Co-existence

States are expected to operate on the international plane on the basis of a policy of peaceful co-existence between and among them. This peaceful co-existence entails respect for sovereignty and territorial integrity of other states, a condemnation of subversive activities carried out from the territories of one state targeting another. It also entails ideals such as non-aggression and the performance of international legal obligations in good faith.

Component Units of a Federal State

Subject to the national constitutional arrangement, units of a federal state may be given the right to conduct their foreign affairs on their own and may, thus, attain international legal personality. For instance, Byelorussia (now known as Belarus) and the Ukraine, though were part of the former United Soviet Socialist Republic (USSR), to a limited extent they were conducting (as per the constitutional scheme of the USSR) foreign relations on their own and were among the 51 founding members of the UN. Thus, these type of units though clearly not states, were, nonetheless subjects of international law.

International Institutions

In September 1948, Count Bernadotte, a Swedish citizen, who was acting as the Chief UN Truce Negotiator in Jerusalem was allegedly killed by a gang of terrorists. In the course of deciding upon what course of action may be taken with regard to his killing, the UN General Assembly sought opinion of the ICJ.³ In its advisory opinion, the ICJ observed:

The subjects of law in any legal system are not necessarily identical in their nature or in the extent of their rights, and their nature depends upon the needs of the community. ...

¹ (Advisory Opinion) ICJ Reports (1996) 226, at 247.

² M. Rafiqul Islam, *International Law: Current Concepts and Future Directions* (LexisNexis, 2013), at 128-130.

³ *Reparation for Injuries Suffered in the Service of the United Nations* (Advisory Opinion), ICJ Reports (1949), 174.

[T]he organisation was intended to exercise and enjoy and, is in fact exercising and enjoying, functions and rights which can only be explained on the basis of the possession of a large measure of international personality and the capacity to operate upon an international plane. It is at present the supreme type of international organization, and it could not carry out the intentions of its founders if it was devoid of international personality. It must be acknowledged that its Members, by entrusting certain functions to it, with the attendant duties and responsibilities, have clothed it with the competence required to enable those functions to be effectively discharged.

Accordingly, the Court has come to the conclusion that the Organization is an international person. That is not the same thing as saying that it is a State, which it certainly is not, or that its legal personality and rights and duties are the same as those of a State. Still less is it the same thing as saying that it is 'a super-State', whatever that expression may mean. It does not even imply that all its rights and duties must be upon the international plane, any more than all the rights and duties of a State must be upon that plane. What it does mean is that it is a subject of international law and *capable of possessing international rights and duties, and that it has capacity to maintain its rights by bringing international claims.*⁴ [Emphasis added]

Upon this opinion by the ICJ, the UN General Assembly authorised the UN Secretary General to seek compensation from Israel for the death and in 1950, Israel paid the requested compensation. Whether or not a particular international organisation is an international legal person would depend on its charter, its actual power, and practice. In other words, the capacity of an international organisation to enter into relations with other international organisations and states, execute treaties, and status under national law would be critical factors in the determination of its status as a subject of international law.

In *Behrami and Behrami v. France*,⁵ the issue before the European Court of Human Rights (ECHR) was whether France had been responsible under the *European Convention on Human Rights*, 1950, for the failure of French troops, who were serving in the Kosovo Force (KFOR), to effectively deal with unexploded bombs which took away lives. ECHR did not find France to be liable as in its opinion, the UN Administration Mission in Kosovo was, in fact, a subsidiary organ of the UN created under Chapter VII of the UN Charter and the KFOR was exercising lawful powers delegated to it by the UN Security Council in pursuance of its powers under Chapter VII. Hence, their actions were attributable to the UN and hence, it was not the state of the KFOR personnel, rather the UN, who should be responsible for the consequence of their actions.

Individuals

While individuals were in the past not treated as subjects of international law, particularly with the expansion of human rights law and also investment, it would be impossible to hold that individuals do not have the right to bring claims directly before international bodies. As early as in 1919, Article 304(b) of the *Treaty of Versailles*, 1919 conferred a right on the citizens of the Allied and Associated Powers to bring claims for

⁴ Ibid, at 178-179.

⁵ Application No. 71412/01 hudoc (2007).

compensation before the Mixed Arbitral Tribunals against Germany.⁶ A number of treaties such as the *European Convention on Human Rights*, 1950; the *Optional Protocol to the International Covenant on Civil and Political Rights*, 1966; the *Inter-American Convention on Human Rights*, 1969, and *Convention on the Settlement of Investment Disputes between States and Nationals of Other State*, 1965 etc. authorises individuals to directly agitate their legal claims before international dispute settlement bodies.

Just as individuals may bring legal claims before international legal bodies, they may also be subjected to claims under international law. For certain crimes under international law (such as piracy, war crimes, and crimes against humanity etc.) individuals may bear legal responsibility. However, despite the progressive role of individuals as subjects of international law, often there are still some limits on their role. One such limitation is that although international law may vest rights in individuals, sometimes the rights of individuals may only be sought to be enforced by states. For instance, *Vienna Convention on Consular Relations*, 1963 grants individuals the rights to seek consular assistance, but ultimately the rights themselves are enforceable by states only.

The question of nationality can be a critical issue before international courts and tribunals. This is because nationality may determine the right to invoke protection of a treaty, seek diplomatic protection, and being a subject of domestic jurisdiction. Thus, some scholar argues that often individuals may become the object of international law and not necessarily its subject.

Question: Can the question of stripping of nationality of a group of citizens be an issue of international law?

Other Subjects (and Potential Subjects in Future) of International Law

For certain purposes, other non-state actors such as insurgent groups and national liberation movements, may enjoy international legal personality. Such assumption of subjecthood may be based on de facto administration of territory. However, the same is not necessarily true for terrorist organisations, NGOs, and transnational companies. Despite the vibrant presence of these actors, for varying reasons, they are not treated as subjects of international law. Terrorist organisations are not treated as subjects because states are

⁶ Article 304(b) reads as below:

The Mixed Arbitral Tribunals established pursuant to paragraph (a), shall decide all questions within their competence under Sections III, IV, V and VII.

In addition, all questions, whatsoever their nature, relating to contracts concluded before the coming into force of the present Treaty between nationals of the Allied and Associated Powers and German nationals shall be decided by the Mixed Arbitral Tribunal, always excepting questions which, under the laws of the Allied, Associated or Neutral Powers, are within the jurisdiction of the National Courts of those Powers. Such questions shall be decided by the National Courts in question, to the exclusion of the Mixed Arbitral Tribunal. The party who is a national of an Allied or Associated Power may nevertheless bring the case before the Mixed Arbitral Tribunal if this is not prohibited by the laws of his country.

reluctant to vest in them rights and would rather prefer them to be tried under domestic criminal justice system. Transnational companies are treated as creatures of and subject to the law of the state where they are incorporated. NGOs though have consultative status under Article 71 of the UN Charter; they are not formally treated as subjects of international law.

Further readings:

Arato, Julian, *Corporations as Lawmakers*, (2015) 56 *Harvard International Law Journal* 229

Durkee, Melisa J., 'International Lobbying Law', (2018) 127 *Yale Law Journal* 1742

Law 421

Class Notes

An Overview of International Criminal Law

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International criminal law is a rapidly evolving branch of public international law. At the outset, one should be careful to remember that it is distinct from the liability of states for wrongful actions in international law. This feature of international criminal law would perhaps explain why this branch of public international law has mainly progressed after the end of the Second World War.¹ The international criminal law draws on both from the international humanitarian law and human rights as well as from national criminal law.² While it has gained prominence in recent decades, arguably, even before the Nuremberg and Tokyo Trials, they were in existence in some form. Arguably, the drive for the emergence of the laws of war was a confluence of commercial and military operational convenience (i.e. to ensure that soldiers do not become unruly mercenaries) coupled with humanitarianism, i.e. that civilian non-combatants are not unduly harmed. Reflection of this could be traced in the *Lieber Code*, 1863 adopted by the USA as a domestic law - an official army pronouncement on the laws of war that was built on the international practice. *Hague Convention with Respect to the Laws and Customs of War on Land*, 1899 and *2nd Hague Convention on the Laws of Land Warfare*, 1907 were adopted, but they stipulated no means of enforcement & no prescribed penalties.

Question: Can you appreciate how international criminal law is distinct from the liability of states for internationally wrongful actions?

The *Charter annexed to the Agreement for the Prosecution and Punishment of the Major War Criminals*, 1945 had stated that individuals would bear responsibility for the commission of crimes against peace, war crimes, and crimes against humanity. The Nuremberg International Military Tribunal consisting of Judges from the UK, the USA, the USSR, and France commenced trial of a selected few Nazi diplomatic, economic, political, and military leaders in November 1945 and concluded the trial in October 1946. This Tribunal in its judgment very eloquently explained the basis of criminal responsibility of individuals for commission of crimes in the following words:

It was submitted that international law is concerned with the actions of sovereign States, and provides no punishment for individuals; and further, that where the act in question is an act of State, those who carry it out are not personally responsible, but are protected by the doctrine of the sovereignty of the State. In the opinion of the Tribunal, both these submissions must be rejected. That international law imposes duties and liabilities upon individuals as well as upon States has long been recognized...Crimes against international law are committed by men, not by abstract entities, and only by punishing individuals who commit such crimes can the provisions of international law be enforced... The principle of international law, which under certain

¹ However, for a few centuries, piracy in high seas and the slave trade was considered and of course, is still considered as the subject of universal jurisdiction.

² Antonio Cassese, *Cassese's International Criminal Law* (Oxford University Press, 3rd ed, 2013) at 5.

circumstances, protects the representatives of a state, cannot be applied to acts which are condemned as criminal by international law. The authors of these acts cannot shelter themselves behind their official position in order to be freed from punishment in appropriate proceedings.³

In 1946, the Tokyo International Military Tribunal/ International Military Tribunal for the Far East commenced the trial process and ended the trial in 1948. The other major international criminal tribunals would include the International Criminal Tribunal for the Former Yugoslavia (ICTY) and the International Criminal Tribunal for Rwanda (ICTR) both of which were set up by the UN Security Council under Chapter VII. There have also been several hybrids or internationalised tribunals such as the Special Court for Sierra Leone, the Extraordinary Chambers in the Courts of Cambodia, the Special Tribunal for Lebanon etc.; and purely national tribunals such as Red Terror Trials in Ethiopia or International Crimes Tribunal in Bangladesh. Thus, international criminal courts and tribunals may fall into three different categories: international criminal court/tribunals, hybrid court/tribunals, and purely national courts/tribunals.

Question: What was argument of the Netherland's refusal to hand over the Kaiser? Why were the USA and UK disinterested in the trial of the Emperor Hirohito? Professor Gary Bass emphasises the importance of decisive military victory in ensuring trial of war crimes. Why?

International Criminal Court (ICC)

ICC is the first permanent, treaty-based international criminal court which has come into existence for punishing the perpetrators of serious crimes of concern to the international community. The court is physically based at The Hague, in the Netherlands. The *Rome Statute* or the *Statute of the ICC (Rome Statute)* was signed in July 1998 and came into force on 1 July 2002 after being ratified by the requisite number of states. The *Statute of ICC* is much more detailed than that of the Statute of the ICTY or ICTR. It may be mentioned that Bangladesh is a signatory of the ICC statute and on 23 March 2010, it deposited its instrument of ratification of the *Rome Statute*.⁴ The ICC consists Presidency (President and two Vice-Presidents), the Appeals Division, the Trial Division, and a Pre-Trial Division; the Office of the Prosecutor, and the Registry. Except for the first two, the rest are independent of each other.

Subject Matter Jurisdiction (*Ratione Materiae*):

Under Article 5 of the ICC Statute, the ICC has jurisdiction to try the following offences:

- (a) The crime of genocide;

³ *International Military Tribunal (Nuremberg)*, Judgment and Sentences, October 1, 1946 as reported in 41 *American Journal of International Law* (1947) 172, 220-221.

⁴ International Criminal Court, *Bangladesh* <https://asp.icc-cpi.int/en_menus/asp/states%20parties/asian%20states/Pages/bangladesh.aspx> accessed 3 August 2020.

- (b) Crimes against humanity;
- (c) War crimes;
- (d) The crime of aggression.⁵

Temporal Jurisdiction (*Ratione Temporis*)

Article 11(1) of the Statute of ICC states that ‘The Court has jurisdiction only with respect to crimes committed after the entry into force of this Statute.’

Other Provisions on the Exercise of Jurisdiction

Article 12 states that:

1. A State which becomes a Party to this Statute thereby accepts the jurisdiction of the Court with respect to the crimes referred to in article 5.
2. In the case of article 13, paragraph (a) or (c), the Court may exercise its jurisdiction if one or more of the following States are Parties to this Statute or have accepted the jurisdiction of the Court in accordance with paragraph 3:
 - (a) The State on the territory of which the conduct in question occurred or, if the crime was committed on board a vessel or aircraft, the State of registration of that vessel or aircraft;
 - (b) The State of which the person accused of the crime is a national.
3. If the acceptance of a State which is not a Party to this Statute is required under paragraph 2, that State may, by declaration lodged with the Registrar, accept the exercise of jurisdiction by the Court with respect to the crime in question. The accepting State shall cooperate with the Court without any delay or exception in accordance with Part 9.

Article 13 states that:

The Court may exercise its jurisdiction with respect to a crime referred to in article 5 in accordance with the provisions of this Statute if:

- (a) A situation in which one or more of such crimes appears to have been committed is referred to the Prosecutor by a State Party in accordance with article 14;

⁵ However, as a political compromise state parties had decided that the ICC would not be able to exercise its jurisdiction over aggression until after 1 January 2017 when a decision was supposed to be made by them. The assembly of states party to the Rome Statute (who generally meet at least annually either at the Court’s seat in The Hague or the UN Headquarters in New York) voted in December 2017 to activate the jurisdiction on aggression to be effective from 17 July 2018.

(b) A situation in which one or more of such crimes appears to have been committed is referred to the Prosecutor by the Security Council acting under Chapter VII of the Charter of the United Nations; or

(c) The Prosecutor has initiated an investigation in respect of such a crime in accordance with article 15.

Article 14 dealing with the issue of referral of a situation by a State Party states that:

1. A State Party may refer to the Prosecutor a situation in which one or more crimes within the jurisdiction of the Court appear to have been committed requesting the Prosecutor to investigate the situation for the purpose of determining whether one or more specific persons should be charged with the commission of such crimes.

2. As far as possible, a referral shall specify the relevant circumstances and be accompanied by such supporting documentation as is available to the State referring the situation.

Under Article 15, the prosecutor has the following powers:

1. The Prosecutor may initiate investigations *proprio motu*⁶ on the basis of information on crimes within the jurisdiction of the Court.

2. The Prosecutor shall analyse the seriousness of the information received. For this purpose, he or she may seek additional information from States, organs of the United Nations, intergovernmental or non-governmental organizations, or other reliable sources that he or she deems appropriate, and may receive written or oral testimony at the seat of the Court

3. If the Prosecutor concludes that there is a reasonable basis to proceed with an investigation, he or she shall submit to the Pre-Trial Chamber a request for authorization of an investigation, together with any supporting material collected. Victims may make representations to the Pre-Trial Chamber, in accordance with the Rules of Procedure and Evidence.

4. If the Pre-Trial Chamber, upon examination of the request and the supporting material, considers that there is a reasonable basis to proceed with an investigation, and that the case appears to fall within the jurisdiction of the Court, it shall authorize the commencement of the investigation, without prejudice to subsequent determinations by the Court with regard to the jurisdiction and admissibility of a case.

5. The refusal of the Pre-Trial Chamber to authorize the investigation shall not preclude the presentation of a subsequent request by the Prosecutor based on new facts or evidence regarding the same situation.

6. If, after the preliminary examination referred to in paragraphs 1 and 2, the Prosecutor concludes that the information provided does not constitute a reasonable basis for an investigation, he or she shall inform those who provided the information. This shall not preclude the Prosecutor

⁶ On own motion.

from considering further information submitted to him or her regarding the same situation in the light of new facts or evidence.

Article 24 enshrines the principle of non-retroactivity *ratione personae* in the following words:

1. No person shall be criminally responsible under this Statute for conduct prior to the entry into force of the Statute.
2. In the event of a change in the law applicable to a given case prior to a final judgement, the law more favourable to the person being investigated, prosecuted or convicted shall apply.

Questions: Can you mention the notable omission/s from the list of states who are parties to the ICC? Are you aware of the oft-quoted ‘African problem’ of the ICC?

International Crimes

Genocide

Genocide as a term has been coined by Raphael Lemkin, a Polish scholar, in a book titled *Axis Rule in Occupied Europe* published during the Second World War. The Genocide Convention happens to be the first human rights treaty adopted within the UN Regime. Genocide is often referred to as the ‘crime of crimes’.

Article 6 of the *Rome Statute* reads as below:

For the purpose of this Statute, "genocide" means any of the following acts committed with intent to destroy, in whole or in part, a national, ethnical, racial or religious group, as such:

- (a) Killing members of the group;
- (b) Causing serious bodily or mental harm to members of the group;
- (c) Deliberately inflicting on the group conditions of life calculated to bring about its physical destruction in whole or in part;
- (d) Imposing measures intended to prevent births within the group;
- (e) Forcibly transferring children of the group to another group.

Question: What is the meaning of ‘ethnic cleansing’?

Crimes against Humanity

Article 7 of the *Rome Statute* reads as below:

1. For the purpose of this Statute, "crime against humanity" means any of the following acts when committed as part of a widespread or systematic attack directed against any civilian population, with knowledge of the attack:

- (a) Murder;

- (b) Extermination;
- (c) Enslavement;
- (d) Deportation or forcible transfer of population;
- (e) Imprisonment or other severe deprivation of physical liberty in violation of fundamental rules of international law;
- (f) Torture;
- (g) Rape, sexual slavery, enforced prostitution, forced pregnancy, enforced sterilization, or any other form of sexual violence of comparable gravity;
- (h) Persecution against any identifiable group or collectivity on political, racial, national, ethnic, cultural, religious, gender as defined in paragraph 3, or other grounds that are universally recognized as impermissible under international law, in connection with any act referred to in this paragraph or any crime within the jurisdiction of the Court;
- (i) Enforced disappearance of persons;
- (j) The crime of apartheid;
- (k) Other inhumane acts of a similar character intentionally causing great suffering, or serious injury to body or to mental or physical health.

Question: Why states may want to avoid the charge of genocide and may concede that at best crimes against humanity or war crimes may have been committed? What is the most fundamental distinction between crime against humanity and genocide?

War Crimes

Article 8 of the Rome Statute reads as below:

1. The Court shall have jurisdiction in respect of war crimes in particular when committed as part of a plan or policy or as part of a large-scale commission of such crimes.
2. For the purpose of this Statute, "war crimes" means:
 - (a) Grave breaches of the Geneva Conventions of 12 August 1949, namely, any of the following acts against persons or property protected under the provisions of the relevant Geneva Convention:
 - (i) Wilful killing;
 - (ii) Torture or inhuman treatment, including biological experiments;
 - (iii) Wilfully causing great suffering, or serious injury to body or health;
 - (iv) Extensive destruction and appropriation of property, not justified by military necessity and carried out unlawfully and wantonly;
 - (v) Compelling a prisoner of war or other protected person to serve in the forces of a hostile Power;

- (vi) Wilfully depriving a prisoner of war or other protected person of the rights of fair and regular trial;
- (vii) Unlawful deportation or transfer or unlawful confinement;
- (viii) Taking of hostages...

In essence, war crimes are egregious disregards to the rules of international humanitarian law or laws governing armed conflict. It is important to note that while some acts may amount to both war crimes as well as crimes against humanity, the latter need not necessarily take place during an armed conflict, as long as acts at issue take place as a part of a systemic or widespread activity.

Aggression

Article 8 bis of the *Rome Statute* reads as below

1. For the purpose of this Statute, “crime of aggression” means the planning, preparation, initiation or execution, by a person in a position effectively to exercise control over or to direct the political or military action of a State, of an act of aggression which, by its character, gravity and scale, constitutes a manifest violation of the Charter of the United Nations.
2. For the purpose of paragraph 1, “act of aggression” means the use of armed force by a State against the sovereignty, territorial integrity or political independence of another State, or in any other manner inconsistent with the Charter of the United Nations. Any of the following acts, regardless of a declaration of war, shall, in accordance with United Nations General Assembly resolution 3314 (XXIX) of 14 December 1974, qualify as an act of aggression:
 - (a) The invasion or attack by the armed forces of a State of the territory of another State, or any military occupation, however temporary, resulting from such invasion or attack, or any annexation by the use of force of the territory of another State or part thereof;
 - (b) Bombardment by the armed forces of a State against the territory of another State or the use of any weapons by a State against the territory of another State;
 - (c) The blockade of the ports or coasts of a State by the armed forces of another State;
 - (d) An attack by the armed forces of a State on the land, sea or air forces, or marine and air fleets of another State;
 - (e) The use of armed forces of one State which are within the territory of another State with the agreement of the receiving State, in contravention of the conditions provided for in the agreement or any extension of their presence in such territory beyond the termination of the agreement;
 - (f) The action of a State in allowing its territory, which it has placed at the disposal of another State, to be used by that other State for perpetrating an act of aggression against a third State;
 - (g) The sending by or on behalf of a State of armed bands, groups, irregulars or mercenaries, which carry out acts of armed force against another State of such gravity as to amount to the acts listed above, or its substantial involvement therein.

Question: Can you appreciate the challenges of the ICC to exercise jurisdiction regarding aggression?

Succumbing to Pressure/ Pragmatism?

Some academic commentators critique the ICC for succumbing to the pressure. They, for instance, point that the Pre-Trial Chamber II decided not to authorise the opening of the investigations because, ‘the current circumstances of the situation in Afghanistan are such as to make the prospects for a successful investigation and prosecution extremely limited.’⁷

Non-immunity for Heads of State etc.

Article 26 of the *Rome Statute* provides that:

1. This Statute shall apply equally to all persons without any distinction based on official capacity. In particular, official capacity as a Head of State or Government, a member of a Government or parliament, an elected representative or a government official shall in no case exempt a person from criminal responsibility under this Statute, nor shall it, in and of itself, constitute a ground for reduction of sentence.
2. Immunities or special procedural rules which may attach to the official capacity of a person, whether under national or international law, shall not bar the Court from exercising its jurisdiction over such a person.

Question: What is the philosophical basis for not granting any immunity to heads of states and others for the commission of crimes punishable under international criminal law?

Complementary Role:

It is important to note that the ICC statute does not envisage the ICC’s role as the primary or only forum rather as a complementary forum. The ICC has no primacy whatsoever national legal fora. Rather, it is the national courts that possess the first responsibility to prosecute the relevant offences. Under Article 17 of the Statute of the ICC, the Court is only supposed to exercise its jurisdiction when the national legal system ‘is unwilling or unable genuinely to carry out the investigation or prosecution’.

Request to Surrender:

Article 98 of the *Rome Statute* states that:

1. The Court may not proceed with a request for surrender or assistance which would require the requested State to act inconsistently with its obligations under international law with respect to the State or diplomatic immunity of a person or property of a third State, unless the Court can first obtain the cooperation of that third State for the waiver of the immunity.

⁷ Decision Pursuant to Article 15 of the Rome Statute on the Authorisation of an Investigation into the Situation in the Islamic Republic of Afghanistan ICC-02/17-33.

2. The Court may not proceed with a request for surrender which would require the requested State to act inconsistently with its obligations under international agreements pursuant to which the consent of a sending State is required to surrender a person of that State to the Court, unless the Court can first obtain the cooperation of the sending State for the giving of consent for the surrender.

Further Readings:

Benzing, Markus, 'U.S. Bilateral Non-Surrender Agreements and Article 98 of the Statute of the International Criminal Court: An Exercise in the Law of Treaties' (2004) 8 *Max Planck Yearbook of United Nations Law* 181

Islam, Md. Rizwanul, 'The Legal Significance of the US Recognition of the Atrocities on the Rohingya as Genocide' 55 *Cornell Journal of International Law Forum* <<https://cornellilj.org/2023/01/17/the-legal-significance-of-the-us-recognition-of-the-atrocities-on-the-rohingya-as-genocide/>> accessed 17 January 2023

Islam, Md. Rizwanul, 'The Crime of Aggression, Selectivity, and the Legal Academy' *Georgetown Journal of International Law Blog*, 22 November 2022, <<https://www.law.georgetown.edu/international-law-journal/blog/the-crime-of-aggression-selectivity-and-the-legal-academy/>> accessed 22 November 2022

Marie Brennan, Anne, 'Prosecuting ISIL before the International Criminal Court: Challenges and Obstacles' *ASIL Insight*, 17 September 2015 <<https://www.asil.org/insights/volume/19/issue/21/prosecuting-isil-international-criminal-court-challenges-and-obstacles>> accessed 30 June 2016

International Law of the Sea

An important rule underlying the law of the sea is that 'the land dominates the sea' i.e. the territorial situation of land would constitute the starting point for the determination of the maritime rights of a coastal state.¹ It is also pertinent to note that economic considerations have been pivotal in shaping the development of the law of the sea. The most important treaty governing the law in this area is the *United Nations Convention on the Law of the Sea*, 1982 (UNCLOS) which came into force in November 1994. However, since some states are yet to ratify this, the four treaties of 1958 (the *Convention on the Territorial Sea and the Contiguous Zone*, 1958; the *Convention on the High Seas*, 1958; the *Convention on Fishing and Conservation of the Living Resources of the High Seas*, 1958; and the *Convention on the Continental Shelf*, 1958) continue to be applicable to them.

Territorial Sea and Internal Water

Article 2 of (UNCLOS) states that:

1. The sovereignty of a coastal State extends, beyond its land territory and internal waters and, in the case of an archipelagic State, its archipelagic waters, to an adjacent belt of sea, described as the territorial sea.
2. This sovereignty extends to the air space over the territorial sea as well as to its bed and subsoil.
3. The sovereignty over the territorial sea is exercised subject to this Convention and to other rules of international law.

Article 3 of the UNCLOS fixes the breadth of the territorial sea in the following words 'Every State has the right to establish the breadth of its territorial sea up to a limit not exceeding 12 nautical miles, measured from baselines'. Thus, the earlier rules such as the 'cannon shot rule' or 3 miles rule no longer apply. The territorial sea has to be distinguished from internal water in that the latter refers to lakes or rivers etc. which can be found on the landward side of the baselines from which the territorial sea and other zones would be measured. The fundamental legal implication is that in internal water, there is no right of innocent passage. In internal water, both the coastal state and the flag state will have jurisdiction. For instance, in *R v Anderson*,² an English Court decided that a US citizen committing manslaughter on a British vessel while it was in French internal water could be tried both by the British and French courts (of course, by the US courts on the basis of the nationality of the accused).

Similarly, the Supreme Court of the USA in *Wildenhus' Case*,³ decided that a Belgian crew member of a Belgian vessel, allegedly killing a Belgian national while it was docked in a US port,

¹ See for example, *Case Concerning Maritime Delimitation and Territorial Questions between Qatar and Bahrain (Qatar v Bahrain)* (2001) ICJ Reports 40, para 185.

² 1 Cox's Criminal Cases 198.

³ (1887) 120 US 1.

could be tried by the US court. However, generally, if the matter is purely internal involving no threat to peace in the coastal state, the common practice is that only flag state would exercise jurisdiction.

Baselines

A baseline is the line from which the seaward limits of a state's territorial sea and other maritime zones would be measured. As a general rule, a baseline would be the low-water line of a coastal state. However, when the coastline of a state is deeply indented, has fringe islands or is quite unstable, using straight baselines may be permissible. For instance, in *Anglo-Norwegian Fisheries*,⁴ the ICJ accepted the use of straight baselines by Norway. It may be important to note that climate change induced sea level rise may in the future cause some significant disputes regarding the fixing of baselines, as some coastal states may argue the case for ambulatory baselines.

Innocent Passage

The fundamental rule of the territorial sea is that it is subject to the sovereignty of the coastal state and vessels of other states (including those of landlocked countries) only have the right to *innocent passage*.⁵ However, Article 18(2) of the UNCLOS requires that:

Passage **shall be continuous and expeditious**. However, passage includes stopping and anchoring, but only in so far as the same are **incidental to ordinary navigation or are rendered necessary by force majeure** or distress or for the purpose of rendering assistance to persons, ships or aircraft in danger or distress. [Emphasis added]

Article 19 clarifies that a passage would remain innocent so long as it is not prejudicial to the peace, good order, or security of the coastal state; for instance, any threat or use of force; practice of weapons; propaganda; breach of customs, immigration, and sanitary rules; wilful and serious pollution; fishing; research or survey; or any other activity not having a direct bearing on the passage etc. would strip the passage of its innocent character. Ships passing through the territorial sea must comply with the rules of navigation of the coastal state as long as they are not incompatible with international law.⁶

Again, coastal states cannot impose any charge for innocent passage except payment for specific services rendered.⁷ Many western states and commentators claim that even warships have the right to innocent passage. However, it must be said that the issue is not explicitly covered in the UNCLOS, and is open to interpretation. The ICJ in *Corfu Channel*⁸ **has recognised the right of warships to navigate through international straits** in the territorial sea, but rights beyond that have not been addressed in that case.

Article 27(1) of the UNCLOS states:

⁴ (*United Kingdom v. Norway*) ICJ Reports (1951) 116, at page 128-129 [*Anglo-Norwegian Fisheries*].

⁵ Article 17 of the UNCLOS.

⁶ Article 21 of the UNCLOS.

⁷ Article 21 of the UNCLOS.

⁸ (1949) ICJ Reports 4.

The criminal jurisdiction of the coastal State should not be exercised on board a foreign ship passing through the territorial sea to arrest any person or to conduct any investigation in connection with any crime committed on board the ship during its passage, save only in the following cases:

- (a) if the consequences of the crime extend to the coastal State;
- (b) if the crime is of a kind to disturb the peace of the country or the good order of the territorial sea;
- (c) if the assistance of the local authorities has been requested by the master of the ship or by a diplomatic agent or consular officer of the flag State; or
- (d) if such measures are necessary for the suppression of illicit traffic in narcotic drugs or psychotropic substances.

However, when a foreign ship passes through the territorial sea after leaving internal waters, the right of the coastal state to take any steps authorised by national law would remain unaffected.⁹ Warships and governmental ships not engaged in commercial activities are immune from the jurisdiction of the coastal state, but of course, they are not immune from international responsibility for wrongful acts.¹⁰

Contiguous Zone

The contiguous zone is an area of the sea where the coastal state may exercise the powers necessary to prevent or punish infringement of or its customs, fiscal, immigration or sanitary laws, and regulations within its territory or territorial sea and such contiguous zone may not extend beyond 24 nautical miles from the baselines from which the breadth of the territorial sea is measured.¹¹ Compared to internal water or territorial water, states enjoy less control over the contiguous zone.¹²

Exclusive Economic Zone

Article 57 of the UNCLOS states that 'exclusive economic zone shall not extend beyond 200 nautical miles from the baselines from which the breadth of the territorial sea is measured.' It is essentially a middle ground between exclusive claims of jurisdiction of coastal states of up to 200 nautical miles and those opposing it. Article 56 of the UNCLOS deals with the rights relating to exclusive economic zones in the following terms:

In the exclusive economic zone, the coastal State has:

- (a) sovereign rights for the purpose of exploring and exploiting, conserving and managing the natural resources, whether living or non-living, of the waters superjacent to the seabed and of the seabed and its subsoil, and with regard to other activities for the economic exploitation and exploration of the zone, such as the production of energy from the water, currents and winds;

⁹ Article 27(2) of the UNCLOS.

¹⁰ Article 29 to 32 of the UNCLOS.

¹¹ Article 33 of the UNCLOS.

¹² Ibid.

(b) jurisdiction as provided for in the relevant provisions of this Convention with regard to:

(i) the establishment and use of artificial islands, installations and structures;

(ii) marine scientific research;

(iii) the protection and preservation of the marine environment;

(c) other rights and duties provided for in this Convention.

2. In exercising its rights and performing its duties under this Convention in the exclusive economic zone, the coastal State shall have due regard to the rights and duties of other States and shall act in a manner compatible with the provisions of this Convention.

3. The rights set out in this article with respect to the seabed and subsoil shall be exercised in accordance with Part VI.

Continental Shelf

The attention to continental shelf has stemmed from the scientific knowledge in the mid-20th century projecting that this area is a very important reservoir of gas, oil and fishing resources. Coastal state's interest in this area is premised on various facts such as the preservation and exploitation of the resources lying there, there is a need for coastal state's cooperation, as they may be treated as the general extension of the landmass of the coastal state or the deposits therein may be an extension of the deposits lying within the land territory. The ICJ in *North Sea Continental Shelf*, has observed that:

[T]he rights of the coastal State in respect of the area of continental shelf that constitutes a natural prolongation of its land territory into and under the sea exist *ipso facto* and *ab initio*, by virtue of its sovereignty over the land, and as an extension of it in an exercise of sovereign rights for the purpose of exploring the sea bed and exploiting its natural resources. In short, there is here an inherent right.¹³

Article 76 of the UNCLOS states that:

The continental shelf of a coastal State comprises the seabed and subsoil of the submarine areas that extend beyond its territorial sea throughout the natural prolongation of its land territory to the outer edge of the continental margin, or to a distance of 200 nautical miles from the baselines from which the breadth of the territorial sea is measured where the outer edge of the continental margin does not extend up to that distance.

...shall not exceed 350 nautical miles from the baselines from which the breadth of the territorial sea is measured or shall not exceed 100 nautical miles from the 2,500 metre isobath, which is a line connecting the depth of 2,500 metres.

Article 83 of the UNCLOS states that:

¹³ (1969) ICJ Reports 3, at para 19.

The delimitation of the continental shelf between States with opposite or adjacent coasts shall be effected by agreement on the basis of international law, as referred to in Article 38 of the Statute of the International Court of Justice, in order to achieve an equitable solution.

2. If no agreement can be reached within a reasonable period of time, the States concerned shall resort to the procedures provided for in Part XV.

3. Pending agreement as provided for in paragraph 1, the States concerned, in a spirit of understanding and cooperation, shall make every effort to enter into provisional arrangements of a practical nature and, during this transitional period, not to jeopardize or hamper the reaching of the final agreement. Such arrangements shall be without prejudice to the final delimitation.

4. Where there is an agreement in force between the States concerned, questions relating to the delimitation of the continental shelf shall be determined in accordance with the provisions of that agreement.

In delimitation cases, courts have followed both equidistance and equitable principle. However, it must be remembered that equity **in this context is not to be equated with the consideration of redistributive justice considerations** such as relative poverty of the parties. Because in *Continental Shelf (Tunisia v Libya)* the ICJ has stated:

In their pleadings, as well as in their oral arguments, both Parties appear to have set so much store by economic factors in the delimitation process that the Court considers it necessary here to comment on the subject. Tunisia seems to have invoked economic considerations in two ways : firstly, by drawing attention to its relative poverty vis-à-vis Libya in terms of absence of natural resources like agriculture and minerals, compared with the relative abundance in Libya, especially of oil and gas wealth as well as agricultural resources ; secondly, by pointing out that fishing resources derived from its claimed "historic rights" and "historic waters" areas must necessarily be taken into account as supplementing its national economy in eking out its survival as a country...

The Court is, however, of the view that these economic considerations cannot be taken into account for the delimitation of the continental shelf areas appertaining to each Party. They are virtually extraneous factors since they are variables which unpredictable national fortune or calamity, as the case may be, might at any time cause to tilt the scale one way or the other. A country might be poor today and become rich tomorrow as a result of an event such as the discovery of a valuable economic resource. As to the presence of oil-wells in an area to be delimited, it may, depending on the facts, be an element to be taken into account in the process of weighing all relevant factors to achieve an equitable result.¹⁴

In the continental shelf area, coastal states do not enjoy sovereignty; they only enjoy a right to exploitation of resources.¹⁵ These rights in the continental shelf area as stipulated in Article 77 of the UNCLOS are as follow:

1. The coastal State exercises over the continental shelf sovereign rights for the purpose of exploring it and exploiting its natural resources.

2. The rights referred to in paragraph 1 are exclusive in the sense that if the coastal State does not explore the continental shelf or exploit its natural resources, no one may undertake these activities without the express consent of the coastal State.

¹⁴ (1982) ICJ Reports, 18 para 106-107.

¹⁵ Article 77.

3. The rights of the coastal State over the continental shelf do not depend on occupation, effective or notional, or on any express proclamation.

4. The natural resources referred to in this Part consist of the mineral and other non-living resources of the seabed and subsoil together with living organisms belonging to sedentary species, that is to say, organisms which, at the harvestable stage, either are immobile on or under the seabed or are unable to move except in constant physical contact with the seabed or the subsoil.

High Seas

High Seas refer to all parts of the sea that are not included in the exclusive economic zone, in the territorial sea or in the internal waters of a state, or in the archipelagic waters of an archipelagic state. The cardinal rule of the freedom of high seas is enshrined in Article 87 where it is stated:

The high seas are open to all States, whether coastal or land-locked. Freedom of the high seas is exercised under the conditions laid down by this Convention and by other rules of international law. It comprises, *inter alia*, both for coastal and land-locked States:

- (a) freedom of navigation;
- (b) freedom of overflight;
- (c) freedom to lay submarine cables and pipelines, subject to Part VI;
- (d) freedom to construct artificial islands and other installations permitted under international law, subject to Part VI;
- (e) freedom of fishing, subject to the conditions laid down in section 2;
- (f) freedom of scientific research, subject to Parts VI and XIII.

Of course, as extensive as the freedoms may be, they cannot be without limits and need to be ‘exercised by all States with due regard for the interests of other States in their exercise of the freedom of the high seas, and also with due regard for the rights under this Convention.’¹⁶

Categorically overruling the decision of the Permanent Court of International Justice in the *Lotus*¹⁷ on jurisdiction pertaining to collision on the high seas, Article 97 of the UNCLOS provides that:

1. In the event of a collision or any other incident of navigation concerning a ship on the high seas, involving the penal or disciplinary responsibility of the master or of any other person in the service of the ship, no penal or disciplinary proceedings may be instituted against such person except before the judicial or administrative authorities either of the flag State or of the State of which such person is a national.

2. In disciplinary matters, the State which has issued a master's certificate or a certificate of competence or licence shall alone be competent, after due legal process, to pronounce the withdrawal of such certificates, even if the holder is not a national of the State which issued them.

¹⁶ Article 87(2) of the UNCLOS.

¹⁷ (1927) PCIJ, Series A, No. 10, page 18.

3. No arrest or detention of the ship, even as a measure of investigation, shall be ordered by any authorities other than those of the flag State.

Question: Can you recall the rule on the nationality of ships? Why do you think the words ‘genuine link’ may have been used in Article 91(1) of the UNCLOS? What may be the meaning of the term ‘flags of convenience’?

Regarding the requirement of genuine link between ships and the flag state, in International Tribunal for the Law of the Sea (ITLOS), in *M/V "SAIGA" (No.2) Case (Saint Vincent and the Grenadines v. Guinea)* has unequivocally limited the scope of the genuine link requirement in the following words:

The conclusion of the Tribunal is that the purpose of the provisions of the Convention on the need for a genuine link between a ship and its flag State is to secure more effective implementation of the duties of the flag State, and not to establish criteria by reference to which the validity of the registration of ships in a flag State may be challenged by other States.¹⁸

Exceptions to Freedom of High Seas

Piracy

Article 99 of the UNCLOS defines piracy in the following words:

Piracy consists of any of the following acts:

(a) any illegal acts of violence or detention, or any act of depredation, committed for private ends by the crew or the passengers of a private ship or a private aircraft, and directed:

(i) on the high seas, against another ship or aircraft, or against persons or property on board such ship or aircraft;

(ii) against a ship, aircraft, persons or property in a place outside the jurisdiction of any State;

(b) any act of voluntary participation in the operation of a ship or of an aircraft with knowledge of facts making it a pirate ship or aircraft;

(c) any act of inciting or of intentionally facilitating an act described in subparagraph (a) or (b).

Thus, piracy has to be committed for some private gain and not in furtherance of a political purpose and must be committed in the high seas (or beyond territorial waters i.e. acts within the exclusive economic zone would be embraced by the definition) for it to be covered by the UNCLOS.¹⁹ However, it is important to note that piracy may only involve prohibited acts committed by the crew or the passengers of a private ship and directed against another ship. Thus, for acts not involving two ships such as internal seizures are covered by the Convention for the Suppression of Unlawful Acts against the *Safety of Maritime Navigation*, 1988.

¹⁸ ITLOS Case No. 2, Judgement of 1 July 1999, at para 83.

¹⁹ Articles 58(2) and 56 of the UNCLOS.

Slave Trade

Article 99 of the UNCLOS permits each state to take effective measures to prevent and punish the transport of slaves in ships authorised to fly its flag and to prevent the unlawful use of its flag for that purpose and provides that slave taking refuge on board any ship, whatever its flag, shall ipso facto be free. Article 110 authorises warships to board any ship where there is a reasonable suspicion of engagement in piracy, slave trade, unauthorised broadcasting, being stateless, or though flying a flag of a different state, it actually being of the same nationality as the warship. If following the search, **the suspicion is found to be baseless; the ship is entitled to be compensated** for any loss or damage suffered.

Unauthorised Broadcasting

Article 109 of the UNCLOS prohibits the unauthorised broadcasting i.e. transmission of sound radio or television broadcast (but not the transmission of distress calls) from a ship or installation on the high seas which is intended for reception by the general public in violation of international regulations. All of the following states, namely (a) the flag State of the ship; (b) the State of registry of the installation; (c) the State of which the person is a national; (d) any State where the transmissions can be received; or (e) any State where authorized radio communication is suffering interference may arrest and prosecute the persons in breach of this prohibition.

Hot Pursuit

In order to ensure that a ship committing an offence in the internal water or territorial sea cannot escape by moving to the high seas, there is a right of hot pursuit. It is discussed at length in Article 111 of the UNCLOS:

1. The hot pursuit of a foreign ship may be undertaken when the competent authorities of the coastal State have good reason to believe that the ship has violated the laws and regulations of that State. Such pursuit must be commenced when the foreign ship or one of its boats is within the internal waters, the archipelagic waters, the territorial sea or the contiguous zone of the pursuing State, and may only be continued outside the territorial sea or the contiguous zone if the pursuit has not been interrupted. It is not necessary that, at the time when the foreign ship within the territorial sea or the contiguous zone receives the order to stop, the ship giving the order should likewise be within the territorial sea or the contiguous zone. If the foreign ship is within a contiguous zone, as defined in article 33, the pursuit may only be undertaken if there has been a violation of the rights for the protection of which the zone was established.
2. The right of hot pursuit shall apply mutatis mutandis to violations in the exclusive economic zone or on the continental shelf, including safety zones around continental shelf installations, of the laws and regulations of the coastal State applicable in accordance with this Convention to the exclusive economic zone or the continental shelf, including such safety zones.
3. The right of hot pursuit ceases as soon as the ship pursued enters the territorial sea of its own State or of a third State.
4. Hot pursuit is not deemed to have begun unless the pursuing ship has satisfied itself ...that the ship pursued or one of its boats or other craft working as a team and using the ship pursued as a mother ship is within the limits of the territorial sea, or, as the case may be, within the contiguous zone or the exclusive economic zone or above the continental shelf. The pursuit may only be commenced after a

visual or auditory signal to stop has been given at a distance which enables it to be seen or heard by the foreign ship.

5. The right of hot pursuit may be exercised only by warships or military aircraft, or other ships or aircraft clearly marked and identifiable as being on government service and authorized to that effect...

8. Where a ship has been stopped or arrested outside the territorial sea in circumstances which do not justify the exercise of the right of hot pursuit, it shall be compensated for any loss or damage that may have been thereby sustained.

Rights of Landlocked States

Article 127 of the UNCLOS states that:

1. Land-locked States shall have the right of access to and from the sea for the purpose of exercising the rights provided for in this Convention including those relating to the freedom of the high seas and the common heritage of mankind. To this end, land-locked States shall enjoy freedom of transit through the territory of transit States by all means of transport.

2. The terms and modalities for exercising freedom of transit shall be agreed between the land-locked States and transit States concerned through bilateral, subregional or regional agreements.

3. Transit States, in the exercise of their full sovereignty over their territory, shall have the right to take all measures necessary to ensure that the rights and facilities provided for in this Part for land-locked States shall in no way infringe their legitimate interests.

Questions: Does Article 127 provide an unqualified right to transit? Even when landlocked states would enjoy transit rights, what sort of problems they may face in international commerce?

Article 69 of the UNCLOS clarifies that land-locked states too would have the right to take part, on an equitable basis, in the exploitation of an appropriate part of the surplus of the living resources of the exclusive economic zones of coastal states of the same sub-region or region, taking into account the relevant economic and geographical factors.

ITLOS

The ITLOS has been set up as one of the dispute settlement mechanism under part XV of the UNCLOS. It came into being in 1996 and is geographically based in Hamburg. Article 2 of the *Statute of the ITLOS* (Annex VI of the UNCLOS) provides that ITLOS would consist of twenty-one independent members, who would enjoy 'the highest reputation for fairness and integrity and of recognized competence in the field of the law of the sea' and in case of choosing them 'principal legal systems of the world and equitable geographical distribution shall be assured'. The state parties to the UNCLOS elect the Judges for a nine-year term, and they may be re-elected.²⁰

²⁰ Article 5 of the *Statute of the ITLOS*.

A quorum of **eleven Judges will be required to constitute the Tribunal.**²¹ When the Tribunal would include a member of the nationality of one of the parties to the dispute, any other party has a right choose a person to participate as an ad hoc Judge.²² Similarly, when the Tribunal does not include a member of the nationality of the parties, each of those parties is entitled to choose a person to participate as a member of the Tribunal.²³ There is a provision for choosing at least **two scientific experts either at the request of a disputing party or of its own motion, but these experts do not enjoy the right to vote.**²⁴ Article 21 of the *Statute of the ITLOS* states that '[t]he jurisdiction of the Tribunal comprises all disputes and all applications submitted to it in accordance with this Convention and all matters specifically provided for in any other agreement which confers jurisdiction on the Tribunal.'

In addition to ITLOS, there are other avenues for judicial settlement of disputes relating to the UNCLOS which are (a) ICJ (b) an arbitral tribunal constituted in accordance with Annex VII of the UNCLOS or (c) a special arbitral tribunal constituted in accordance with Annex VIII. Most of the cases submitted to the ITLOS have been regarding the prompt release obligation of Article 292 of the UNCLOS where a state party has detained a vessel flying the flag of another state party and then has not complied with the requirement of prompt release of the vessel or its crew upon the payment of a reasonable bond or other financial security, the question of release from detention may be submitted to the ITLOS.

When a state not party to a dispute determines that 'it has an interest of a legal nature which may be affected by the decision in any dispute', under Article 31 of *Statute of the ITLOS*, it may apply for intervening. Under Part XI, Section 5 of the UNCLOS and Article 14 of the *Statute of the ITLOS*, there is also a Sea Bed Disputes Chamber of the ITLOS. This Chamber consists of eleven Judges. However, if the application of the third party is accepted by the Tribunal, then the decision in respect of the dispute would be binding upon the intervening third party in so far as it relates to matters in respect of which that party intervened. Some experts have expressed concerns about the parallel jurisdiction of the ICJ and ITLOS, but that has not been reflected in the jurisprudence so far.

Further Readings:

Jessica Schechinger, *The Nave Andromeda and the Seven Stowaways* <<https://www.ejiltalk.org/the-nave-andromeda-and-the-seven-stowaways/>> accessed 29 December 2020

²¹ Article 13 of the *Statute of the ITLOS*.

²² Article 17(2) of the *Statute of the ITLOS*.

²³ Article 17(3) of the *Statute of the ITLOS*.

²⁴ Article 289 of *United Convention on the Law of the Sea*, 1982 and Article 15 of the Rules.

Law 421

Class Notes

State Responsibility

It is a well-established norm of international law that if a state commits an internationally unlawful act against another state, the former will be liable to the latter. The basis of state responsibility is the existence of an international legal obligation and an act or omission in breach of that obligation; as Judge Huber has explained in *Spanish Zones of Morocco Claims* that this 'responsibility is the necessary corollary of a right. All rights of an international character involve international responsibility. Responsibility results in the duty to make reparation if the obligation in question is not met.'¹

Until recently, the law on state responsibility was mainly based on customary international law. However, with the drafting of the *Articles on Responsibility of States for Internationally Wrongful Acts*, 2001 (ILC Articles), by the International Law Commission, the situation has changed. However, it should be borne in mind that ILC Articles does not touch upon the responsibility of individuals or international organisations.² At the outset, it may be useful to recall that the evidentiary threshold for establishing state responsibility, would hinge on the gravity of the charge against a state. This is evident from the observation of the ICJ in *Genocide Convention (Bosnia v Serbia)* that it 'has long recognized that claims against a State involving charges of exceptional gravity must be proved by evidence that is fully conclusive.'³

Questions: Can you envisage the reason/s for emphasis on civil liability of states? Why the ILC Articles refrain from framing substantive rules on the establishment of state responsibility?

Fault and State Responsibility:

Some academic commentators subscribing to the fault theory believe that states would only be responsible for acts committed with intention, or culpable neglect attributable to state agents. On the other hand, academic commentators subscribing to the objective theory or risk theory maintain that the unlawful action or omission of state agents itself would suffice. However, the majority of commentators subscribe to the objective theory.⁴

In the *Neer Claim*,⁵ the USA commenced proceedings against Mexico alleging that the latter's failure to conduct proper investigations in the killing of Neer, a US citizen who was killed while working in a mine in Mexico, amounted to a denial of justice to the deceased's wife and daughter. Rejecting the claim of the US, the Claims Commission held that:

¹ (*Great Britain v. Spain*) (1924) 2 R.I.A.A. 615, at 641.

² For responsibility of international organisations, see International Law Commission, *Articles on the Responsibility of International Organizations*, 2011.

³ (2007) ICJ Reports 43, at 163 [*Genocide Convention Case*].

⁴ Malcolm N. Shaw, *International Law* (Cambridge University Press, 6th ed, 2008), at 783.

⁵ (*The USA v Mexico*) (1926) 4RIAA 60.

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[T]he treatment of an alien, in order to constitute an international delinquency, should amount to an outrage, to bad faith, to wilful neglect of duty, or to an insufficiency of governmental action so far short of international standards that every reasonable and impartial man would readily recognize its insufficiency.⁶

In the *Caire Claim*,⁷ a French citizen who did not concede to the demands of Mexican soldiers for the supply of 5,000 Mexican dollars was shot by them and killed. The French-Mexico Claims Commission awarded compensation to the widow of the deceased on the basis of the fact that although Mexico may not be at fault, nevertheless the perpetrators were state agents and they clearly acted as competent officials or organs of states. The Commentary to the ILC Articles does not give any direct answer to the objective or subjective responsibility of states. It provides:

Whether responsibility is “objective” or “subjective” in this sense depends on the circumstances, including the content of the primary obligation in question. The articles lay down no general rule in that regard. The same is true of other standards, whether they involve some degree of fault, culpability, negligence or want of due diligence. Such standards vary from one context to another for reasons which essentially relate to the object and purpose of the treaty provision or other rule giving rise to the primary obligation. Nor do the articles lay down any presumption in this regard as between the different possible standards. Establishing these is a matter for the interpretation and application of the primary rules engaged in the given case.⁸

Question: Is this mixed approach towards the objective and subjective responsibility unique in international law?

Imputability:

For an act to give rise to the responsibility of a state, it has to be imputable to the state in question. The ICJ has in the *Genocide Convention Case (Bosnia v Serbia)* observed that this is ‘cornerstones of the law of State responsibility, that the conduct of any State organ is to be considered an act of the State under international law, and therefore gives rise to the responsibility of the State if it constitutes a breach of an international obligation of the State.’⁹

However, although an entity may not be a state agency, if it is authorised by a state to perform functions which are governmental in nature, its activities may make the concerned state still liable.¹⁰ The examples of this may be actions of private security agencies engaged by states or private railway companies with certain regulatory powers vested in them. The rationale behind this principle is perhaps not too difficult to understand.

Question: Can you recall the decision of the European Court of Justice in *Behrami v France*?

⁶ Ibid, at 61-62.

⁷ (*France v Mexico*) (1929) 5 RIAA 516.

⁸ International Law Commission, *Commentary on the Articles on Responsibility of States for Internationally Wrongful Acts*, 2001.

⁹ *Genocide Convention Case*, above note 3, at 163.

¹⁰ Article 5 of *Draft Articles on Responsibility of States for Internationally Wrongful Acts*, 2001 (ILC Articles).

Ultra Vires Acts

Even clearly ultra vires acts of authorised persons may, in appropriate circumstances, make states responsible. For instance, in *Youmans Claim*,¹¹ the Mexican militias who were officially ordered to protect the American citizens in a Mexican town, ignoring the official instructions, joined the riot, in which several Americans were killed and for this, the Claims Commission held Mexico liable.

Acts of Rebels:

In *Home Missionary Society Claim (USA v UK)*,¹² the collection of a newly imposed tax known as hut tax on the natives of the Protectorate triggered serious local uprising lasting for several days which caused attacks on the persons and properties of all Europeans. The Home Missionary Society's, (a US religious body) missions were attacked and got either destroyed or damaged, and some of the missionaries were murdered. The US claimed compensation from the UK alleging that British Government knew that this tax was the object of strong native resentment and it failed to take proper steps for the maintenance of order and the protection of life and property which resulted in the loss of life and property. Rejecting the claim, the arbitral tribunal held:

Now, even assuming that the "hut tax" was the effective cause of the native rebellion, it was in itself a fiscal measure in accordance not only with general usage in colonial administration, but also with the usual practice in African countries...

It was a measure to which the British Government was perfectly entitled to resort in the legitimate exercise of its sovereignty, if it was required. Its adoption was determined by the course of its policy and system of administration. Of these requirements it alone could judge...

*It is a well-established principle of international law that no government can be held responsible for the act of rebellious bodies of men committed in violation of its authority, where it is itself guilty of no breach of good faith, or of no negligence in suppressing insurrection.*¹³
[Emphasis added]

State Control and Responsibility

Article 8 of the ILC Articles Provides that:

The conduct of a person or group of persons shall be considered an act of a State under international law if the person or group of persons is in fact acting on the instructions of, or under the direction or control of, that State in carrying out the conduct.

The ICJ in the *Genocide Convention* has clarified the applicability of Article 8 in the following way:

State is responsible only for its own conduct, that is to say the conduct of persons acting, on whatever basis, on its behalf. That is true of acts carried out by its official organs, and also by

¹¹ (*United States of America v Mexico*) (1926) 4 RIAA 110.

¹² (1920) 6 RIAA 42.

¹³ *Ibid*, 43-44.

persons or entities which are not formally recognized as official organs under internal law but which must nevertheless be equated with State organs because they are in a relationship of complete dependence on the State. Apart from these cases, a State's responsibility can be incurred for acts committed by persons or groups of persons — neither State organs nor to be equated with such organs — only if, assuming those acts to be internationally wrongful, they are attributable to it under the rule of customary international law reflected in Article 8 [of the ILC Articles] ... *This is so where an organ of the State gave the instructions or provided the direction pursuant to which the perpetrators of the wrongful act acted or where it exercised effective control over the action during which the wrong was committed.* In this regard the “overall control” test is unsuitable, for it stretches too far, almost to breaking point, the connection which must exist between the conduct of a State's organs and its international responsibility.¹⁴ [Emphasis added]

Mob Violence and Actions by Rebel Groups

Generally, when states act in good faith and are not negligent, they would be excused for consequences of riotous acts of mobs or rebel groups. However, Article 10 of the ILC provides that when an insurrectional group is successful in becoming a new government or forms a new state from the territory of a part of an existing state, such a group will be liable for the actions committed prior to its assumption of the official authority. Again, private actions by mobs may change its legal character upon the receipt of official recognition. For instance, the ICJ in its judgment in the *Iranian Hostages*,¹⁵ accepted that the initial attack on the USA's Embassy by militants was not attributable to Iran.¹⁶ However, it found that after subsequent approval of their actions by Ayatollah Khomeini, the situation changed. It observed that:

In any event expressions of approval of the take-over of the Embassy, and indeed also of the Consulates at Tabriz and Shiraz by militants came immediately from numerous Iranian authorities, including religious, judicial, executive, police and broadcasting authorities. Above all, the Ayatollah Khomeini himself made crystal clear the endorsement by the State both of the take-over of the Embassy and Consulates and of the detention of the Embassy staff as hostages. At a reception in Qom on 5 November, the Ayatollah Khomeini left his audience in no doubt as to his approval of the action of the militants in occupying the Embassy. To which he said they had resorted "because they saw that the shah was allowed in America". Saying that he had been informed that the "centre occupied by our young men... has been a lair of espionage and plotting" he asked how the young people could be expected "simply to remain idle and witness all these things". Furthermore he expressly stigmatized as "rotten roots" those in Iran who were "hoping we would mediate and tell the young people to leave this place". The Ayatollah's refusal to order "the young people" to put an end to their occupation of the Embassy, or the militants in Tabriz and Shiraz to evacuate the United States Consulates there, must have appeared the more significant when, on 6 November. He instructed "the young people" who had occupied the Iraqi Consulate in Kermanshah that they should leave it as soon as possible.¹⁷

Exclusion of Wrongfulness

In certain special circumstances, an otherwise wrongful act may not necessarily be so because of special circumstances. For example, an act which is committed against a state by the consent of that state, would clearly not give rise to responsibility provided that the action

¹⁴ *Genocide Convention Case*, above note 3, at 171.

¹⁵ *United States Diplomatic and Consular Staff in Tehran*, USA v Iran, (1980) ICJ Reports 3.

¹⁶ *Ibid*, [58] – [59].

¹⁷ *Ibid*, [71].

falls within the scope of the consent. For example, if a state seeks the help of troops of another state, the former then cannot raise a claim against the latter for actions of such troops. Similarly, acts which are committed as self-defence would be excused.

Article 22 of the ILC Articles provides that the wrongfulness of an act of a state would remain precluded if and to the extent that the act constitutes a countermeasure. Article 51 of ILC Articles provides that ‘Countermeasures must be commensurate with the injury suffered, taking into account the gravity of the internationally wrongful act and the rights in question.’ Article 52 requires that before resorting to countermeasures, the suffering state must call upon the responsible state to fulfil its obligations and notify the responsible state of any decision to take countermeasures while offering to negotiate with that state. However, there is no requirement that countermeasures following the breach of a treaty provision must be related to the same treaty; provided of course, that the measure is proportionate and necessary.

Force Majeure

Force majeure is generally accepted as exonerating a state from its legal responsibility. However, the threshold of its application is perceived as high, in the sense that the state’s conduct should be such that it was constrained to do what it had done. In the *Rainbow Warrior Arbitration*,¹⁸ the Tribunal noted that the application of this defence would require three conditions to be satisfied. Firstly,

[T]he existence of very exceptional circumstances of extreme urgency involving medical or other considerations of an elementary nature, provided always that a prompt recognition of the existence of those exceptional circumstances is subsequently obtained from the other interested party or is clearly demonstrated.’¹⁹

Secondly, ‘The reestablishment of the original situation of compliance ... as soon as the reasons of emergency invoked to justify the ... [breach of the obligation] had disappeared’. And, thirdly, ‘The existence of a good faith effort to try to obtain the consent of New Zealand in terms of the 1986 Agreement’.²⁰

State Responsibility for Breach of *Jus Cogens* Norms

The responsibility of states (as opposed to individuals) for the commission of international crimes in breach of *jus cogens* norms is somewhat controversial. The controversy has been addressed by Articles 40 and 41 of the ILC Articles. Article 40 states that:

1. This chapter applies to the international responsibility which is entailed by a serious breach by a State of an obligation arising under a peremptory norm of general international law.
2. A breach of such an obligation is serious if it involves a gross or systematic failure by the responsible State to fulfil the obligation.

¹⁸ (1990) 20 RIAA 215.

¹⁹ Ibid, at 255.

²⁰ Ibid.

Article 41 of ILC Articles state that:

1. States shall cooperate to bring to an end through lawful means any serious breach within the meaning of article 40.
2. No State shall recognize as lawful a situation created by a serious breach within the meaning of article 40, nor render aid or assistance in maintaining that situation.

Consequences of Wrongful Acts

A state found to be responsible for the commission of an internationally wrongful action, would be liable to cease to perform the action in question. Again, it is a very well established norm in international law that the state guilty of an internationally wrongful act, is liable to pay reparation. The Permanent Court of International Justice in the *Chorzow Factory Case* has stated that:

The essential principle contained in the actual notion of an illegal act - a principle which seems to be established by international practice and in particular by the decisions of arbitral tribunals-is that reparation must, as far as possible, wipe out all the consequences of the illegal act and re-establish the situation which would, in all probability, have existed if that act had not been committed. Restitution in kind, or, if this is not possible, payment of a sum corresponding to the value which a restitution in kind would bear;²¹

However, restitution in kind often may be practically impossible and equivalent monetary compensation would generally suffice. In some cases, a state suffering may only demand 'satisfaction' that is a formal apology, the acknowledgement of the breach, regret etc. and may not necessarily claim any monetary compensation. It may be noted that the Inter-American Court of Human Rights in *Velásquez Rodríguez v. Honduras* (Compensation) has held that punitive or exemplary damages is not reparation and it is 'not applicable in international law at this time.'²²

Question: If the payment of compensation payable by a state would cripple its economy, should it still be bound to pay that?

Diplomatic Protection and Nationality of Claims

For a state to bring a claim on behalf of a person who is alleged to be a victim of an unlawful act or omission of another state, it is necessary to prove that the victim is its national. Article 44 of the ILC Articles provides that 'the responsibility of a State may not be invoked if: (a) the claim is not brought in accordance with any applicable rule relating to the nationality of claims...' And of course, diplomatic protection of nationals is not necessarily limited to legal action but may take a myriad of forms such as consular actions, negotiation, reprisals, and

²¹ PCIJ Series A, No. 17, 46-47.

²² (1989) Series C, No 7, 34, at 52.

severance of diplomatic relations and so on. In *The Mavrommatis Palestine Concessions*,²³ the PCIJ has observed:

It is an elementary principle of international law that a State is entitled to protect its subjects, when injured by acts contrary to international law committed by another State, from whom they have been unable to obtain satisfaction through the ordinary channels. By taking up the case of one of its subjects and by resorting to diplomatic action or international judicial proceedings on his behalf, a State is in reality asserting its own rights - its right to ensure, in the person of its subjects, respect for the rules of international law.²⁴

In *Mergé*,²⁵ in October 1948, the US Embassy in Rome submitted to the Ministry of the Treasury of Italy a claim on behalf of Mrs. Mergé, a national of the US, under Article 78 of the *Treaty of Peace with Italy*, for compensation for the loss of some properties caused as a result of the World War II. Italian authorities had rejected the claim on the ground that Mrs. Merge was an Italian national by marriage. The Conciliation Commission held in favour of the USA and reasoned that:

The principle, based on the sovereign equality of States, which excludes diplomatic protection in the case of dual nationality, must yield before the principle of effective nationality whenever such nationality is that of the claiming State [the state claiming that person is effectively its national]. But it must not yield when such predominance is not proved...²⁶

Questions: From the point of view of nationals (both natural and juristic persons), what is the biggest limitation of diplomatic protection? Can you recall the decision of the ICJ in *Nottebohm*? What about the finding of the ICJ in *Barcelona Traction* regarding the nationality of companies? In Barcelona case, how did the court limit the application of its principle? Could, in exceptional cases, one state bring a claim against another state for the latter's violation of international legal obligations owed to its own citizens?

Exhaustion of Local Remedies

It is a well-settled principle of customary international law that before bringing any claim against a state for an alleged responsibility of the latter, the latter's local remedies must have been exhausted. Article 44 of the ILC Articles provides that the responsibility of a state cannot be invoked 'if the claim is one to which the rule of exhaustion of local remedies applies and any available and effective local remedy has not been exhausted.' However, Article 15 of the *Draft Articles on Diplomatic Protection* provides that:

Local remedies do not need to be exhausted where:

- (a) there are no reasonably available local remedies to provide effective redress, or the local remedies provide no reasonable possibility of such redress;
- (b) there is undue delay in the remedial process which is attributable to the State alleged to be responsible;

²³ (Greece v Great Britain), PCIJ Series A, No 2.

²⁴ Ibid, at 12.

²⁵ (The USA v Italy) (1955) 14 RIAA 236.

²⁶ Ibid, at 247.

- (c) there was no relevant connection between the injured person and the State alleged to be responsible at the date of injury;
- (d) the injured person is manifestly precluded from pursuing local remedies; or
- (e) the State alleged to be responsible has waived the requirement that local remedies be exhausted.

In *Ambatielos Arbitration*,²⁷ Mr. Ambatielos, a Greek citizen had a dispute with the Government of the UK regarding the purchase of a few steamships. His case against the UK government ended in 1923 in the British Court of Appeal. Greece then went to the ICJ to espouse his claim and the ICJ found that the UK was under an obligation to submit the dispute to arbitration and in 1955; the Governments of Greece and the UK accordingly concluded an Agreement regarding the submission to Arbitration of the claim by Ambatielos. The Arbitral Tribunal rejected his claim because, inter alia, he did not prefer an appeal to the House of Lords against the decision of the English Court of Appeal.

In *Interhandel*,²⁸ Switzerland filed a case against the USA for the recovery of assets of Interhandel, a Swiss company operating in the USA. The assets in question were seized by the USA in 1942 as enemy property, as the company was perceived to be under the control of a German company. After the matter was pending before the domestic courts of the USA for nearly a decade, in 1958, Switzerland brought this case before the ICJ. However, after this, the Supreme Court of the USA readmitted the matter. The ICJ declined to exercise jurisdiction inter alia, on the ground that domestic jurisdiction has not been exhausted. Needless to say, that some commentators felt that the delay was unreasonable and the ICJ's approach was too conservative.

The use of the exhaustion of local remedies in contemporary practice is much more restricted than it used to be. This is so because often states, by express treaty provisions, have ousted its application. Having said that, in the absence of any specific treaty provisions, the principle will still apply.

The Responsibility for Expropriation of Alien Property

With the increasing movement of capital beyond borders, the treatment of alien property is now not only a subject of a growing body of jurisprudence, but also 'foreign investment law', as a result, has emerged as a distinct branch of international law. For our present purpose, it would suffice to remember that under customary international law, states are not legally obliged to admit foreign investment and they also have a right to expropriate foreign property provided that certain conditions are fulfilled. It is now more or less settled that a state may expropriate the property of aliens, but for an expropriation to be considered legal, it must fulfil the following conditions:

1. The host state's measure in question must be for serving certain public purpose;
2. The measure must not be arbitrary or discriminatory;
3. The procedure needs to follow principles of due process; and

²⁷(*Greece v Great Britain*) (1956) 12 RIAA 83.

²⁸ (*Switzerland v The United States of America*) (1959) ICJ Reports 6.

4. The measure must be accompanied by prompt, adequate, and effective compensation.²⁹

Further Readings:

- Islam, Md. Rizwanul, 'The Gambia v. Myanmar: An Analysis of the ICJ's Decision on Jurisdiction under the Genocide Convention' 26(9) *American Society of International Law Insights*, 21 September 2022, <<https://www.asil.org/insights/volume/26/issue/9>> accessed 21 September 2022
- Islam, Md. Rizwanul, 'Promptly Notifying Infectious Diseases Likely to Cause Pandemics: Individual State Responsibility, Shared Collective Burden', (2021) 56(1) *Texas International Law Journal* 35-57
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- Papakinris, Martins, 'A Case Against Crippling Compensation in International Law of State Responsibility' (2020) 83 *Modern Law Review* 1246-1286

²⁹ Andreas F. Lowenfeld, *International Economic Law* (Oxford University Press, 2nd ed, 2008) 559; Rudolf Dolzer and Christoph Schreuer, *Principles of International Investment Law* (Oxford University Press, 2008) 89-91.

Law 421

Class Notes

International Dispute Settlement and the International Court of Justice

It is a cardinal principle of international law that states would settle their disputes by peaceful means and not by *any resort to force*. It is embodied in Article 2(3) of the *Charter of the United Nations (UN Charter)*. Article 33 of the *UN Charter* states:

1. The parties to any dispute, the continuance of which is likely to endanger the maintenance of international peace and security, shall, first of all, seek a solution by negotiation, enquiry, mediation, conciliation, arbitration, judicial settlement, resort to regional agencies or arrangements, or other peaceful means of their own choice.
2. The Security Council shall, when it deems necessary, call upon the parties to settle their dispute by such means.

Uncertainty about the potential outcome of a legal proceeding, embarrassment in case of an adverse ruling, possibility of worsening relations between the litigating parties, and absence of any compulsory jurisdiction etc. are factors which determine that more often than not legal disputes are resolved, not through courts, tribunals, or arbitral bodies; but through negotiations in one name or the other.

Arbitration

Often disputes between states may be resolved through permanent arbitration bodies such as the Permanent Court of Arbitration located at The Hague or ad hoc arbitration bodies. International arbitration was originally used solely for resolution of inter-state disputes but currently in many international arbitrations, claims can be made by individuals or companies against states. Arbitration bodies may have only one arbitrator or may be collegiate bodies where typically both parties to the dispute would make their respective nominations and the chairperson would be appointed by the agreement between the parties or by the agreement between the arbitrators already nominated by the parties.

It needs to be remembered that arbitration bodies are no inferior to regular international courts such as the International Court of Justice (ICJ) and the main distinguishing point is that in arbitrations, parties enjoy greater flexibility in terms of the choice of the members who decide the case, the applicable laws, and the procedure to be followed in the course of settlement of the dispute. For instance, (though a very rare one), in *Argentina-Chile Frontier Case*,¹ the arbitral tribunal consisted of one lawyer and two geographical experts. Sometimes, even simply a desire for secrecy may dictate the parties to opt for arbitration. In arbitrations, it would be the parties who

¹ 38 ILR 10.

would bear the cost of the arbitration centre's administrative processes as well as the fees of the arbitrators which are different from what happens in international courts such as the ICJ.

Questions: Can you recall the uniqueness of the *Rainbow Warrior* in this regard? On what grounds, can an award by an international arbitral body be challenged? What sort of role may a Commission of Enquiry play in resolving international disputes?

International Court of Justice (ICJ)

The ICJ, the successor to the Permanent Court of Justice, is, as per the words of Article 92 of the *UN Charter*, the 'principal judicial organ of the United Nations' and often referred to as the *World Court*. The ICJ is located at the Peace Palace in The Hague. In 1989, the Secretary-General of the United Nations set up a trust fund so as to ensure that in certain circumstances, states in need, be provided with financial assistance.

Apart from the ICJ, there are many specialised international legal dispute settlement bodies such as the International Tribunal for the Law of the Sea, Dispute Settlement Body of the World Trade Organization, and the International Criminal Court and regional judicial bodies such as the African Court of Human Rights, European Court of Justice, European Court of Human Rights, and Inter-American Court of Human Rights etc. While many experts express trepidation that the proliferation of so many international courts may undermine the pre-eminence of the ICJ and more critically, may result in conflicting judgments, such fear, particularly the fear of conflicting judgments; seems to be inflated. It does not seem that conflicting decisions by international judicial bodies have been a grave issue just yet. Such growing number of international courts may rather be seen as a sort of the desire for the legalisation of inter-state relations and thus, as a positive development to be lauded. However, what future holds in this regard is, of course, by no means a foregone conclusion.

Composition of the Court

The ICJ consists of 15 Judges who are 'elected regardless of their nationality from among persons of high moral character, who possess the qualifications required in their respective countries for appointment to the highest judicial offices, or are jurisconsults² of recognized competence in international law.'³ The Judges of the ICJ are elected by the UN Security Council and General Assembly.⁴ They are elected for nine years and may be re-elected.⁵ Article 18(1) provides that no Judge of the ICJ 'can be dismissed unless, in the unanimous opinion of the other members, he has ceased to fulfill the required conditions.'

² Experts in civil law or international law.

³ Article 2 of the *Statute of the ICJ*.

⁴ In this matter, the veto power of the UN Security Council's permanent member states does not apply.

⁵ Article 13 of the *Statute of the ICJ*.

Though not mentioned either in the *Statute of the ICJ*, or in its Rules, traditionally, each permanent member of the UN Security Council had (with an exception in the case of China between 1967 to 1985) a national as a Judge of the ICJ. Article 9 of the *Statute of the ICJ* provides that in case of the election of Judges, it be borne ‘in mind not only that the persons to be elected should individually possess the qualifications required, but also that in the body as a whole the representation of the main forms of civilization and of the principal legal systems of the world should be assured.’ At any point in time, not more than one Judge from the same state can be appointed.⁶

Generally, cases are decided by the full Court. However, sometimes matters have been referred to ad hoc chamber consisting of three or more Judges.⁷ A matter decided by an ad hoc chamber is not appealable before the full Court, the reason being that a verdict rendered by the former is considered to be a verdict by the latter. There is no legal bar on a Judge to sit on the Court when a dispute involves her/his country of nationality. Interestingly, a party to a dispute before the ICJ that does not have a national in the Court may choose a person (not necessarily a national) to sit as an ad hoc judge.⁸ This provision helps to give the whole procedure some form of political legitimacy. Regarding the nature of the obligation of the ad hoc Judges, in *Application of the Genocide Convention Case*, ad hoc Judge Elihu Lauterpacht has observed that:

[T]he institution of the ad hoc judge was created for the purpose of giving a party, not otherwise having upon the Court a judge of its nationality, an opportunity to join in the work of this tribunal. ..This has led many to assume that an ad hoc judge must be regarded as a representative of the State that appoints him and, therefore, as necessarily precommitted to the position that that State may adopt.

That assumption is, in my opinion, contrary to principle and cannot be accepted. Nonetheless, consistently with the duty of impartiality by which the ad hoc judge is bound, there is still something specific that distinguishes his role. He has, I believe, the special obligation to endeavour to ensure that, so far as is reasonable, every relevant argument in favour of the party that has appointed him has been fully appreciated in the course of collegial consideration and, ultimately, is reflected - though not necessarily accepted - in any separate or dissenting opinion that he may write.⁹

When there are issues of conflict of interest, a Judge may not sit in the court or a party may ask her/him to refrain from doing so and in case of any dispute in this matter, it would be settled by the President of the ICJ or in case of disagreement between the President and the relevant Judge, by the full Court.¹⁰ The Judges elect a President and a Vice-President for a period of three years and they may be re-elected.¹¹ The Judges when engaged on the business of the Court, are entitled to enjoy diplomatic privileges and immunities.¹²

⁶ Article 3(1) of the *Statute of the ICJ*.

⁷ This has to be distinguished from annual chamber consisting of five Judges for dealing with the summary procedure as envisaged in Article 29 of the *Statute of the ICJ*.

⁸ Article 31 of the *Statute of the ICJ*.

⁹ Order of 13 September 1993, (1993) ICJ Reports, 325 at 409.

¹⁰ Articles 17 and 24 of the *Statute of the ICJ*.

¹¹ Article 21 of the *Statute of the ICJ*.

¹² Article 19 of the *Statute of the ICJ*.

Jurisdiction of the ICJ

At the outset, one needs to remember that ongoing negotiations between parties, activities of the United Nations Secretary-General, or considerations of the matter by the United Nations Security Council or any regional inter-governmental organisations etc. do not operate as a bar to the judicial functions of the ICJ. The relevant date for the determination of jurisdiction is when the dispute is submitted to the Court and thus, once jurisdiction is established, subsequent events cannot divest it of its jurisdiction. Although the Court may have jurisdiction to hear an application, it may nonetheless decide that for some grounds (such as the failure to exhaust local remedies), the application for hearing a matter is inadmissible.

Contentious Jurisdiction

Under Article 93 of the *UN Charter*, all state members of the UN can submit disputes to the ICJ; however, although a state may not be a UN member, it can still submit a dispute to the ICJ on conditions to be determined by the General Assembly upon recommendations by the Security Council. Article 36(1) of the *Statute of the ICJ* provides that '[t]he jurisdiction of the Court comprises all cases which the parties refer to it and all matters specially provided for in the Charter of the United Nations or in treaties and conventions in force.' Typically, parties to a dispute sign a special agreement or *compromis* specifying the terms of the dispute etc.

In exceptional cases, a dispute may be referred to the ICJ under Article 36(1) through *forum prorogatum* meaning that a unilateral application is made to the ICJ, inviting the other party to accept jurisdiction of the ICJ, which if accepted by the latter would confer jurisdiction on the Court. For example, in *Corfu Channel*, the UK made a unilateral application which was accepted by Albania. Although Albania subsequently objected to the exercise of jurisdiction, the ICJ held that it had waived its right to object to the exercise of jurisdiction.¹³ However, mere appearance before the ICJ to object to its jurisdiction would not amount to acceptance of the jurisdiction.¹⁴

Article 36(2) of the *Statute of the ICJ* provides that:

The states parties to the present Statute may at any time declare that they recognize as compulsory ipso facto and without special agreement, in relation to any other state accepting the same obligation, the jurisdiction of the Court in all legal disputes concerning:

- a. the interpretation of a treaty;
- b. any question of international law;
- c. the existence of any fact which, if established, would constitute a breach of an international obligation;
- d. the nature or extent of the reparation to be made for the breach of an international obligation.

¹³ (*The United Kingdom v Albania*) (*Preliminary Objection*) (1948) ICJ Reports 15.

¹⁴ *Armed Activities Case (New Application: 2002) (Congo v Rwanda)* (2006) ICJ Reports 6.

Thus, under Article 36(2) of the *Statute of the ICJ*, a state may make a declaration which is called a declaration under the *optional clause*, accepting the compulsory jurisdiction of the Court. A declaration of this nature may take various forms such as it may be time-specific, be subject to automatic renewal unless a notice of withdrawal is given, or may be conditioned on reciprocity or limited to some states. The optional clause jurisdiction may be treated as relying on the lowest common denominator between the disputing parties. The decision of the ICJ in the *Anglo-Iranian Oil Case* amply explains this. In this case, in 1951, the UK wanted to take up the issue of Iran's nationalisation of the assets of the Anglo-Iranian company. It sought to rely on Iran's declaration under the optional clause. Interestingly, the ICJ ordered some provisional measures, but the majority of the Court then decided it had no jurisdiction in the case. This is because Iran had accepted the ICJ's jurisdiction in relation to 'situations or facts relating directly or indirectly to the application of treaties or conventions accepted by Persia and subsequent to the ratification of this declaration'. The Court explained:

In the present case the jurisdiction of the Court depends on the Declarations made by the Parties under Article 36, paragraph 2, on condition of reciprocity, which were, in the case of the United Kingdom, signed on February 28th, 1940, and, in the case of Iran, signed on October 2nd, 1930, and ratified on September 19th, 1932. By these Declarations, jurisdiction is conferred on the Court only to the extent to which the two Declarations *coincide in conferring it*. As the Iranian Declaration is more limited in scope than the United Kingdom Declaration, it is the Iranian Declaration on which the Court must base itself.¹⁵

In *Certain Norwegian Loans*, the French government in 1955 filed a claim against Norway regarding the payment of various Norwegian loans issued, inter alia, in France. The French government requested that the ICJ essentially declare that these international loans stipulated in gold the amount of the borrower's obligation for the service of coupons and the redemption of bonds. Norway contested the jurisdiction of the ICJ arguing, inter alia, that France had reservations to compulsory jurisdiction of the ICJ regarding differences relating to matters 'within the national jurisdiction' and so, it could not bring this issue before the ICJ. The court accepted the Norwegian argument. It emphasised the overarching importance of reciprocity, holding that:

[I]n the present case the jurisdiction of the Court depends upon the Declarations made by the Parties in accordance with Article 36, paragraph 2, of the Statute on condition of reciprocity; and that, since two unilateral declarations are involved, such jurisdiction is conferred upon the Court only to the extent to which the Declarations coincide in conferring it. A comparison between the two Declarations shows that the French Declaration accepts the Court's jurisdiction within narrower limits than the Norwegian Declaration; consequently, the common will of the Parties, which is the basis of the Court's jurisdiction, exists within these narrower limits indicated by the French reservation.¹⁶

¹⁵ *Anglo-Iranian Oil Co. Case (United Kingdom v Iran)* Preliminary Objection: Judgment of 22 July 1952, at 103.

¹⁶ *Certain Norwegian Loans (France v Norway)* Judgment of 6 July 1957, at 23.

Question: Can you recall the applicability of *stare decisis* in the ICJ?

Counter-claims

Article 80(1) of the Rules of Court states that '[t]he Court may entertain a counter-claim only if it comes within the jurisdiction of the Court and is directly connected with the subject-matter of the claim of the other party.' The ICJ has clarified in the *Case Concerning Application of the Convention on the Prevention and Punishment of the Crime of Genocide* that 'it does not apply to mere defences on the merits which the Court must hear in the normal exercise of its functions to decide the Applicant's claims' but also cannot 'exceed the limits of its jurisdiction as recognized by the parties.'¹⁷ The ICJ in *Oil Platforms* has made it clear that the issue of admissibility of the counter-claims can be raised at the merit stage because the hearing at the admissibility stage would be limited to the narrow question of compliance with Article 80 of the Rules, so a broader challenge at the merit would, hence, be permissible.¹⁸

Intervention as Third Party/Parties

Under Article 62(1) of the *Statute of the ICJ*, '[s]hould a state consider that it has an interest of a legal nature which may be affected by the decision in the case, it may submit a request to the Court to be permitted to intervene.' And when such a request is made, the ICJ may decide on it irrespective of the position taken by one or both of the disputing parties. The intervening party would have a right to be heard by the Court, but of course, the judgement would not create legal rights or obligations for it/them, unless they join as a party. A state may also intervene under Article 63 of the Statute when the construction of a Convention is at issue before the Court, and the intervening party is a state party to the Convention.

Advisory Jurisdiction

As per Article 65 of the *Statute of the ICJ*, it 'may give an advisory opinion on any legal question at the request of whatever body may be authorized by or in accordance with the Charter of the United Nations to make such a request. Under Article 96 of the *UN Charter*, the UN Security Council and General Assembly as well as other organs of the UN and its specialized agencies, if authorised by the General Assembly, may seek advisory an opinion of the ICJ. States cannot submit a request for advisory opinion but they are permitted to (and in practice, they often do) participate in the advisory proceedings before the court.

¹⁷ (*Bosnia and Herzegovina v. Yugoslavia*) (*Counter-Claims Order*) (1997) ICJ Reports, 243, at 257.

¹⁸ (*Islamic Republic of Iran v The United States of America*), (2003) ICJ Reports, 161 at 210.

As the Advisory jurisdiction is in the nature of interpretation of law, which is not necessarily legally binding on anyone, more often than not the advisory jurisdiction would be exercised, although it involves legal question/s pertaining to a state party who may object to such an exercise. The ICJ in *Reservations to the Genocide Convention* has stated:

A reply to a request for an Opinion should not, in principle, be refused. The permissive provision of Article 65 of the Statute recognizes that the Court has the power to decide whether the circumstances of a particular case are such as to lead the Court to decline to reply to the request for an Opinion. ...The object of this request for an Opinion is to guide the United Nations in respect of its own action. It is indeed beyond dispute that the General Assembly, which drafted and adopted the Genocide Convention, and the Secretary-General, who is the depositary of the instruments of ratification and accession, have an interest in knowing the legal effects of reservations to that Convention and more particularly the legal effects of objections to such reservations.¹⁹

However, despite its lack of legal bindingness, with some rare exceptions, international organisations and states have accepted the advisory opinions of the ICJ. The notable exceptions are inter alia, the refusal of South Africa to act in line with the advisory opinion in *South West Africa*,²⁰ and Israel's negative response to the *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*.²¹

Inter-relation between the ICJ and Other Organs of the UN

In its advisory opinion in *Legal Consequences for States of the Continued Presence of South Africa in Namibia (South-West Africa)*, the ICJ has observed that '[u]ndoubtedly, the Court does not possess powers of judicial review or appeal in respect of the decisions taken by the United Nations organs concerned.'²² Thus, the assessment of the validity of the resolutions of a UN organ is not a function of the ICJ.

Question: Can you recall the decision of the ICJ in *Lockerbie* Case regarding the co-relation between the ICJ and the Security Council?

Enforcement and Revision of Judgments

Article 94 of the *UN Charter* provides that:

(1) Each Member of the United Nations undertakes to comply with the decision of the International Court of Justice in any case to which it is a party.

¹⁹(1951) ICJ Reports, 15, at 19.

²⁰ (1971) ICJ Reports 16 [*South-West Africa*].

²¹ (2004) ICJ Reports, 136.

²² *West Africa*, above note 20, at 45.

(2) If any party to a case fails to perform the obligations incumbent upon it under a judgment rendered by the Court, the other party may have recourse to the Security Council, which may, if it deems necessary, make recommendations or decide upon measures to be taken to give effect to the judgment.

However, although Article 94(2) has been invoked, the above-mentioned power of the Security Council has never been resorted to. That being said, except in very rare cases, (e.g. Albania in *Corfu Channel*,²³ Iceland in *Fisheries Jurisdiction*,²⁴ and Iran in *Hostages*²⁵), the ICJ judgments have been complied with by the losing parties. And whether or not a judgment has been complied with by a state can itself be quite a tricky question.²⁶

Article 61(1) of the *Statute of the ICJ* provides that there may be an application for the revision of a judgment rendered by the Court only if ‘it is based upon the discovery of some fact of such a nature as to be a decisive factor, which fact was, when the judgment was given, unknown to the Court and also to the party claiming revision, ... provided that such ignorance was not due to negligence.’ Of course, as the text would imply that the threshold for admissibility of a petition of this nature is quite high. Again, the application must be made within six months of the discovery of the new fact and cannot be made after the lapse of ten years from the passing of the judgement.²⁷ Article 60 of the Statute also provides a scope for a party to a case to seek interpretation of the judgment of the Court. The relevant part of the Statute states that ‘[i]n the event of dispute as to the meaning or scope of the judgment, the Court shall construe it upon the request of any party.’

Question: Some experts have suggested that international organisations should be vested with the right to bring claims against states by recourse to the ICJ's contentious jurisdiction. What could be potential justification/s for and objecting to the opening of such an avenue? Can you see how some actors acting within the ICJ, other than the Judges, may have some influence on the proceedings before the Court?

Further Readings:

Islam, Md. Rizwanul, and Sayere Nazabi Sayem, IUCN's Amicus Curiae Submission in the Climate Change Advisory Opinion: Wind of Changing Practice at the ICJ? (2025) 58(1) *The International Lawyer* 1-33

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²³ (*The United Kingdom v Albania*) (1949) ICJ Reports 4.

²⁴ (*The United Kingdom v Iceland*) (1974) ICJ Reports 3.

²⁵ (*The United States of America v Iran*) (1980) ICJ Reports 3.

²⁶ Aloysius P. Llamzon, ‘Jurisdiction and Compliance in Recent Decisions of the International Court of Justice’ (2007) 18 *European Journal of International Law* 815, at 822-844.

²⁷ Article 61(4)-61(5) of the *Statute of the ICJ*.

Islam, Md. Rizwanul, 'Intervening in The Gambia's Quest for Establishing Myanmar's Responsibility for Atrocities on the Rohingya: Symbolism or Substance?' Fordham International Law Journal Online, <<https://www.fordhamilj.org/iljonline/2020/10/17/intervening-in-the-gambias-quest-for-establishing-myanmars-responsibility-for-atrocities-on-the-rohingya-symbolism-or-substance>> accessed 17 October 2020

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Class Notes

Recognition of States and Governments

Every time a new state emerges (particularly when such emergence is not by peaceful means), the question of its recognition as a state by other states may become an issue and may have an impact on its rights and obligations, both under national and international law. To any observer of global politics, it would be known that the decision of recognition of a state or a government depends more on diplomatic, economic, and political considerations than on legal norms.

It is also important to remember that a state is under no legal obligation to recognise another state which may have been formed in accordance with the norms of international law, nor is a state under any obligation to refuse to recognise a state which may have been formed in derogation of any established norms of international law. The recognition is a political choice of the recognising state. One may note, for example, the statement of Mr. Austin, the then Representative of the USA on the UN Security Council regarding the recognition of Israel, just within hours of its declaration of independence:

I should regard it as highly improper for me to admit that any country on earth can question the sovereignty of the United States of America in the exercise of that high political act of recognition of the de facto status of a State. Moreover, I would not admit here, by implication or by direct answer, that there exists a tribunal of justice or of any other kind, anywhere, that can pass judgment upon the legality or the validity of that act of my country.¹

However, that being said, it needs to be remembered that there are important legal effects of recognition of states and governments. For instance, the recognised and recognising state would be able to sign bilateral treaties with each other and would be entitled to enjoy diplomatic immunities in their respective jurisdictions. And if a new state is not recognised by other states or is recognised by only a handful of them, the state would surely face serious problems in conducting its affairs in the global arena and its citizens may be prevented from travelling legally to those states which do not recognise it as a state.

Questions: Which states do recognise Israel and Palestine? Can you remember the various points of time when Bangladesh was recognised by China, India, the Kingdom of Saudi Arabia, Pakistan, the former United Soviet Socialist Republic and the United States of America? What do the disparate dates tell you about the politics of recognition of states? What about the legal impact of the recognition of different states at different points of time?

¹ Quoted in David Harris, and Sandesh Sivakumaran, *Cases and Materials on International Law* (Sweet and Maxwell, 8th ed, 2015) at 126-127, referring to New York Times, 19 May 1948.
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Theories of Recognition

There are essentially two main theories regarding the recognition of states.

Constitutive Theory

The proponents of this theory argue that it is only through recognition of a new state by other states that a new state may gain statehood. However, this theory would struggle to categorise the status of a new state which may have been recognised by some states but remain unrecognised by another set of states. Of course, in such a case, the new state cannot be categorised as a partial state. If there is no recognition, then theoretically there is no state and so that particular state cannot be held liable for wrongful acts such as aggression. This theory is a vestige of the nineteenth century idea of the European states that they had the right to determine which new states would be admitted to or be excluded from the family of nations.² However, it must be conceded that since unrecognised states (and unrecognised governments as well) in many other states cannot claim to enjoy the rights which would be otherwise enjoyed by recognised states in claims before municipal courts, the theory is not entirely devoid of truth.

Declaratory Theory

The advocates of this theory argue that recognition is nothing but a formal declaration of an already existing fact. Thus, recognition is not a precondition of a state's statehood, rather just a formal declaration of it. Naturally, newly emerged states would tend to defend this theory and state practice would lend some credence to this view. For example, the non-recognition of Taiwan by the UK did not stop the government of the UK from claiming compensation for the damage inflicted on British ships by the Taiwanese forces.³

Legally speaking, the earliest pronouncement of the criteria of statehood can be found to be stated through Article 1 of the *Monte Video Convention on the Rights and Duties of States*, 1933. And you may recall that it did not require recognition as an element of statehood. And Article 6 explicitly recognised that 'The recognition of a state merely signifies that the state which recognizes it accepts the personality of the other with all the rights and duties determined by international law. ...'

Collective Recognition

Recognition in certain cases can be collective that is by a group of states. However, it must be remembered that even if a state is recognised by a group of states, not all members within that group are bound by that collective recognition. In this regard, the example of Bangladesh may be useful. Although Bangladesh was recognised as a UN member on 17

² Antonio Cassese, *International Law* (Oxford University Press, 2nd ed, 2005) at 74.

³ E. Lauterpacht, 'The Contemporary Practice of the United Kingdom in the Field of International Law—Survey and Comment, IV' (1957) 6 *International and Comparative Law Quarterly* 506, at 507.

September 1974, a number of members of the UN continued to not to recognise it notwithstanding the recognition from the UN.

Implied Recognition

The recognition may not necessarily in all cases take the form of a formal communication; it may rather be implied from circumstances. For example, a congratulatory message to a new state upon its attainment of independence may connote recognition. The conclusion of a bilateral treaty may signal recognition. Similarly, a vote in favour of the UN membership of a state would signify recognition by the voting state. However, surely making a legal claim against a state cannot imply the recognition of the latter.⁴ And generally recognition is made through official declarations.

Conditional Recognition

Recognition in certain cases can be conditional on the fulfilment of certain specified conditions. For example, by the Litvinov Assignment of 1933, the USA recognised the communist government of the USSR provided the latter avoids acts which may be prejudicial to the internal security of the USA and satisfies financial claims made by the nationals of the former, whose assets were nationalised. Interestingly, breach of the condition though may give rise to a claim for violation of international law; it does not take away the effects of recognition.

Withdrawal of Recognition

Sometimes a state may decide to withdraw a recognition granted earlier. This is particularly possible in case of a de facto recognition, where the recognition is generally only a factual and temporary assessment of the situation. However, though rare, it may occur in other contexts too. For example, by recognising the People's Republic of China, the USA withdrew the recognition of the Democratic Republic of China (Taiwan). Severance of diplomatic relations, a less drastic option, will connote some disapproval but needs to be distinguished from withdrawal of recognition.

Non-Recognition

Sometimes due to some gross illegality perpetrated, states may decide to not to recognise a factual situation. For example, following the declaration of independence of Rhodesia, the UN Security Council passed a resolution urging UN members not to recognise it (mainly because of its racist policies) and this was accepted by all countries except South Africa.

⁴ Ibid.

Questions: Does the judiciary have any role in the determination of the question whether a state should be recognised or at all has been recognised? What is the judiciary's role, if any, in relation to recognition of a foreign state or government?

Recognition of Governments

This issue arises only when there is a revolution or an unconstitutional government comes into power. Indeed, in practice, this issue may arise more frequently than the issue of recognition of states. However, in recent decades, countries such as the Australia, Belgium, Canada, France, and New Zealand etc. are limiting recognition to states and refraining from recognising governments.⁵ However, any non-recognition of a government has nothing to do with the recognition or legal character of the concerned state.

In, *Tinoco Arbitration Award*,⁶ Tinoco overthrew the Government of Costa Rica by use of force. Then election followed and for two years, Tinoco and a legislative assembly led by him, peacefully administered Costa Rica. Then in 1919, he was removed from power and the successor government repudiated certain obligations accepted by the Government of Tinoco towards British nationals. When the government of the UK sought to enforce the claims of its nationals, the question of the recognition of the government of Tinoco became a material issue. Justice Taft, the sole arbitrator, observed:

I must hold that from the evidence that the Tinoco government was an actual sovereign government. But it is urged that many leading Powers refused to recognize the Tinoco government, and that recognition by other nations is the chief and best evidence of the birth, existence and continuity of succession of a government. Undoubtedly recognition by other Powers is an important evidential factor in establishing proof of the existence of a government in the society of nations. What are the facts as to this? [The arbitrator found that Tinoco's government was recognised 20 states.]...

The non-recognition by other nations of a government claiming to be a national personality, is usually appropriate evidence that it has not attained the independence and control entitling it by international law to be classed as such. But when recognition *vel non*⁷ of a government is by such nations determined by inquiry, not into its *de facto* sovereignty and complete governmental control, but into its illegitimacy or irregularity of origin, their non-recognition loses something of evidential weight on the issue with which those applying the rules of international law are alone concerned. What is true of the non-recognition of the United States in its bearing upon the existence of a *de facto* government under Tinoco for thirty months is probably in a measure true of the non-recognition by her Allies in the European War. Such non-recognition for any reason, however, cannot outweigh the evidence disclosed by this record before me as to the *de facto* character of Tinoco's government, according to the standard set by international law...

It is further objected by Costa Rica that Great Britain by her failure to recognize the Tinoco government is estopped now to urge claims of her subjects dependent upon the acts and contracts of the Tinoco government. ...

The contention here ... precludes a government which did not recognize a *de facto* government from appearing in an international tribunal in behalf of its nationals to claim any rights based on the acts of such government.

To sustain this view a great number of decisions in English and American courts are cited to the point that a municipal court cannot, in litigation before it, recognize or assume the *de facto* character of a foreign government which the executive department of foreign affairs of the government of which the court is a branch has not recognized. This is clearly true. It is for the executive to decide

⁵ Harris, and Sivakumaran, above note 1.

⁶ *Aguilar-Amory and Royal Bank of Canada Claims (Great Britain v. Costa Rica)* 1 RIAA 369.

⁷ *Vel non* literally means or not.

questions of foreign policy and not courts. It would be most unseemly to have a conflict of opinion in respect to foreign relations of a nation between its department charged with the conduct of its foreign affairs and its judicial branch. But such cases have no bearing on the point before us. Here the executive of Great Britain takes the position that the Tinoco government which it did not recognize, was nevertheless a *de facto* government that could create rights in British subjects which it now seeks to protect. Of course, as already emphasized, its failure to recognize the *de facto* government can be used against it as evidence to disprove the character it now attributes to that government, but this does not bar it from changing its position. Should a case arise in one of its own courts after it has changed its position, doubtless that court would feel it incumbent upon it to note the change in its further rulings.

... It may be urged that it would be in the interest of the stability of governments and the orderly adjustment of international relations, and so a proper rule of international law, that a government in recognizing or refusing to recognize a government claiming admission to the society of nations should thereafter be held to an attitude consistent with its deliberate conclusion on this issue. Arguments for and against such a rule occur to me; but it suffices to say that I have not been cited to text writers of authority or to decisions of significance indicating a general acquiescence of nations in such a rule. Without this, it cannot be applied here as a principle of international law.⁸

In a similar line, a US Court of Appeals in *Wulfsohn v. Russian Socialist Federated Soviet Republic* also held that 'whether or not a government exists ... is a fact, not a theory'.⁹

Question: What can be the practical challenges of recognising a de jure government in exile? Can the reluctance to recognise governments as opposed to states be sometimes untenable?

De Jure and De Facto Recognition

De Jure recognition is a complete recognition; recognising states can have diplomatic relations and can sign treaties. De facto recognition is a sort of incomplete recognition, other states i.e. those who merely granted de facto recognition can have consular relations. History tells us that a state may recognise one government as de jure and another as de facto within the same territory concurrently. For example, during Spanish Civil War (1936-1939), the UK recognised the republican government as de jure and recognised the forces of General Franco as the de facto government.

In *Luther v Sagor*,¹⁰ in 1920, the defendant company bought a quantity of wood from the communist government of the USSR. The plaintiff, a Russian company argued that before being nationalised by the communist government, the wood was owned by it. According to the plaintiff, the Russian nationalising decree could not be accepted by the UK court, because the communist government had not been recognised by the government of the UK and his claim prevailed in the court of first instance. However, the defendant appealed and in the meantime, the UK government had recognised the communist government of the USSR de facto. The appellate court reversed the decision and the fact that recognition was only a de facto one was not considered to make any difference. Moreover, it was held that the recognition was effective from the date of assumption of power by the communist regime. Thus, it has been established that recognition once given would have retroactive effect. However, such retroactive effect would not be applicable if the executive authorities explicitly limit its recognition to a

⁸ Ibid, at 380-382, 384.

⁹ *Wulfsohn v Russian Socialist Federated Soviet Republic*, 234 138 N.E. 24,24 (N.Y. 1923).

¹⁰ [1921] 1 KB 456; [1921] 3 KB 532.

subsequent date. A related point is that although a retroactive de facto recognition would validate actions done by a de facto government that was hitherto unrecognised, such recognition would not invalidate the acts of the previous de jure government.¹¹

In *Haile Selassie v. Cable & Wirelees Ltd.* [No. 2],¹² the emperor of Ethiopia sued a British company for money due to him by a contract. However, at this time, the UK had already recognised Italian authorities as the de facto government in Ethiopia and emperor Selassie's government was recognised only as the de jure government. The court decided that since the claim concerned a debt and not persons or property situated in Ethiopia, the emperor was entitled, although Ethiopia was in fact controlled by Italy. However, before the matter was heard by the appellate court, the UK also extended de jure recognition to the government of Italy. Because of the retroactive effect of the recognition, the appellate court decided that now the emperor had lost his rights.

In *Republic of Somalia v Woodhouse Drake Carry Suisse S.A.*,¹³ in January 1991, the government of Somalia purchased a cargo of rice to be delivered to its capital. When the ship arrived in Mogadishu, the government was toppled and there was a civil war. The master of the ship deemed it was too dangerous to deliver the cargo and as per order of a commercial court in London, it was sold and the proceeds of the sale were paid into the court. In July 1991, following an international conference, Djibouti Agreement was signed which named Mr. Mahdi as the interim President. A suit was brought by a representative of the interim government for recovering the £2 million pound belonging to Somalia. The court rejected the claim. In the course of its decision, the court observed that:

[T]he factors to be taken into account in deciding whether a government exists as the government of a state are: (a) whether it is the constitutional government of the state; (b) the degree, nature and stability of administrative control, if any, that it of itself exercises over the territory of the state; (c) whether Her Majesty's Government has any dealings with it and if so what is the nature of those dealings; and (d) in marginal cases, the extent of international recognition that it has as the government of the state.¹⁴

In *Salimoff & Co. v Standard Oil Co. of New York*,¹⁵ a question arose about the enforcement of USSR nationalisation decree. The oil which was extracted from the nationalised oil field was sold to defendants. The plaintiffs, former owners of the property, Russian nationals, claimed the confiscatory decrees of the unrecognised communist government and the seizure of oil lands was of no effect in law. The US court rejected the claim and observed that 'to refuse to recognize that Soviet Russia is a government regulating the internal affairs of the country, is to give to fictions an air of reality which they do not deserve.'¹⁶ Clearly, the

¹¹ *Guaranty Trust Co. v US* 304 U.S. 126 (1938); *Civil Air Transport, Inc. va Central Air Transport Corp.*, [1953] AC 70 (P.C. 1952).

¹² [1939] 1 Ch 182.

¹³ [1993] QB 54.

¹⁴ *Ibid*, at 68.

¹⁵ (1933) 262 NY 220.

¹⁶ *Ibid*, at 227.

decision in this case is in striking contrast with the decision in *Luther v Sagor* discussed above. But of course, the Court had to take into account the following words of the Office of the Secretary of State ‘The refusal of the Government of the United States to accord recognition to the Soviet regime is not based on the ground that that regime does not exercise control and authority in territory of the former Russian Empire, but on other facts.’

Question: Can you trace any common pattern in the above cases?

Further Readings:

- Hsieh, Pasha L., ‘An Unrecognized State in Foreign and International Courts: The Case of the Republic of China on Taiwan’ 28 *Michigan Journal of International Law* 765 – 814
- Islam, Md. Rizwanul, ‘The Murky State Practice on Recognition of Governments and the National Unity Government in Myanmar’ (2022) 44(3) *Houston Journal of International Law* 447-474

Diplomatic and Consular Immunities

Diplomatic and consular staff (to a comparatively lesser extent) enjoy special immunities from the jurisdiction of the state in which they act. Indeed, most academic commentators observe that such immunities are among the earliest and least controversial expressions of international law. It may be pertinent to mention that while diplomats execute foreign policy, diplomacy is distinct from the foreign policy in the sense that the latter is in fact formulated by the governments (though obviously often based on or at least being somewhat influenced by the inputs from the diplomats).¹ The basic rationale behind a special set of rules for diplomatic and consular staff is sovereignty, sovereign equality, and practical convenience. The law at present is codified in the *Vienna Convention on Diplomatic Relations*, 1961. However, the preamble to the Convention unequivocally proclaims that ‘rules of customary international law should continue to govern questions not expressly regulated by the provisions of the present Convention’.

Questions: What sort of impact, if any, the advent of sophisticated modern communication technologies, may have had on the role and authority of diplomats? After coming into power in 1975, the Khmer Rouge government in Cambodia did not opt for having diplomatic relations with many western states although some of the latter group offered to resume diplomatic relations with the regime. What consideration/s may have prompted the choice made by the Khmer Rouge regime? Can you visualise the meaning of the term ‘megaphone diplomacy’? What may the underlying factor for this megaphone diplomacy and its outcome? Can you recall the decision of the ICJ in *The United States Diplomatic and Consular Staff in Tehran* case? What is the meaning of Nuncio? What is the meaning of the Dean of the Diplomatic Corps?

Freedom of Receiving States

It should be remembered that there is no inherent right to diplomatic relations and it is contingent on the mutual understanding between states.² Thus, Article 4 of the *Vienna Convention on Diplomatic Relations*, 1961 requires that the sending state must obtain the consent (technically referred to as *agrément*) of the receiving state before it sends its head of the diplomatic mission and the latter may reject such a proposal without assigning any reason whatsoever. Article 9 also gives the receiving state an unrestrained right to declare any diplomat *persona non grata* without assigning any reason whatsoever. Interestingly, a

¹ Sir Ivor Roberts (ed) *Satow's Diplomatic Practice* (Oxford University Press, 6th ed, 2009), at 1 [Roberts].

²Article 2 of the *Vienna Convention on Diplomatic Relations*, 1961 states that ‘The establishment of diplomatic relations between States, and of permanent diplomatic missions, takes place by mutual consent.’

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diplomatic agent may be declared a *persona non grata* even before she/he reaches the geographical territory of the receiving state. If a diplomatic agent is declared as a *persona non grata*, but the sending state fails to recall her/him, the receiving state may then refuse to treat that person as a diplomatic agent. The decision to declare non grata may be triggered either by the act of the agent or of the sending state, as retaliation or a United Nations Security Council resolution.

Question: Can a person who has been declared a *persona non grata* in one state be accredited as a diplomat in another state?

The Continuing Application of the Convention

Referring to 44 of the *Convention*, the continuing nature of the obligation of the receiving state subsisting even during an armed conflict, the International Court of Justice (ICJ) in the *Democratic Republic of Congo v Uganda*,³ has observed that ‘the Vienna Convention on Diplomatic Relations continues to apply notwithstanding the state of armed conflict that exist[s] between the Parties at the time of the alleged maltreatment.’⁴ Indeed, observations in an identical line have also been made by the ICJ in *The United States Diplomatic and Consular Staff in Tehran [Hostages]*.⁵

Functions of a Diplomatic Mission

The functions of a diplomatic mission are spelt out in Article 3 of the *Vienna Convention on Diplomatic Relations*, 1961. They include: representation of the sending state, protection of interests of the sending state and its nationals in the receiving state, conducting negotiations between states, ascertaining by *lawful means* conditions and developments in the receiving state and reporting that to the sending state, and promoting friendly relations between states.

Inviolability of the Premises of the Diplomatic Mission

Article 22 provides that:

1. The premises of the mission shall be inviolable. The agents of the receiving State may not enter them, except with the consent of the head of the mission.
2. The receiving State is under a special duty to take all appropriate steps to protect the premises of the mission against any intrusion or damage and to prevent any disturbance of the peace of the mission or impairment of its dignity.
3. The premises of the mission, their furnishings and other property thereon and the means of transport of the mission shall be immune from search, requisition, attachment or execution.

³ *Case concerning Armed Activities on the Territory of the Congo* (2005) ICJ Reports, 168 [*Congo v Uganda*].

⁴ *Ibid*, at para 323.

⁵ (1980) ICJ Reports 3 [*Hostages*]

Clearly, the above provision's aim is to allow the diplomatic mission to function without being impeded by any intruders of the receiving state. In 1896, when *Sun Yat Sen*,⁶ a Chinese political refugee (who subsequently went on to become the President of China) in the UK was held in the Chinese Legation in London, the British Court refused to intervene.⁷ However, upon condemnation by the British Government as an instance of abuse of diplomatic privileges, he was subsequently released by the Chinese authorities.⁸

The Supreme Court of the USA in *Boss v Barry*,⁹ has held that a statute of District of Columbia providing that congregating within 500 feet of the diplomatic premises and refusing to obey a dispersal order by police would be constitutional. The Court observed:

The need to protect diplomats is grounded in our Nation's important interest in international relations. As a leading commentator observed in 1758, "[i]t is necessary that nations should treat and hold intercourse together, in order to promote their interests, -- to avoid injuring each other, -- and to adjust and terminate their disputes." E. Vattel, *The Law of Nations* 452 (J. Chitty ed. 1844) (translation). This observation is even more true today, given the global nature of the economy and the extent to which actions in other parts of the world affect our own national security. Diplomatic personnel are essential to conduct the international affairs so crucial to the wellbeing of this Nation. In addition, in light of the concept of reciprocity that governs much of international law in this area...we have a more parochial reason to protect foreign diplomats in this country. Doing so ensures that similar protections will be accorded those that we send abroad to represent the United States, and thus serves our national interest in protecting our own citizens.¹⁰

However, in extraordinary circumstances, the principle of inviolability has not been honoured. In 1973, the Pakistani Minister for Foreign Affairs apprised the Iraqi Ambassador that he had evidence of smuggled arms being brought by the abuse of diplomatic immunities and then those were being stored at the Embassy of Iraq in Islamabad. The Minister requested permission for a search of the Embassy. Being refused permission by the Ambassador, armed police raided the premises of the Embassy and recovered arms which were supposed to be used by the rebels in the Province of Baluchistan. The Ambassador being declared a *persona non grata*, was recalled by Iraq and a joint communiqué was issued whereupon Iraq proclaimed its respect for territorial integrity of Pakistan.

In May 1999, during the crisis in Kosovo, the Chinese Embassy in Belgrade was bombed by the US which was followed by an official apology from the US authorities citing the incident as a mistake. Following the incident, the US Embassy in Beijing and Consulates in Chengdu and Guangzhou were attacked by protesters. In December, the USA agreed to pay China \$28 million as compensation and China agreed to pay the USA \$2.87 million as compensation.

⁶ Roberts, above note 1, at 102.

⁷ Ibid.

⁸ Ibid.

⁹ 485 U.S. 312 (1988).

¹⁰ Ibid, at 323-324.t

In *Congo v Uganda*, the ICJ has confirmed that:

The Vienna Convention on Diplomatic Relations not only prohibits any infringements of the inviolability of the mission by the receiving State itself but also puts the receiving State under an obligation to prevent others — such as armed militia groups — from doing so...¹¹

In 1984, during a demonstration by Libyan nationals outside the Libyan diplomatic mission in London, a lady police on duty was killed by a gunshot from the premises of the mission.¹² The Libyan authorities declined to allow the UK police to search the building. The Government of the UK honoured the inviolability of the premises but facing growing public outrage, severed diplomatic relations with Libya and allowed all persons within the mission to leave the UK. Subsequently, they searched the premises, in the presence of a Saudi diplomat recovered weapons and relevant forensic evidence.

Question: During the drafting stage of the Convention, a suggestion made by some negotiators that the head of a mission be required to cooperate with the authorities of the receiving state, in cases of grave emergencies such as fire etc. was rejected. Can you appreciate the reason/s for such rejection/s?

Protection of Diplomatic Bags

Article 27 of the *Convention* states:

1. The receiving State shall permit and protect free communication on the part of the mission for all official purposes. In communicating with the Government and the other missions and consulates of the sending State, wherever situated, the mission may employ all appropriate means, including diplomatic couriers and messages in code or cipher. However, the mission may install and use a wireless transmitter only with the consent of the receiving State.
2. The official correspondence of the mission shall be inviolable. Official correspondence means all correspondence relating to the mission and its functions.
3. The diplomatic bag shall not be opened or detained.
4. The packages constituting the diplomatic bag must bear visible external marks of their character and may contain only diplomatic documents or articles intended for official use.
5. The diplomatic courier, who shall be provided with an official document indicating his status and the number of packages constituting the diplomatic bag, shall be protected by the receiving State in the performance of his functions. He shall enjoy person inviolability and shall not be liable to any form of arrest or detention.
6. The sending State or the mission may designate diplomatic couriers ad hoc. In such cases the provisions of paragraph 5 of this article shall also apply, except that the immunities therein mentioned shall cease to apply when such a courier has delivered to the consignee the diplomatic bag in his charge...

¹¹ *Congo v Uganda*, above note 3, at para 342.

¹² Roberts, above note 1, at 103.

In the *Dikko Incident*, in July 1984, a former Nigerian Minister who was kidnapped, drugged, and placed in a crate (though unmarked as a diplomatic bag) with the alleged intention that he would be tried in criminal charges. The crate contained the label ‘diplomatic bag’ but lacked any ‘visible external marks’ as required by Article 27(4). It was opened by the British authorities although it was accompanied by a man with diplomatic status.

Questions: Can you envisage how the contents of diplomatic bags may stir some controversy in the sending state too?

Personal Immunities of Diplomatic Agents

Article 29 of the *Convention* provides that ‘[t]he person of a diplomatic agent shall be inviolable. He shall not be liable to any form of arrest or detention. The receiving State shall treat him with due respect and shall take all appropriate steps to prevent any attack on his person, freedom or dignity.’ Article 30(1) states that ‘[t]he private residence of a diplomatic agent shall enjoy the same inviolability and protection as the premises of the mission. Article 30(2) states that ‘[h]is papers, correspondence and, except as provided in paragraph 3 of article 31, his property, shall likewise enjoy inviolability.’

Article 31 of the *Convention* provides that:

1. A diplomatic agent shall enjoy immunity from the criminal jurisdiction of the receiving State.
He shall also enjoy immunity from its civil and administrative jurisdiction, except in the case of:
 - (a) A real action relating to private immovable property situated in the territory of the receiving State, unless he holds it on behalf of the sending State for the purposes of the mission;
 - (b) An action relating to succession in which the diplomatic agent is involved as executor, administrator, heir or legatee as a private person and not on behalf of the sending State;
 - (c) An action relating to any professional or commercial activity exercised by the diplomatic agent in the receiving State outside his official functions.
2. A diplomatic agent is not obliged to give evidence as a witness.
3. No measures of execution may be taken in respect of a diplomatic agent except in the cases coming under subparagraphs (a), (b) and (c) of paragraph 1 of this article, and provided that the measures concerned can be taken without infringing the inviolability of his person or of his residence.
4. The immunity of a diplomatic agent from the jurisdiction of the receiving State does not exempt him from the jurisdiction of the sending State.

Exception to the Immunity

In *Basfar v Wong*,¹³ Ms Wong, a migrant worker from the Philippines, brought a claim in an employment tribunal in the UK for breach of employment rights against Mr Basfar, a Saudi Arabian diplomat. Ms Wong claimed that she was hired to work in Saudi Arabia and then brought to the UK as a domestic worker for the Basfadr household in London, where Mr Basfar worked as a diplomat for Saudi Arabia. Ms Wong received a visa to enter the UK based on her employment contract declaring that she would work no more than eight hours a day, six days a week, with one month off each year and accommodation provided for by Mr Basfar.

She alleged that after arriving in the UK, she was forced to work for the diplomatic household in conditions amounting to modern slavery. She was not paid her agreed salary, her freedom of movement was controlled, and she was prevented from communicating with her family or anyone else. Ms Wong also claimed that she was compelled to work more than sixteen hours a day, often had to eat leftover food, and was subject to being called by offensive names by members of the Basfar household. Ms Wong's claimed she escaped the diplomatic household in May 2018 and then filed a claim before the employment tribunal.

Mr Basfar objected to the court's jurisdiction, arguing that he had diplomatic immunity. The tribunal held that the alleged facts fell within the 'commercial activity' exception defined in the VCDR and thus, refused to grant diplomatic immunity. Eventually, the case went to the UK Supreme Court. Mr Basfar argued that the employment of a domestic worker at a diplomat's private residence could not amount to the exercise of a commercial activity by a diplomatic agent within the meaning of Article 31(1)(c) of the VCDR. He also argued that even if a domestic worker had been trafficked to work within a diplomatic household, that did not impact the immunity of diplomatic agents from civil jurisdiction. The Supreme Court of the UK rejected his contention. The majority of the Court observed:

[i]t would be contrary to the purpose of conferring immunity on diplomatic agents to interpret the words "any ... commercial activity" in article 31(1)(c) as including activities incidental to the ordinary conduct of daily life in the receiving state, such as purchasing goods for personal consumption or purchasing medical, legal, educational or domestic services privately. Immunity from the civil jurisdiction of the local courts is justified in relation to such activities to ensure that diplomatic agents and their families can live in the receiving state without the impediment arising from having to deal with civil claims against them...

We cannot accept that exploiting a domestic worker by compelling her to work in circumstances of modern slavery is comparable to an ordinary employment relationship of a kind that is incidental to the daily life of a diplomat (and his family) in the receiving state. There is a material and qualitative difference between these activities. Employment is a voluntary relationship, freely entered into and governed by the terms of a contract. Subject to contractual provisions about notice, employees are free to leave when they please, and cannot be compelled to stay by injunction even if they leave in breach of contract. By contrast, the essence of modern slavery is that it is not freely undertaken. Rather, the work is extracted by coercion and the exercise of control over the victim. This usually involves exploiting circumstances of the victim which make her specially vulnerable to abuse. Those constraints generally make it impossible or very difficult for the worker to leave.

¹³ [2022] UKSC 20, ILDC 3491 (UK 2022).

That is why, on the assumed facts, we describe Ms Wong's departure from service with Mr Basfar as an "escape".¹⁴

Regard should also be had to *Convention on the Prevention and Punishment of Crimes against Internationally Protected Persons, including Diplomatic Agents*, 1973, Article 3(2) of which states that 'Each State Party shall ... take such measures as may be necessary to establish its jurisdiction over these crimes in cases where the alleged offender is present in its territory and it does not extradite him pursuant to article 8 to any of the States mentioned in paragraph 1 of this article.'

Only in exceptional cases of self-defence or for the protection of human life, a diplomatic staff may be arrested or detained as has been recognised by the ICJ in *Hostages* where it has been observed that:

The fundamental character of the principle of inviolability is, moreover, strongly underlined by the provisions of Articles 44 and 45 of the Convention of 1961 ... Even in the case of armed conflict or in the case of a breach in diplomatic relations those provisions require that both the inviolability of the members of a diplomatic mission and of the premises, property and archives of the mission must be respected by the receiving State. Naturally, *the observance of this principle does not mean ... that a diplomatic agent caught in the act of committing an assault or other offence may not, on occasion, be briefly arrested by the police of the receiving State in order to prevent the commission of the particular crime.*¹⁵

Questions: From the quoted paragraph of the ICJ's judgement in *Hostages*, what sort of arrests and detention would appear to be authorised as exceptions? When Swedish police disarmed the Ambassador of Yugoslavia who was lying under a blanket in a sandpit waving a loaded pistol, could it be said that they violated his personal inviolability in breach of international law? Would the personal inviolability of diplomats legally require receiving states to concede to the demands of kidnappers of diplomats?

Article 36 of the Convention provides that:

1. The receiving State shall, in accordance with such laws and regulations as it may adopt, permit entry of and grant exemption from all customs duties, taxes, and related charges other than charges for storage, cartage and similar services, on:

(a) Articles for the official use of the mission;

(b) Articles for the personal use of a diplomatic agent or members of his family forming part of his household, including articles intended for his establishment.

2. The personal baggage of a diplomatic agent shall be exempt from inspection, unless there are serious grounds for presuming that it contains articles not covered by the exemptions mentioned in paragraph 1 of this article, or articles the import or export of which is prohibited by the law or controlled by the quarantine regulations of the receiving State. Such inspection shall be conducted only in the presence of the diplomatic agent or of his authorized representative.

Article 37 the Convention provides that:

¹⁴ Ibid, [34], [43].

¹⁵ *Hostages*, above note 5, at para 86.

1. The members of the family of a diplomatic agent forming part of his household shall, if they are not nationals of the receiving State, enjoy the privileges and immunities specified in articles 29 to 36.

2. Members of the administrative and technical staff of the mission, together with members of their families forming part of their respective households, shall, if they are not nationals of or permanently resident in the receiving State, enjoy the privileges and immunities specified in articles 29 to 35, except that the immunity from civil and administrative jurisdiction of the receiving State specified in paragraph 1 of article 31 shall not extend to acts performed outside the course of their duties. They shall also enjoy the privileges specified in article 36, paragraph 1, in respect of articles imported at the time of first installation.

3. Members of the service staff of the mission who are not nationals of or permanently resident in the receiving State shall enjoy immunity in respect of acts performed in the course of their duties, exemption from dues and taxes on the emoluments they receive by reason of their employment and the exemption contained in article 33.

4. Private servants of members of the mission shall, if they are not nationals of or permanently resident in the receiving State, be exempt from dues and taxes on the emoluments they receive by reason of their employment. In other respects, they may enjoy privileges and immunities only to the extent admitted by the receiving State. However, the receiving State must exercise its jurisdiction over those persons in such a manner as not to interfere unduly with the performance of the functions of the mission.

Waiver of Immunities

The sending state may at any time waive the immunity of its diplomatic agents. Again, if a diplomatic agent files a case in the receiving state, should the other party raise a counter-claim, it can be presumed that he has waived his immunities.¹⁶

Duties of Diplomatic Agents

Article 41 of the *Vienna Convention on Diplomatic Relations*, 1961 provides that:

1. Without prejudice to their privileges and immunities, it is the duty of all persons enjoying such privileges and immunities to respect the laws and regulations of the receiving State. They also have a duty not to interfere in the internal affairs of that State.

2. All official business with the receiving State entrusted to the mission by the sending State shall be conducted with or through the Ministry for Foreign Affairs of the receiving State or such other ministry as may be agreed.

3. The premises of the mission must not be used in any manner incompatible with the functions of the mission as laid down in the present Convention or by other rules of general international law or by any special agreements in force between the sending and the receiving State.

Special Provisions on Appointment of Non-nationals

Article 8 *Vienna Convention on Diplomatic Relations*, 1961 states that:

¹⁶ *High Commissioner for India v Ghosh* [1960] 1 QB 134.

1. Members of the diplomatic staff of the mission should in principle be of the nationality of the sending State.

2. Members of the diplomatic staff of the mission may not be appointed from among persons

having the nationality of the receiving State, except with the consent of that State which may be withdrawn at any time.

3. The receiving State may reserve the same right with regard to nationals of a third State who are not also nationals of the sending State.

Article 38(1) of the *Vienna Convention* restricts the applicability of immunity to diplomatic agents who are national or permanent resident in the receiving state in the following terms:

Except insofar as additional privileges and immunities may be granted by the receiving State, a diplomatic agent who is a national of or permanently resident in that State shall enjoy only immunity from jurisdiction, and inviolability, in respect of official acts performed in the exercise of his functions.

The justification for this is that they would otherwise remain totally unaccountable for their actions.

Immunities of Consular Agents

Consular rights and immunities are now governed by the *Vienna Convention on Consular Relations*, 1963. The fundamental feature that distinguishes consular agents from diplomatic agents is that unlike the latter are not entrusted with the responsibility of performing transactions between two states and consequently, they do not enjoy the same degree of immunities as diplomatic agents do. In particular, consular agents are only entitled to personal immunity from criminal jurisdiction and civil jurisdiction for acts committed in their *official functions* as consular agents.

Consular agents perform certain administrative and commercial transactions on behalf of the sending state, provide assistance to the nationals of that state, perform notarial functions, and issue visas etc. They are not based only in the capital of the receiving state but also in other cities of importance. Of particular importance (though not from the viewpoint of consular agents but normal citizens staying overseas) is Article 36(1) of the *Vienna Convention on Consular Relations*, 1963 which reads as below:

(a) consular officers shall be free to communicate with nationals of the sending State and to have access to them. Nationals of the sending State shall have the same freedom with respect to communication with and access to consular officers of the sending State;

(b) if he so requests, the competent authorities of the receiving State shall, without delay, inform the consular post of the sending State if, within its consular district, a national of that State is arrested or committed to prison or to custody pending trial or is detained in any other manner. Any communication addressed to the consular post by the person arrested, in prison, custody or detention shall be forwarded by the said authorities without delay. The said authorities shall inform the person concerned without delay of his rights under this subparagraph;

(c) consular officers shall have the right to visit a national of the sending State who is in prison, custody or detention, to converse and correspond with him and to arrange for his legal representation. They shall also have the right to visit any national of the sending State who is in prison, custody or detention in their district in pursuance of a judgement. Nevertheless, consular officers shall refrain from taking action on behalf of a national who is in prison, custody or detention if he expressly opposes such action.

In *Lagrand*, the ICJ has observed that ‘Article 36 paragraph 1, creates individual rights, which, by virtue of Article 1 of the Optional Protocol, may be invoked in this Court by the national State of the detained person.’¹⁷

Immunities of International Organisations

The official premise and staff of international organisation may also enjoy analogous immunities but these are generally regulated by distinct treaties. For example, the *Convention on the Privileges and Immunities of the United Nations*, 1946 deals with the immunities of the UN and its officials.

Question: Can you appreciate the potential reason/s for the relatively nascent and uncertain status of immunities for international organisations under customary international law?

¹⁷ (*Germany v The United States of America*) (Merits) ICJ Reports (2001) 466, at para 77.

Law 403

Class Notes

State Territories

States, the pre-dominant subjects of international law, enjoy sovereign powers within their territorial limits (subject, of course, to some limits as imposed by the relevant rules of international law, e.g. the human rights norms) and hence, the question of territoriality can be important in myriad ways. Most importantly, without a territory, an entity cannot become a state and thus, cannot operate on the international plane as the principal subject of international law and consequently, cannot enjoy immunity from interference by other states in its internal affairs. Similarly, in the context of national law, without a territory, a state cannot have jurisdiction over other entities. While state territories would generally be contiguous that is bound by a single border; it need not necessarily be contiguous (for example, Indonesia is an archipelago).

Since, in the contemporary world, there would hardly be any inhabitable territory which is not subject to a sovereign power, the nexus between sovereignty and territory is even more prominent today.¹ Having said that, one should remember that not all territories on the planet earth must belong to a particular state but rather sometimes territories can be *terra nullius*, that is land belonging to none and some others may be *res communis* that is territories not to be subjected to the sovereign control of a particular state.² It is important to note that in some cases, the rules on state territory in international law, has, on occasions only recognised existing political realities and have, in effect, legitimised the use of power.³

Question: What factor/s may have somewhat diminished the territorial exclusivity of states?

Modes of Acquisition of Title to Additional Territory

The basis of various classic methods of acquisition of territory in international law is founded upon Roman law. However, in practice, any water-tight classification among the following modes of acquisition of territories may not really be possible because in a single case, more than one means may apply.

Occupation of *Terra Nullius*

Under international law, states have a right to occupy *terra nullius*. Such an occupation should be by the state (or backed by state sanction), not purely by private parties. On this point, in *Anglo-Norwegian Fisheries Case*, Sir Arnold McNair has observed that:

¹ Antonio Cassese, *International Law* (Oxford University Press, 2nd ed, 2005) 82-83.

² The High seas or outer space would fall into this category.

³ Malcolm N. Shaw, *International Law* (Cambridge University Press, 6th ed, 2008) 488-489.

Another rule of law that appears to me to be relevant to the question of historic title is that some proof is usually required of the exercise of State jurisdiction, and that the independent activity of private individuals is of little value unless it can be shown that they have acted in pursuance of a licence or some other authority received from their Governments or that in some other way their Governments have asserted jurisdiction through them.⁴

Occupation needs to be effective and must be accompanied by an intention to occupy the territory, with a design of exercising sovereign powers to the occupied territory. In the *Island of Palmas*,⁵ as a consequence of the Spanish-American War of 1898, through the Treaty of Paris of 1898, Spain purportedly ceded the Philippines to the USA. In 1906, a state official of the USA visited the Island of Palmas, around two miles long and one mile wide, believed by the USA as part of the territory ceded to it by Spain, but found the Dutch flag flying there. However, the Netherlands claimed title to the island on the basis of its exercise of sovereign rights since the 17th century. Max Huber, the arbitrator, accepted the Dutch argument on the basis of ‘the actual continuous and peaceful display of state functions’⁶ as epitomised by the performance of administrative functions by Dutch East India Company. Thus, Max Huber, the arbitrator found that Spain could not pass on to the USA something which did not belong to it.

In *Clipperton Island*,⁷ both Mexico and France claimed title over an island which was uninhabited. According to King Victor Emmanuel III, the Arbitrator, the actual taking of possession as opposed to a nominal taking of possession was necessary for a valid occupation to take place, but at the same time, he found that such a possession may take various forms depending on the nature of the disputed territory. In this case, the Arbitrator had found that a proclamation of sovereignty by an officer of French Navy in 1858 which was subsequently published in a journal of Honolulu would suffice to confer title to France. This was despite the fact that for a few decades following this, France did not put in place any effective administration on the island. Regarding the Mexican claim, the arbitrator observed that:

[T]his island had been discovered by the Spanish Navy and, by virtue of the law then in force, fixed by the Bull of Alexander VII, had belonged to Spain, and afterwards, from 1836, to Mexico as the successor state to the Spanish state.

But according to the actual state of our knowledge, it has not been proven that this island ... had been actually discovered by the Spanish navigators... However, even admitting that the discovery had been made by Spanish subjects, it would be necessary, to establish the contention of Mexico to prove that Spain not only had the right, as a state, to incorporate the island in her possessions, but also had effectively exercised the right. But that has not been demonstrated at all...

⁴ Dissenting opinion of Sir Arnold McNair in *Fisheries Case*, (*United Kingdom v. Norway*) ICJ Reports (1951) In a similar vein, in the current century, in *Sovereignty over Pulau Ligitan and Pulau Sipadan Case*, (*Indonesia v Malaysia*) ICJ Reports (2002), 625, at 683, Indonesia’s claim on the basis of private fishing in the disputed territory was disregarded by the ICJ, observing that ‘activities by private persons cannot be seen as *effectivités* [effective control] if they do not take place on the basis of official regulations or under governmental authority.’

⁵ *Island of Palmas Arbitration*, (*The Netherlands v The United States of America*) (1928) 2 RIAA 829.

⁶ *Ibid*, at 840.

⁷ *Clipperton Island*, (*France v Mexico*), (1932) 26 *American Journal of International Law* 390.

Consequently, there is ground to admit that, when in November, 1858, France proclaimed her sovereignty over Clipperton, that island was in the legal situation of *territorium nullius*, and therefore, susceptible to occupation.⁸

In ***Eastern Greenland***,⁹ Denmark had colonies in other parts of Greenland and claimed sovereignty over the whole of Greenland. Norway formally claimed title over Eastern Greenland only in July 1931. In the course of settling their competing claims, the PCIJ observed that:

[A] claim to sovereignty based not upon some particular act or title such as a treaty of cession but merely upon continued display of authority, involves two elements each of which must be shown to exist : the intention and will to act as sovereign, and some actual exercise or display of such authority.

Another circumstance which must be taken into account by any tribunal which has to adjudicate upon a claim to sovereignty over a particular territory, is the extent to which the sovereignty is also claimed by some other Power. In most of the cases involving claims to territorial sovereignty which have come before an international tribunal, there have been two competing claims to the sovereignty, and the tribunal has had to decide which of the two is the stronger. One of the peculiar features of the present case is that up to 1931 there was no claim by any Power other than Denmark to the sovereignty over Greenland. Indeed, up till 1921, no Power disputed the Danish claim to sovereignty.

It is impossible to read the records of the decisions in cases as to territorial sovereignty without observing that in many cases the tribunal has been satisfied with very little in the way of the actual exercise of sovereign rights, provided that the other State could not make out a superior claim. This is particularly true in the case of claims to sovereignty over areas in thinly populated or unsettled countries.¹⁰

Question: Can you recall the relevance of Ihlen Declaration in the decision of the PCIJ in Eastern Greenland?

In the advisory opinion on ***Western Sahara***, the ICJ held that state practice of the relevant time (that is the period of colonisation) indicated that territories inhabited by tribes or peoples having a social and political organisation were not regarded as *terrae nullius*.¹¹

Question: What was the legal means of acquisition of British political power over Indian sub-continent?

Prescription

States may acquire territories through the effective and unopposed enjoyment of title over a territory for a long period of time in circumstances where there is no apparent legal basis

⁸ Ibid, 392-393.

⁹ *Legal Status of Eastern Greenland (Denmark v Norway)*, (1933) PCIC Series A/B No. 53.

¹⁰ Ibid, 45-46.

¹¹ *Western Sahara (Advisory Opinion of 16 October, 1975)*, ICJ Reports, 12, 39.

for such enjoyment. Thus, acquisition of title by prescription is, essentially a factual recognition of the state of things and may create legal rights. Unlike comparable concept in national law (adverse possession), acquisition of prescriptive title in international law is not contingent on the continuation of possession for a fixed period of time.

In the *Temple of Preah Vihear*,¹² there was a dispute regarding frontier between Thailand and Cambodia. The frontier was settled in 1904 by a treaty between Thailand and France (as it was then the colonial government of Cambodia) providing for a delimitation commission. The survey of the Commission was completed, but the precise position of the Preah Vihear Temple area was uncertain. The Thai authorities accepted a map submitted to them by the French authorities which showed the temple area as being part of Cambodian territories. The Thai authorities did not object to such display but rather asked for more copies of the map. A Thai prince also visited the area when the French flag was flying in the respective area and no protest was forthcoming. On the basis of these, inter alia, the ICJ held that Thailand was to be estopped from denying its sovereignty over the area.

Question: Because of the elapse of significant time, can you envisage what other legal consideration would have prompted the ICJ to hold in favour of Cambodia?

Cession

Cession refers to a peaceful transfer of territory from an existing sovereign state to another and thus, it entails the replacement of one sovereign by another. While cession would typically take place by a treaty following war or some other form of hostility, there may be other modes of ceding territories. For instance, in 1867 the USA purchased Alaska from Russia and in 1916, the USA purchased some territories in the West Indies from Denmark. Cession of territories can also be time bound, for instance, Hong Kong was leased by China to the UK for 99 years (1898 to 1997).

Conquest or Subjugation

Conquest of territories taking place by the illegal use of force was tolerated until the 20th century. However, by the *Kellogg-Briand Pact*¹³ or *General Treaty for Renunciation of War as an Instrument of National Policy* (also known as Paris Pact) of 1928, states have formally renounced war as an instrument of national policy. Similarly, Article 2(4) of the *United Nations Charter* proclaims that ‘All Members shall refrain in their international relations from the threat or use of force against the territorial integrity or political independence of any state, or in any other manner inconsistent with the Purposes of the United Nations.’

In a similar vein, the *Declaration of Principles of International Law by the United Nations General Assembly*, 1970 states that ‘the territory of state shall not be the object of

¹² Case concerning the *Temple of Preah Vihear (Cambodia v Thailand)* ICJ Reports (1962) 3.

¹³ Named after the key authors of the instrument, Frank B. Kellogg, the then United States Secretary of State and Aristide Briand, Foreign Minister of France.

acquisition by another state resulting from the threat or use of force. No territorial acquisition resulting from the threat or use of force shall be recognised as legal.’ While notwithstanding such unequivocal pronouncement, the annexation of territories by force has taken place; such use of force is treated as illegal. To take an example, the Iraqi annexation of Kuwait in 1990 was declared by the Security Council Resolution No 662 of 1990 as void.

Accretion

Accretion means the natural geographical process through which new land may be formed and get attached to existing land. Such process may, for instance, take place by the creation of islands in river mouths. Of course, a state may acquire territories through this type of geographical happenings.

Title over Some Distinct Types of Territories

Common Heritage of Mankind

There is an emerging concept of common heritage of mankind, over which no state may exercise sovereign power. For example, in 1970, the UN General Assembly adopted the *Declaration of Principles Governing the Sea-Bed and the Ocean Floor, and the Subsoil Thereof, beyond the Limits of National Jurisdiction* proclaimed that the areas covered by the Declaration are the common heritage of mankind. The same principle has been enshrined in Articles 136 and 137 of the *United Nations Convention on the Law of the Sea*, 1982. A similar pronouncement on the common heritage of mankind has also found its expressions in Article XI of the *Agreement Governing the Activities of States on the Moon and Other Celestial Bodies*, 1979.

The idea of the common heritage of humankind though akin to but somewhat dissimilar from *res communis* in that in case of the latter all states have freedom of access and exploration, but in case of the former the rights of exploration and exploitation is much more regulated and based on the notion of *equitable distribution* among states. However, perhaps needless to say that there is a yawning gap between having an aspiration for equitable distribution and operationalising a regime for ensuring such equitable distribution.

The Antarctic Region

Because of its strategic location, the Antarctic region has perhaps unsurprisingly been the subject of various conflicting claims of sovereignty by different states, at different points of time. However, by the signing of the *Antarctic Treaty*, 1961, the conflicting claims of the state parties have been suspended during the subsistence of the Treaty. In particular, Article IV (2) of the Treaty provides that:

No acts or activities taking place while the present Treaty is in force shall constitute a basis for asserting, supporting or denying a claim to territorial sovereignty in Antarctica or create any rights of sovereignty in Antarctica. No new claim, or enlargement of an existing claim, to territorial sovereignty in Antarctica shall be asserted while the present Treaty is in force.

Subsequently, in 1998 a Convention was signed for regulating the mineral exploitation in the region, however, due to vehement opposition by some states, a new regime has been set up by the *Protocol on Environmental Protection to the Antarctic Treaty*, 1991. Of particular importance is Article 7 of this Protocol which in precise terms states that ‘Any activity relating to mineral resources, other than scientific research, shall be prohibited.’

The Air Space and Outer Space

The state’s sovereignty is by no means limited to its land surface but extends to airspace. International law does not recognise any right of innocent passage through the airspace of a particular state. Thus, aircrafts must have prior arrangements for flying over the airspace of a state and can be asked to land or may even be intercepted, if they are found to intrude. However, for smooth international aviation, international agreements (often by virtue of bilateral agreements) allow five freedoms of the air: namely, to fly across the territory of a state without landing (first freedom), to land for non-traffic purposes (second freedom),¹⁴ to put down passengers, cargo or mail, in the territory of another state, traffic coming from the home state of the carrier (third freedom), to take on passengers, cargo or mail, traffic destined for the home state of the carrier (fourth freedom), and to take on passengers, cargo or mail destined to a third state and put down passengers, cargo or mail in that state from another one (fifth freedom).¹⁵

Beyond air space (though it is not precisely known or agreed upon that where it ends), that is, in the outer space the principle of *res communis* applies. Of particular importance is the *Treaty on Principles Governing the Activities of States in the Exploration and Use of Outer Space, including the Moon and Other Celestial Bodies*, 1967. Article 4 of this Treaty states that:

States Parties to the Treaty undertake not to place in orbit around the earth any objects carrying nuclear weapons or any other kinds of weapons of mass destruction, install such weapons on celestial bodies, or station such weapons in outer space in any other manner. The moon and other celestial bodies shall be used by all States Parties to the Treaty exclusively for peaceful purposes.

Probably the most important facet of exploratory activities on the outer space relates to telecommunication networks. The legal regime on this is basically regulated by the International Telecommunications Union.

Question: May a state shoot down a civilian aircraft if it does not comply with an order of landing?

Further readings:

Antsygina, Dr. Ekaterina, ‘The Legal Debate Surrounding Greenland and Denmark: Unpacking Donald Trump’s Statements’, *EJIL Talk* <<https://www.ejiltalk.org/the-legal->

¹⁴For example, A flight from a home country can land in another country for purposes other than carrying passengers, such as refuelling, maintenance, or emergencies. All these may happen without embarking or disembarking passengers or cargo.

¹⁵ All of these apply only in respect of scheduled international air services.

[debate-surrounding-greenland-and-denmark-unpacking-donald-trumps-statements/](#)>

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January 2025

Brunk, Ingrid and Monica Hakimi, 'The Prohibition of Annexations and the Foundations of Modern International Law' (2024) 118 *American Journal of International Law* 417-467

Law 421

Class Notes

Legal Aspects of United Nations

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In the aftermath of the Second World War, the United Nations came into being with a design for working for international peace and security. Indeed, the leaders of the Allied Forces commenced their negotiations for the United Nations even before the War ended. The *Charter of the United Nations* was officially signed on 26 June 1945, in San Francisco, USA and it came into force on 24 October 1945. According to Article 1 of the *Charter of the United Nations*, the purposes of the organisation are:

1. To maintain *international peace and security*, and to that end: *to take effective collective measures for the prevention and removal of threats to the peace, and for the suppression of acts of aggression or other breaches of the peace*, and to bring about by peaceful means, and in conformity with the principles of justice and international law, adjustment or settlement of international disputes or situations which might lead to a breach of the peace;
2. To develop *friendly relations among nations* based on respect for the principle of equal rights and self-determination of peoples, and to take other appropriate measures to strengthen universal peace;
3. To achieve international co-operation in solving international problems of an economic, social, cultural, or humanitarian character, and in promoting and encouraging *respect for human rights and for fundamental freedoms* for all without distinction as to race, sex, language, or religion; and
4. To be a centre for *harmonizing the actions* of nations in the attainment of these common ends.
[Emphasis added]

The United Nations Secretariat is based in New York. The United Nations has six principal organs, namely: General Assembly, Security Council, Economic and Social Council, Trusteeship Council, Secretariat, and International Court of Justice (ICJ).

Questions: Since the early days of the United Nations until now, do you note any shift in the key priorities of the United Nations? If you do, how would you explain the impulse behind such shifts? Can you recall which case has confirmed the international legal personality of the United Nations? What was the textual basis for such finding?

Membership of the United Nations Organization

Article 4 of the *United Nations Charter* states that:

Membership in the United Nations is open to all other peace-loving states which accept the obligations contained in the present Charter and, in the judgment of the Organization, are able and willing to carry out these obligations.

The admission of any such state to membership in the United Nations will be effected by a decision of the General Assembly upon the recommendation of the Security Council.

Perhaps needless to say that complex political considerations are often at play during the voting on the application for membership of states in the United Nations. There are instances of veto power being exercised to prevent a state from becoming a member of the United Nations. e.g. veto cast by China against Bangladesh in 1972 and by the USA against Angola and Vietnam. However, the ICJ in its advisory opinion in *The Conditions of Admission of a State to Membership of the United Nations*,¹ has opined that only the conditions enumerated in Article 4 should be taken into account in considering an application for UN membership.

General Assembly:

General Assembly is the plenary body of the United Nations, and in it, all UN members have equal voting rights irrespective of their territorial size, population, economic, or military clout.² As per Article 18 of the *Charter of the United Nations*, decisions on important questions such as: recommendations with respect to the maintenance of international peace and security, the election of the non-permanent members of the Security Council, the election of the members of the Economic and Social Council, the admission of new Members and the expulsion of Members, and budgetary questions etc. can only be made by a two-third majority of the Assembly members. Save in the case of budget, as per Article 17 of the *Charter of the United Nations*, the role of the General Assembly is essentially restricted to the issuance of recommendations. However, the resolutions passed by the Assembly may be considered as evidence of state practice and thus, gradually lead to the creation of customary law. And of course, **when resolutions reflect customary international law**, they will naturally be binding on states.

It is important to note the finding of the ICJ in the *Legal Consequences for States of the Continued Presence of South Africa in Namibia (South-West Africa)* [Namibia Case] that ‘it would not be correct to assume that, because the General Assembly is in principle vested with recommendatory powers, it is debarred from adopting, in specific cases within the framework of its competence, resolutions which make determinations or have operative design.’³

Questions: Which organ of the United Nations adopted the *Universal Declaration of Human Rights*, 1948? What is its current legal status?

Six Committees of the General Assembly

- First Committee (disarmament and international security)
- Second Committee (economic and financial matters)
- Third Committee (social, humanitarian and cultural matters)

¹ (1948) ICJ Reports 57.

² Article 18(1) of the *Charter of the United Nations*.

³ (1971) ICJ Reports 16, at 50.

- Fourth Committee (special political and decolonization)
- Fifth Committee (administrative and budgetary matters)
- Sixth Committee (legal matters)

Security Council

The UN Security Council is given the primary responsibility for the maintenance of international peace and security. It consists of fifteen member states of which five are permanent (China, France, Russia, the United Kingdom, and the USA) and the other ten are temporarily elected for a period of two years and they are elected on the basis of a sort of geographical grouping of states. Each of the permanent member states retains a veto power. Article 27 of the *United Nations Charter* provides that ‘decisions of the Security Council on all but procedural matters can only be made by an affirmative vote of nine members including the concurring votes of each of the permanent members. In the *Namibia Case*,⁴ the ICJ has confirmed that abstention from voting by a permanent member of the UN Security Council does not mean the exercise of veto. It has also observed that the binding power of the Security Council is broader than Article 25 of the Charter and has commented that:

It has been contended that Article 25 of the Charter applies only to enforcement measures adopted under Chapter VII of the Charter. It is not possible to find in the Charter any support for this view. Article 25 is not confined to decisions in regard to enforcement action but applies to "the decisions of the Security Council" adopted in accordance with the Charter. Moreover, that Article is placed, not in Chapter VII, but immediately after Article 24 in that part of the Charter which deals with the functions and powers of the Security Council. If Article 25 had reference solely to decisions of the Security Council concerning enforcement action under Articles 41 and 42 of the Charter, that is to say, if it were only such decisions which had binding effect, then Article 25 would be superfluous, since this effect is secured by Articles 48 and 49 of the Charter.⁵

Specifically, it may be mentioned that the admission of new members and the suspension of membership rights, appointment of the Secretary-General, and any amendment to the UN Charter etc. are all subject to the veto powers. Veto power is a reflection of the power politics in the post-World War II era (mainly the outcome of an insistence by the Union of Soviet Socialist Republic [USSR] for such a power to protect it from the bias of the capitalist bloc). Of course, the status and power of the permanent members are not immutable, and emerging economic powers have floated their case for permanent membership of the Security Council but so far without any success; as status quo is not easy to break. The decisions (but not recommendations) of the Security Council are *binding on all member states* of the United Nations.⁶

The two most important areas of Security Council's powers are in the realm of peaceful settlement of disputes and enforcement measures. In some areas such as the admission of new members, the expulsion of members, and election of Judges to the ICJ etc., the Security Council has to act in concert with the General Assembly. Since the demise of the Cold War, the activities of the Security Council may have been somewhat re-vitalised however, inter alia, the

⁴ Ibid, at 22.

⁵ Ibid, at 52.

⁶ Article 25 of the *Charter of the United Nations*.

aggression of the USA and the UK against Iraq in 2003, without any direct authority from the Security Council has seriously undermined its authority.

Questions: What was the rationale behind providing the veto power? Can you mention what is the cardinal principle of international law which is ignored by the grant of veto power? In the first few decades of the United Nations, which country maybe the most frequent user of veto powers?

Economic and Social Council

As its name would denote, its activities are mainly in the spheres of economic and social matters. Like the General Assembly, its decisions are not binding upon the member states of the United Nations. It consists of 54 member states who are elected by the General Assembly for a period of three years.⁷ Article 62(1) of *Charter of the United Nations* authorises the Economic and Social Council to initiate studies and reports concerning international economic, social, cultural, educational, health, and other related matters and make recommendations with respect to any such matters to the General Assembly, to the member states of the United Nations, and to the relevant specialized agencies of the United Nations.

Trusteeship Council

It was set up for supervising the trust territories after the Second World War. II. The trusteeship regime was basically set up as a successor of the mandate system under the League of Nations. However, after the emergence of an independent Palau, the last surviving trust territory, in October 1994, the operation of this organ of the United Nations ceased from 1 November 1994.

Secretariat

The Secretariat of the United Nations consists of the Secretary-General, and staff, who in truth operate like international civil servants and are entitled to certain privileges and immunities from the jurisdiction of states. Article 97 of the *Charter of the United Nations* provides that the Secretary-General, the chief administrative officer of the organisation, would be appointed by the General Assembly upon the recommendation of the Security Council. Thus, in essence, his functions are constitutionally administrative in nature, however; she/he can also perform other important roles. For instance, Article 99 envisages that the ‘Secretary-General may bring to the attention of the Security Council any matter which in his opinion may threaten the maintenance of international peace and security.’

Questions: Can you recall a recent invocation of Article 99 of the Charter?

Specialized Agencies of the United Nations

In the United Nations regime, there is also the presence of specialized agencies which are legally autonomous international organisations with their distinct rules, membership, and financial resources but nevertheless are in a relationship with the United Nations through some

⁷ Article 61 of the *Charter of the United Nations*.

sort of negotiated agreements. Some of them pre-date the First World War, some were associated with the League of Nations, and others were created almost concurrently with the United Nations and some others are created by the United Nations to fulfil emerging necessities. The first such specialized agency is the International Labour Organization which was set up in 1919 and it became a specialized agency of the United Nations in 1946.

International Peace and Security, Peaceful Settlement of Disputes and the United Nations Regime

As has already been pointed out, one of the key impetuses to the establishment of the United Nations is engendering international peace and security. And the actions of the Organisation in this area have often been controversial. The principal organ of the United Nations in this regard is the Security Council. Article 4 of the *United Nations Charter* states that '[t]he Security Council may investigate any dispute, or any situation which might lead to international friction or give rise to a dispute, in order to determine whether the continuance of the dispute or situation is likely to endanger the maintenance of international peace and security.'

Again, in the realm of security, Article 12(1) of the *United Nations Charter* states that 'While the Security Council is exercising in respect of any dispute or situation the functions assigned to it in the present Charter, the General Assembly shall not make any recommendation with regard to that dispute or situation unless the Security Council so requests.' However, in the advisory opinion on the *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*,⁸ the ICJ has clarified the embargo and has limited its scope somewhat. It has stated that:

Under Article 24 of the Charter the Security Council has "primary responsibility for the maintenance of international peace and security". In that regard it can impose on States "an explicit obligation of compliance if for example it issues an order or command . . . under Chapter VII" and can, to that end, "require enforcement by coercive action" (*Certain Expenses of the United Nations (Article 17, paragraph 2, of the Charter), Advisory Opinion, I. C. J. Reports 1962*, p. 163). However, the Court would emphasize that Article 24 refers to a primary, but not necessarily exclusive, competence. The General Assembly does have the power, *inter alia*, under Article 14 of the Charter, to "recommend measures for the peaceful adjustment" of various situations (*ibid*).

"[T]he only limitation which Article 14 imposes on the General Assembly is the restriction found in Article 12, namely, that the Assembly should not recommend measures while the Security Council is dealing with the same matter unless the Council requests it to do so." (*I. C. J. Reports 1962*, p. 163.)

...As regards the practice of the United Nations, both the General Assembly and the Security Council initially interpreted and applied Article 12 to the effect that the Assembly could not make a recommendation on a question concerning the maintenance of international peace and security while the matter remained on the Council's agenda. Thus the Assembly during its fourth session refused to recommend certain measures on the question of Indonesia, on the ground, *inter alia*, that the Council remained seized of the matter...

However, this interpretation of Article 12 has evolved subsequently. Thus the General Assembly deemed itself entitled in 1961 to adopt recommendations in the matter of the Congo (resolutions 1955 (XV) and 1600 (XVI)) and in 1963 in respect of the Portuguese colonies (resolution 1913 (XVIII)) while those cases still appeared on the Council's agenda, without the Council having

⁸ (2004) ICJ Reports, 136.

adopted any recent resolution concerning them... It is often the case that, while the Security Council has tended to focus on the aspects of such matters related to international peace and security, the General Assembly has taken a broader view, considering also their humanitarian, social and economic aspects.

...The Court considers that the accepted practice of the General Assembly, as it has evolved, is consistent with Article 12, paragraph 1, of the Charter.⁹

Peacekeeping and Observer Missions

Although in the United Nations Charter, there is no direct textual basis for the peacekeeping and observer missions of the Organisation, in practice, they arose by the default in the contribution to armed forces to it as envisaged in Article 43 of the *Charter*. These operations involve the deployment of armed forces under the legal control of the United Nations for resolving armed conflicts which may be inter-state or civil war or in relation to some other matters. In the advisory opinion of the ICJ in the *Certain Expenses*,¹⁰ the legality of these operations have been confirmed. In this case, a few members of the United Nations were falling behind in their payment of dues to the United Nations because they declined to contribute to the financing of United Nations Emergency Force in the Middle East (UNEF) and ONUC (United Nations Operations in the Congo). The Court has observed:

[T]he Court agrees that such expenditures must be tested by their relationship to the purposes of the United Nations in the sense that if an expenditure were made for a purpose which is not one of the purposes of the United Nations, it could not be considered an "expense of the Organization"...

..when the Organization takes action which warrants the assertion that it was appropriate for the fulfilment of one of the stated purposes of the United Nations, the presumption is that such action is not *ultra vires* the Organization...

...it is apparent that the operations were undertaken to fulfil a prime purpose of the United Nations, that is, to promote and to maintain a peaceful settlement of the situation. This being true, the Secretary-General properly exercised the authority given him to incur financial obligations of the Organization and expenses resulting from such obligations must be considered "expenses of the Organization within the meaning of Article 17, paragraph 2".¹¹

These operations would require the consent of the state in whose territory they are deployed. Their success is contingent not only on the level of determination and armed capabilities of the combating parties but also the provision of the required level of resources by the United Nations and its member states. Peacekeeping and observer missions operate under the authority of the United Nations and their activities can make the organisation liable. They may be engaged in a variety of activities such as the monitoring of elections, observance of human rights treaties, undertaking demining operations, and training and supervision of activities of police forces etc.

⁹ Ibid, at 148-150.

¹⁰ (1962) ICJ Reports, 151.

¹¹ Ibid, at 167-172.

The members of these missions are required to obey national laws and regulations of the state wherein they operate and are required to respect their international character. Any careful reader of the world history would probably know that the role of the United Nations in the maintenance of peace has, by no means, been remarkable. For instance, it had very little role to play in the Vietnam War, the USSR's aggression in Czechoslovakia and Afghanistan, and some civil wars in Africa (e.g. in Nigeria and Angola). Some experts pin hope on the demise of the Cold War as a factor for a greater role of these missions but while in terms of the diversity of activities, there is a discernible progress, any marked progress in serious matters involving high stakes is still uncertain.

It should be noted that the *United Nations Charter* in its Chapter VII also envisages collective actions regarding threats to the peace, breaches of the peace, and acts of aggression. This would be explored in greater detail when we deal with the issue of the use of force in international law. At this stage, it would suffice to remember that while actions of the Security Council under Chapter VI regarding the pacific settlement of disputes are recommendatory in nature, matters pertaining to threats to the peace, breaches of the peace, and acts of aggression can trigger compulsory actions by the Security Council.

Question: Can you envisage in what different ways the contribution to the UN budget by its member states may be used by some economically advanced countries as leverage?

Further reading: Deen, Thalif, 'Is it Time to End Cheque Book Diplomacy at the UN?' 19 December 2018 <<http://www.ipsnews.net/2018/12/time-end-cheque-book-diplomacy-un/>> accessed 11 January 2019

Class Notes

International Law and Use of Force by States

The prohibition on the use of force in international relations (save in exceptional cases) is now established firmly and scholars generally agree that its earliest (and almost universally accepted) expression can be traced in the *General Treaty for the Renunciation of War*, 1928 (also known as *Briand-Kellogg Pact* or *Pact of Paris*).¹ Article 1 of this Treaty proclaims that its parties ‘solemnly declare in the names of their respective people that they condemn recourse to war for the solution of international controversies, and renounce it, as an instrument of national policy in their relations with one another.’ And in a similar vein, Article 2 states that they ‘agree that the settlement or solution of all disputes or conflicts of whatever nature or of whatever origin they may be, which may arise among them, shall never be sought except by pacific means.’ This instrument marked a sea of change in international law’s approach to war in the sense that even the *Covenant of League of Nations* though tried to reduce the use of force, but very clearly fell short of stamping out war or illegal use of force.² Another important instrument in this regard United Nations General Assembly Resolutions No 2625, the *Declaration on Principles of International Law concerning Friendly Relations and Cooperation among States in accordance with the Charter of the United Nations* which as the ICJ has decided in *Nicaragua* to reflect the customary international law.³

One should note that the focus of this brief note is on *jus ad bellum* (the right to war) and *jus in bello* (rules of war/ international law of armed conflict i.e. the law on the conduct during wars) is entirely beyond its scope, because the latter now forms a distinct branch of international law commonly known as humanitarian law. Again, it would be useful to remember that the restraint on the use of force here only refers to the use of force internationally and international law generally does not deal with the use of force for maintaining law and order within the territorial limits of states. For this reason, resort to force for preventing or controlling riots or punish rebels etc. would remain outside the prohibition on the use of force in international law, but if such a resort illegally inflicts injury on the person or property of aliens, it may render the state liable to pay reparation or if it harms citizens it may raise issues of violation of human rights and may trigger questions about humanitarian intervention.

Use of Non-Armed Force

As you should recall Article 2(4) of the *Charter of the United Nations* prohibits the use of force, but political pressure or economic pressure may not be within the scope of the

¹ However, that of course, does not at all imply that powerful states have always followed this legal norm. Mr Briand was the Minister of Foreign Affairs of France (subsequently became the French Prime Minister), and Mr Kellogg was the US Secretary of State who played key roles in the signing of the Pact. The prior effort through the adoption of *The Hague Convention respecting the Limitation of the Employment of Force for the Recovery of Contract*, 1907 (also known as *Drago-Porter Convention (1907)*) only sought to restrict the freedom to use force for recovering contractual debts that could apply only when a debtor state agreed to arbitral settlement and complied with the award.

² Articles 10 to 16 of the *Covenant of the League of Nations*. And the focus of the League was limited to resort to war as opposed to the mere use of force.

³ *Case Concerning Military and Paramilitary Activities in and against Nicaragua (Nicaragua v the United States of America)*, (1986) ICJ Reports 14 [188] [*Nicaragua Merits*].

prohibition. This is implicitly recognised by the International Court of Justice (ICJ) in the *Nicaragua Case* where it has observed that 'that it is unable to regard such action [economic coercion] on the economic plane as is here complained of as a breach of the customary-law principle of non-intervention.'⁴

Questions: Would the prohibition on the use of force as contained in Article 2(4) be applicable to non-UN member states? Could the use of inappropriate pressure by a state on another state to sign a treaty amount to any other form of violation of international law?

Threat of Use of Force

As you would probably also recall that the prohibition of Article 2(4) of the UN Charter is not limited to the actual use of force but also includes a threat to the use of force. The ICJ in its advisory opinion in *Legality of the Threat or Use of Nuclear Weapons*,⁵ has elaborated on the threat of use of force in the following terms:

In order to lessen or eliminate the risk of unlawful attack, States sometimes signal that they possess certain weapons to use in self-defence against any State violating their territorial integrity or political independence. Whether a signalled intention to use force if certain events occur is or is not a "threat" within Article 2, paragraph 4, of the Charter depends upon various factors. If the envisaged use of force is itself unlawful, the stated readiness to use it would be a threat prohibited under Article 2, paragraph 4. Thus it would be illegal for a State to threaten force to secure territory from another State, or to cause it to follow or not follow certain political or economic paths. The notions of "threat" and "use" of force under Article 2, paragraph 4, of the Charter stand together in the sense that if the use of force itself in a given case is illegal - for whatever reason - the threat to use such force will likewise be illegal. In short, if it is to be lawful, the declared readiness of a State to use force must be a use of force that is in conformity with the Charter. For the rest, no State - whether or not it defended the policy of deterrence - suggested to the Court that it would be lawful to threaten to use force if the use of force contemplated would be illegal.⁶

In *Guyana v Suriname*,⁷ the naval authorities of Suriname ordered an oil rig belonging to Canada, which was operating in a continental shelf area claimed by both of the disputing parties, to depart within 12 hours or face the consequences.⁸ The arbitrators in the Permanent Court of Arbitration held that the order amounted to an illegal threat of use of force.⁹

Exceptions to the Prohibition on the Use of Force

Self-defence

International law recognises the right to self-defence as an exception to the prohibition on the use of force. In the *Caroline incident*,¹⁰ during the Canadian rebellion of 1837, thwarting the steps of the US authorities to prevent any assistance to the rebels, some US citizens formed a group and proceeded to Navy Island in Canada. From there, they raided Canadian shore and attacked British vessels. The force was supplied with the necessary things by an American Ship, the *Caroline*. Subsequently, the British succeeded in seizing it from a US port and destroyed it in the course of which two American citizens were killed. In the course of

⁴ Ibid, [245].

⁵ *Legality of the Threat or Use of Nuclear Weapons* (1996) ICJ Reports 226.

⁶ Ibid, at para 47.

⁷ Award of 17 September 2007.

⁸ Ibid, [436].

⁹ Ibid, [439], [445].

¹⁰ 29 British and Foreign State Papers 1137-1138; 30 British and Foreign State Papers 195-196.

diplomatic exchange with his British counterpart, the US Secretary of State said that there must exist 'necessity of self-defence, instant, overwhelming, leaving no choice of means, and no moment for deliberation.'¹¹ Similarly, the subsequent response would also have to be proportionate, because 'since the act justified by the necessity of self-defence, must be limited by that necessity, and kept clearly within it.'

Similarly, Article 51 of the UN Charter authorises action in self-defence in the following words:

Nothing in the present Charter shall impair the inherent right of individual or collective self-defence if an armed attack occurs against a Member of the United Nations, until the Security Council has taken measures necessary to maintain international peace and security. Measures taken by Members in the exercise of this right of self-defence shall be immediately reported to the Security Council and shall not in any way affect the authority and responsibility of the Security Council under the present Charter to take at any time such action as it deems necessary in order to maintain or restore international peace and security.

In the *Oil Platforms*,¹² during the Iran-Iraq War, after some attacks on merchant ships, the USA and some other countries started to provide naval escorts for ships which were flying their flags. In October 1987, the *Sea Isle City*, a Kuwaiti ship which was re-flagged to the USA for the purpose of escorting, while it was in the territorial water of Kuwait, was hit by a missile. In April 1998, the *USS Samuel B. Roberts*, a warship was also damaged by a mine in international water when the ship was on escort duty. After these incidents, the USA attacked three offshore Iranian oil platforms. Iran sued the USA alleging a breach of the bilateral treaty of 1955. The ICJ observed that:

in order to establish that it was legally justified in attacking the Iranian platforms in exercise of the right of individual self-defence, the United States has to show that attacks had been made upon it for which Iran was responsible; and that those attacks were of such a nature as to be qualified as "armed attacks" within the meaning of that expression in Article 51 of ... and as understood in customary law on the use of force. As the Court observed in the case concerning Military and Paramilitary Activities in and against Nicaragua, it is necessary to distinguish "the most grave forms of the use of force (those constituting an armed attack) from other less grave forms" ... since "In the case of individual self-defence, the exercise of this right is subject to the State concerned having been the victim of an armed attack"... The United States must also show that its actions were necessary and proportional to the armed attack made on it, and that the platforms were a legitimate military target open to attack in the exercise of self-defence...

[T]he Court has examined with great care the evidence and arguments presented on each side, and finds that the evidence indicative of Iranian responsibility for the attack on the *Sea Isle City* is not sufficient to support the contentions of the United States. The conclusion to which the Court has come on this aspect of the case is thus that the burden of proof of the existence of an armed attack by Iran on the United States, in the form of the missile attack on the *Sea Isle City*, has not been discharged...

On the hypothesis that all the incidents complained of are to be attributed to Iran, and thus setting aside the question, examined above, of attribution to Iran of the specific attack on the *Sea Isle City*, the question is whether that attack, either in itself or in combination with the rest of the "series of . . . attacks" cited by the United States can be categorized as an "armed attack" on the United States justifying self-defence. The Court notes first that the *Sea Isle City* was in Kuwaiti waters at the time of the attack on it, and that a Silkworm missile fired from (it is alleged) more than 100 km away could not have been aimed at the specific vessel, but simply programmed to hit some target in Kuwaiti waters. Secondly, the *Texaco Caribbean*, whatever its ownership, was not flying a United States flag, so that an attack on the vessel is not in itself to be equated with an attack on that State...

¹¹ Quoted in Malcolm N. Shaw, *International Law* (Cambridge University Press, 6th ed, 2008), 1131.

¹² (*Iran v USA*) (2003) ICJ Reports 161.

The Court does not exclude the possibility that the mining of a single military vessel might be sufficient to bring into play the "inherent right of self-defence"; but in view of all the circumstances, including the inconclusiveness of the evidence of Iran's responsibility for the mining of the USS Samuel B. Roberts, the Court is unable to hold that the attacks on the Salman and Nasr platforms have been shown to have been justifiably made in response to an "armed attack" on the United States by Iran, in the form of the mining of the USS *Samuel B. Roberts*.¹³

Thus, the ICJ rejected the US claim of self-defence, but also rejected the claim of reparation of the Iranians as it found that the US actions did not breach the treaty obligations regarding the freedom of commerce existing between the two parties.

Question: Would an armed attack on a foreign embassy justify the use of force in self-defence? Can a state facing an existential threat use nuclear weapons?

When a state uses private armed groups to conduct an armed attack on another state, the right to self-defence would apply. However, the ICJ in the *Nicaragua* has held that something less than that, such as the provision of assistance to rebels, though can be illegal, would not justify the use of force in self-defence. It has stated that:

[T]he Court does not believe that the concept of "armed attack" includes not only acts by armed bands where such acts occur on a significant scale but also assistance to rebels in the form of the provision of weapons or logistical or other support. Such assistance may be regarded as a threat or use of force, or amount to intervention in the internal or external affairs of other States.¹⁴

Armed Attack by Non-State Actors

In the *Armed Activities on the Territory of the Congo*,¹⁵ in determining the legality of the use of force on the territory of Congo to thwart cross-border incursions by armed groups based in Congo, the ICJ held that Congo was not responsible for the actions of the private group. This is because Congo was not legally responsible for the armed groups over which it had no control them. It was immaterial that Congo did not succeed in taking action against the insurgent groups. Uganda was asked to pay reparation to Congo. However, some academic commentators argue that some UN Security Council Resolutions such as 1368 and 1373 of 2001 unequivocally condemning large-scale terrorist attacks and treating them as a threat to peace and security may thus amount to an armed attack by a non-state actor.¹⁶ And in response to such an attack, the attacked state may resort to the use of force in self-defence.¹⁷ The validity of these assertions are open to question.

Questions: What about the legality of pre-emptive attacks? What was the response of the community of states when in October 2001, the USA and the UK launched air strikes against Afghanistan? Assuming that states have generally condoned the attack, to what extent, customary international law may have emerged justifying use of force against non-state actors for dispelling the threat of terrorism?

While the legal status of use of force abroad (unless consented to by the concerned state) for protecting the life of nationals is less than certain, it is clearly established in

¹³ Ibid, [51], [61], [64], [72].

¹⁴ *Nicaragua Merits*, above note 3 [195].

¹⁵ (2005) ICJ Reports 301.

¹⁶ See for example, Shaw, above note 11, at 1136.

¹⁷ Ibid.

contemporary international law that the use of force solely for saving properties abroad is illegal.

Collective Self-defence

Article 51 also envisages the validity of collective self-defence. The issue of collective defence may arise in the context of security groupings such as North Atlantic Treaty Organization or Warsaw Pact. In the *Nicaragua Case*, the ICJ has stressed on the following requirements to be satisfied before the right to collective defence may be invoked:

It is also clear that it is the State which is the victim of an armed attack which must first and declare the view that it has been so attacked. There is no rule in customary international law permitting another State to exercise the right of collective self-defence on the basis of its own assessment of the situation. Where collective self-defence is invoked, it is to be expected that the State for whose benefit this right is used will have declared itself to be the victim of an armed attack.¹⁸

The Court has also somewhat narrowed the scope of collective self-defence by the following observation:

[F]or one State to use force against another, on the ground that that State has committed a wrongful act of force against a third State, is regarded as lawful, by way of exception, only when the wrongful act provoking the response was an armed attack. Thus[,] the lawfulness of the use of force by a State in response to a wrongful act of which it has not itself been the victim is not admitted when this wrongful act is not an armed attack.¹⁹

Intervention

As a customary international law obligation, states cannot legally resort to intervention in violation of the territorial integrity of another state. This has been confirmed by the ICJ in the *Nicaragua*. The ICJ has stated that:

The Court therefore finds that no such general right of intervention, in support of an opposition within another State, exists in contemporary international law. The Court concludes that acts constituting a breach of the customary principle of non-intervention will also, if they directly or indirectly involve the use of force, constitute a breach of the principle of non-use of force in international relations.²⁰

Some argue that there is a right to humanitarian intervention when the intervention is for the purpose of protecting individuals within a particular state. In view of the emphasis on the territorial integrity in the UN Charter, the position is very difficult to maintain. This was pleaded by some to justify the bombing by the NATO forces to save ethnic Albanians during the Kosovo crisis and subsequently a resolution of the Security Council to condemn the NATO activities was defeated by 12 votes to 3. However, it would possibly be premature to equate this defeated resolution as recognition of the validity of the humanitarian intervention.

Questions: What do you think about the legal validity of intervention for upholding or restoring democracy? What are the perils of such an exercise?

Responsibility to Protect [R2P]:

The *responsibility to protect* in the context of international law notion was first propounded by the Canadian Government in 2001. It basically asserts that State sovereignty indicates

¹⁸ *Nicaragua Merits*, above note 3 [195].

¹⁹ *Ibid*, [211].

²⁰ *Ibid*, [209].

responsibility, and the primary responsibility for the protection of its people lies with the respective state. However, where a population would suffer serious harm due to internal war, insurgency, repression, or state failure, and the state in question is unwilling or unable to halt or avert it, the principle of non-intervention would give way to the international responsibility to protect and thus, it becomes an obligation of the international community to discharge that obligation. This was also reflected in 2005 World Summit Outcome.²¹

Question: Is this concept of R2P a political aspiration or legal obligation? What are the potential challenges to its practical value?

Chapter VII of the UN Charter

Measures not Involving Direct Use of Force

When the UN Security Council resolves that a particular dispute or situation actually involves a threat to the peace, breach of the peace, or act of aggression, it is allowed to pursue further measures. However, Article 40 of the UN Charter states that such further measures may be preceded by some sort of provisional measures which may typically involve a call for immediate ceasefire or withdrawal of armed forces from foreign soil. When the Security Council resolves that there is a threat to the peace, breach of the peace, or act of aggression, it may proceed to take measures not amounting to use of armed force which under Article 41 of the *UN Charter* may include disruption of economic relations or the severance of diplomatic relations.

Until 1990, sanctions under Article 41 have rarely been used, such as against Southern Rhodesia, and South Africa. However, after the demise of the Cold War, this is used much more frequently. Examples would include sanctions against Iraq, former Yugoslavia, Haiti, and North Korea etc. The effectiveness of sanctions (particularly economic embargoes) is uncertain, and the fundamental problem is that almost invariably it may affect the general population adversely and even worse, the targeted rogue regimes may be largely immune.

Questions: What may be the dilemma of the more targeted, smart sanctions? Compared to the unilateral sanctions or sanctions by a group of states, could sanctions of the UN Security Council be more effective?

Measures Involving Use of Force

Alternatively, the Security Council may decide that the course of action under Article 41 would be inadequate and may call for the use of force under Article 42 of the *UN Charter*. Under Article 43 of the *UN Charter*, Members of the UN are duty bound to provide to the Security Council 'armed forces, assistance, and facilities, including rights of passage, necessary for the purpose of maintaining international peace and security.' Article 45 of the *UN Charter* envisages that members of the UN 'shall hold immediately available national air-force contingents for combined international enforcement action.' Article 47 of the *UN Charter* provides for the creation of a Military Staff Committee consisting of Chiefs of Staff of the permanent members of the Security Council or their representatives, whose function is inter

²¹ The United Nations General Assembly Resolution 60(1) of 2005, 24 October 2005.

alia, to advise the Security Council on military requirements and design strategic direction of any armed force at the disposal of the Council.

More often than not the resort to arrangements under these Articles has been impossible because of the political differences. For the first time, when North Korea attacked South Korea in 1950 Security Council resolutions could be passed because the USSR was boycotting the session in protest of the seating of the Nationalist Chinese delegation at the Council.²² Secondly, in 1969, in treating the illegal racist regime of Southern Rhodesia as a threat to the peace, the UN Security Council Resolution No. 226 authorised the UK to use force.

Again, after the Iraqi invasion of Kuwait in August 1990, the Council could agree to authorise armed action by a coalition of states and action commenced in January 1991. However, that too was not free of controversy as commentators doubted the propriety of actions that followed inter alia, on the ground that they were not conducted by the Military Staff Committee. However, the subsequent attack on Iraq in March 2003 was controversial at best and illegal at worst, because there was no direct UN authorisation for resorting to the armed attack.

General Assembly and Uniting for Peace Resolution:

On 3 November 1950, by 52 votes to five, with two abstentions, the United Nations General Assembly adopted Resolution 377 (V) (known as the Uniting for Peace Resolution)²³. The Resolution encroaches on the sole competence of the Security Council to act within the UN system of collective security and empowers the General Assembly to intervene in cases of international conflict. The Resolution was adopted against the background of the Korean War. During the Korean crisis, the Security Council was initially capable of acting due to the absence of USSR in June-July 1950 in protest against the representation of China by the regime in nationalist Taiwan authorities. In August 1950, when the USSR resorted its veto power, further resolutions got stalled. The western bloc wanted to act through the General Assembly and eventually the Uniting for Peace Resolution came into being to materialise that desire. General Assembly is competent to take action pursuant to Uniting for Peace Resolution, if the Security Council has failed in its efforts to exercise its primary responsibility for the maintenance of international peace and security due to the exercise of veto power.

The General Assembly may not act if the permanent members jointly decide to stay inactive regarding a particular conflict. The resolution authorises the General Assembly only to act in a situation which falls under Chapter VII UN Charter where there is a threat to the peace, or breach of the peace, or act of aggression. Interestingly, the 1967 emergency special session was convened on the initiative of the USSR, the principal objector to the Uniting for Peace Resolution. Thus, one may argue that now the USSR may not question the Resolution's legality either by acquiescence or by estoppel.

Question: Could you anticipate the arguments for and against actions pursuant to the Uniting for Peace Resolution?

²² Security Council Resolution of 7 July 1950.

²³ 'Uniting for Peace' UNGA Res 377 [V] [3 November 1950] UN Doc A/1775, 10.

Further Readings:

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Heller, Kevin Jon, 'The Illegality of 'Genuine' Unilateral Humanitarian Intervention' (2021) 32 *European Journal of International Law* 613–648

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